

SOLICITATION, OFFER AND AWARD				1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)		RATING		PAGE OF PAGES 1 124		
2. CONTRACT NO.			3. SOLICITATION NO. N0042125R0025		4. TYPE OF SOLICITATION [] SEALED BID (IFB) [X] NEGOTIATED (RFP)		5. DATE ISSUED		6. REQUISITION/PURCHASE NO. 1301171299	
7. ISSUED BY NAWCAD PROCUREMENT GROUP 21983 BUNDY ROAD, BLDG 441 PATUXENT RIVER MD 20670			CODE N00421		8. ADDRESS OFFER TO (If other than Item 7) See Item 7				CODE	
TEL:			FAX:		TEL:				FAX:	
NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".										
SOLICITATION										
9. Sealed offers in original and _____ copies for furnishing the supplies or services in the Schedule will be received at the place specified in Item 8, or if handcarried, in the depository located in _____ until _____ local time _____ (Hour) (Date)										
CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.										
10. FOR INFORMATION CALL:		A. NAME			B. TELEPHONE (Include area code) (NO COLLECT CALLS)			C. E-MAIL ADDRESS		
11. TABLE OF CONTENTS										
(X)	SEC.	DESCRIPTION			PAGE(S)	(X)	SEC.	DESCRIPTION		
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OFFER (Must be fully completed by offeror)										
NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.										
12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.										
13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause No. 52.232-8)										
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):					AMENDMENT NO.		DATE		AMENDMENT NO.	
15A. NAME AND ADDRESS OF OFFEROR		CODE		FACILITY		16. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)				
15B. TELEPHONE NO (Include area code)			15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE. ☐			17. SIGNATURE			18. OFFER DATE	
AWARD (To be completed by Government)										
19. ACCEPTED AS TO ITEMS NUMBERED				20. AMOUNT			21. ACCOUNTING AND APPROPRIATION			
22. AUTHORITY FOR USING OTHER THAN FULL AND OPEN COMPETITION: ☐ 10 U.S.C. 2304(c)() ☐ 41 U.S.C. 253(c)()						23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)			ITEM	
24. ADMINISTERED BY (If other than Item 7)				CODE		25. PAYMENT WILL BE MADE BY			CODE	
26. NAME OF CONTRACTING OFFICER (Type or print) TEL: EMAIL:						27. UNITED STATES OF AMERICA (Signature of Contracting Officer)			28. AWARD DATE	

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

Section A - Solicitation/Contract Form

GENERAL INFORMATION

1. This is a full and open competitive procurement that will result in placement of a Single Award (SA) Indefinite Delivery Indefinite Quantity (IDIQ) contract. Cost Plus Fixed Fee (CPFF), Term Level of Effort (LOE) task orders (to include COST type CLINs for Other Direct Charges (ODCs)) will be issued under this contract. NAVAIR clause BTXT.211-9503 LEVEL OF EFFORT (COST REIMBURSEMENT) (NAVAIR) (DEC 2012) will be included in the applicable LOE task orders.
2. This solicitation is, and the resulting contract will be, subject to the Service Contract Act (SCA) of 1965, as amended, and to FAR clause 52.222-41, contained in Section I of this solicitation. The cost/price proposal shall demonstrate compliance with the minimum monetary wages and fringe benefits for service employees as specified in the Wage Determinations (provided as an attachment in Section J of this solicitation).
3. The Product Service Code (PSC) for this procurement is J016, Maintenance, Repair, and Rebuilding of Equipment – Aircraft Components and Accessories.
4. This contract will have a five-year ordering period with the possibility of a six-month option to extend using FAR 52.217-8. Task Orders (TOs) will be issued as required and the Period of Performance (PoP) will be determined upon award of each TO.
5. A Lot is defined as a five year ordering period for a specific CLIN (no option periods) to include all associated task orders placed during the ordering periods.
6. The contractor will be required to have a TOP SECRET facility clearance and a SECRET clearance for personnel identified in Section C Statement of Work (SOW) paragraph 3.2.2 prior to issuance of a task order under this contract. The contractor will not be permitted access to classified information until a final DD254 is incorporated as an attachment to the contract.

POINTS OF CONTACT

Contract Specialist: Molly Watters
E-mail: mary.k.watters.civ@us.navy.mil

Procuring Contracting Officer: Jennifer L. Lundburg
E-mail: jennifer.l.lundburg.civ@us.navy.mil

Contracting Officer Representative: TBD

Section B - Supplies or Services and Prices

DESCRIPTION

At the IDIQ level, CLINs 0001 and 0006 will contain the overall ceiling for CLINs 0001-0004, and 0006-0009 respectively. Not Separately Priced (NSP) CLINs are contained within the Basic IDIQ Contract, whereas, at the Task Order Level, these NSP CLINs will be separately priced.

B-1 NEGOTIATED RATES**B.1 Streamlined Ordering for Cost Plus Fixed Fee Term LOE Orders**

LOE Orders will be issued under this contract using the following streamlined ordering procedures:

- (1) For each proposed order, the contracting officer will provide the contractor with a Task Order (TO) and an Independent Government Cost Estimate (IGCE). The IGCE is an estimate of labor hours by labor category utilizing the estimated and negotiated Composite Labor rates found in the table below to calculate the total estimated cost for the proposed TO. The TO fixed fee is calculated using Section H Clause HTXT.232-9510 PAYMENT OF FIXED FEE (NAVAIR).
- (2) These Composite rates are estimates, and invoicing will be based on actual costs incurred. Ceiling for Other Direct Costs (ODC) will be priced in accordance with the Government estimate. TOs crossing multiple years will be estimated by the Government using the composite rates for each year in proportion to the period of performance of the TO.
- (3) Requirements for contractor response:
 - (i) If the contractor agrees that it can perform the TO within the parameters of the IGCE, the contractor shall sign and return the DD1155 to the contracting officer within three (3) working days of receipt of the TO and IGCE. If the requirement remains valid, a priced order will be issued to the contractor.
 - (ii) If the contractor does not agree with the TO and/or IGCE, the contractor shall submit a proposal to the contracting officer within five (5) working days of receipt of the TO and IGCE, addressing only the specific areas of difference in labor categories and/or hours in the IGCE. Once the differences are resolved between the contracting officer and the contractor, and the requirement remains valid, a priced order will be issued to the contractor.
 - (iii) If the contractor fails to respond to the proposed order within five (5) working days of receipt of the TO, the contracting officer may unilaterally issue the TO or extend the deadlines above when in the best interest of the Government.

B-1 NEGOTIATED RATES								
K=Contractor Site G = Webster Field, St. Inigoes	LCAT Level	Site (K/G)	Year 1	Year 2	Year 3	Year 4	Year 5	
Labor Category			Composite Rate	Composite Rate	Composite Rate	Composite Rate	Composite Rate	
Budget Analysts	Journeyman	K						
Computer Hardware Engineers	Entry/Basic	G						
Computer Hardware Engineers	Intermediate	G						
Computer Hardware Engineers	Advanced	G						
Computer Networks Architects	Intermediate	G						
Computer Networks Architects	Advanced	G						
Drafter/CAD Operator III	N/A - SCA	G						
Drafter/CAD Operator IV	N/A - SCA	G						
Electrical Engineers	Junior	G						
Electrical Engineers*	Senior	G						
Electro-mechanical and Mechatronics Technologists and Technicians	Journeyman	G						
Electro-mechanical and Mechatronics Technologists and Technicians	Senior	G						

Electronics Engineers, Except Computer	Journeyman	G					
Electronics Engineers, Except Computer	Senior	G					
Electronics Technician Maintenance I	N/A - SCA	G					
Electronics Technician Maintenance II	N/A - SCA	G					
Electronics Technician Maintenance III	N/A - SCA	G					
Engineering Technician II	N/A - SCA	G					
Engineering Technician III	N/A - SCA	G					
Engineering Technician IV	N/A - SCA	G					
Engineering Technician V	N/A - SCA	G					
Engineering Technician VI	N/A - SCA	G					
General and Operations Managers*	Senior	K					
Logisticians*	Journeyman	G					
Management Analysts	Journeyman	G					
Material Coordinator	N/A – SCA	G					
Mechanical Engineers	Junior	G					
Mechanical Engineers	Journeyman	G					
Mechanical Engineering Technologists and Technicians	Journeyman	G					
Mechanical Engineering Technologists and Technicians	Senior	G					
Network and Computer Systems Administrators	Intermediate	G					
Network and Computer Systems Administrators	Advanced	G					
Project Management Specialist	Journeyman	G					
Project Management Specialist	Journeyman	K					
Software Developers	Entry/Basic	G					
Software Developers	Intermediate	G					
Software Developers	Advanced	G					
Supply Technician	N/A - SCA	G					
Technical Writer III	N/A - SCA	K					
Web and Digital Interface Designers	Intermediate	G					

*Indicates Key Personnel

TABLE TO BE COMPLETED AT TIME OF AWARD***

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Labor - CPFF CPFF Ceiling for CLINs 0002-0004 FOB: Destination PURCHASE REQUEST NUMBER: 1301171299 PSC CD: J016		Lot		
ESTIMATED COST FIXED FEE					
TOTAL EST COST + FEE					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0002	Labor - CPFF CPFF O&M (NSP from CLIN 0001) FOB: Destination PSC CD: J016		Lot		
ESTIMATED COST FIXED FEE					
TOTAL EST COST + FEE					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0003	Labor - CPFF CPFF PROC (NSP from CLIN 0001) FOB: Destination PSC CD: J016		Lot		
ESTIMATED COST FIXED FEE					
TOTAL EST COST + FEE					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0004	Labor - CPFF CPFF RDT&E (NSP from CLIN 0001) FOB: Destination PSC CD: J016		Lot		
ESTIMATED COST					
FIXED FEE					
TOTAL EST COST + FEE					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0005	DATA FFP Technical Data ((NSP) CLIN 0001) FOB: Destination PSC CD: J016		Lot		
NET AMT					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0006	ODC - COST COST ODC Ceiling for CLINs 0007-0009 FOB: Destination		Lot		
ESTIMATED COST					

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
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0007

ODC - COST

COST

O&M (NSP from CLIN 0006)

FOB: Destination

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
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0008

ODC - COST

COST

PROC (NSP from CLIN 0006)

FOB: Destination

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
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0009

ODC - COST

COST

RDT&E (NSP from CLIN 0006)

FOB: Destination

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0010	CONTRACTOR ACQUIRED PROPERTY FFP (CLIN 0006) FOB: Destination		Lot		

NET AMT

CLAUSES INCORPORATED BY FULL TEXT

BTXT.211-9503 LEVEL OF EFFORT (COST REIMBURSEMENT) (NAVAIR) (DEC 2012)

(a) The level of effort estimated to be ordered during the term of this contract is 463,200 man-hours of direct labor including authorized subcontract labor, if any. The contractor shall not, under any circumstances, exceed one hundred (100%) percent of the total level of effort specified in this basic contract. The estimated composition of the total man-hours of direct labor by classification is as follows:

Labor Category	Man-hours	Total Man-hours
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* denotes Key Personnel labor categories

(b) FAR Clause 52.232-20, "Limitation of Cost" applies to fully funded orders and FAR Clause 52.232-22, "Limitation of Funds" applies to incrementally funded orders. Nothing in this clause amends the rights or responsibilities of the parties hereto under either of those two clauses. In addition, the notifications required by this clause are separate and distinct from any specified in either FAR Clause 52.232-20 or FAR Clause 52.232-22.

(c) In the event that less than one hundred (100%) percent of the established level of effort of the contract/order is actually expended by the end of the performance period, the Government shall have the option of:

(1) Requiring the Contractor to continue performance, subject to the provisions of the FAR Clause 52.232-20 or 52.232-22, as applicable, until the effort expended equals 100% of the established Level of Effort; or

(2) Effecting a reduction in the fixed fee by the percentage by which the total expended man-hours is less than one hundred (100%) percent of the established Level of Effort.

(d) The contractor agrees that effort performed in fulfillment of level of effort obligations under this contract shall include only verifiable effort in direct support of the work specified. It shall not include efforts such as work performed in transit to or from an employee's usual workplace, work during lunchtime activities, or effort performed at other non-work locations.

(e) In performing the contract/order, the contractor may use any reasonable combination of hours for the labor categories in support of section C of this contract/order.

BTXT.216-9506 MINIMUM AND MAXIMUM QUANTITIES (NAVAIR)(MAR 1999)

As referred to in paragraph (b) of FAR 52.216-22 "Indefinite Quantity" of this contract, the contract minimum quantity is \$10,000 the maximum quantity is Total Contract Value.

Section C - Descriptions and Specifications

STATEMENT OF WORK

**STATEMENT OF WORK FOR
COMBAT INTEGRATION & IDENTIFICATION SYSTEMS
COUNTER UNCREWED SYSTEMS SUPPORT SERVICES**

1.0 Scope.

As the organic Lead Systems Integrator® (oLSI®) for the Naval Air Warfare Center Aircraft Division (NAWCAD), Webster Outlying Field (WOLF) operates under a product-based business model whereby NAWCAD WOLF civilians lead and manage the execution of the requirements with combined Government-Industry teams. Using this oLSI® approach, the Government maintains control of intellectual property and data rights, enabling WOLF to rapidly adapt solutions to the dynamic needs of the warfighter.

The NAWCAD WOLF Combat Integration & Identification Systems (CI&IDS) Division, operating under the oLSI® model, has requirements for the support and sustainment of Counter Uncrewed Systems (CUXS) including, but not limited to, systems that provide detection, characterization, identification, mitigation, and assessment of friendly or adversarial platforms. Services procured under this Contract include providing support for system integration, production and fabrication, in-service engineering, training, logistics engineering, supply and material control, testing, CUXS operations, laboratory and test bed maintenance, CUXS engineering, frequency management and spectrum authorization, and technical management.

2.0 Applicable Documents.

2.1 Department of Defense (DoD) Specifications.

2.1.1 *DoD National Industrial Security Program Operating Manual (NISPOM) codifying 32 Code of Federal Regulation Part 117, NISPOM Rule.*

2.1.2 *DoDM 5200.01 Vol. 2, Marking of Classified Information, Change 4, 28 Jul 2020.*

2.1.3 *SECNAV M-5510.36B, Department of the Navy, Information Security Program, 12 Jul 2019.*

2.1.4 *DoDI 5200.48, Controlled Unclassified Information (CUI), 6 Mar 2020.*

2.1.5 *DoDD 5400.07, DoD Freedom of Information Act (FOIA) Program, 5 Apr 2019.*

2.1.6 *DoDI 5230.24, Distribution Statements on Technical Documents, Change 3, 10 Jan 2023.*

2.1.7 *SECNAV M-5510.30C, Department of the Navy, Personnel Security Program, 24 Jan 2020.*

2.1.8 *OPNAVINST 3440.17A, Navy Installation Emergency Management Program, 1 Aug 2014.*

2.1.9 *SECNAVINST 5239.20A, Department of the Navy Cyberspace Information Technology and Cybersecurity Workforce Management and Qualification, 10 Feb 2016.*

2.1.10 *DoDD 8140.01, Cyberspace Workforce Management.*

2.1.11 *DoDI 1035.01, Telework and Remote Work, 8 Jan 2024.*

2.1.12 *DoDI 4151.19 (Change 2), Serialized Item Management (SIM) for Life-Cycle Management of Materiel, 31 Aug 2018.*

2.2 DoD Standards.

2.2.1 *MIL-STD-882E w/change 1, Department of Defense Standard Practice: System Safety, 27 Sep 2023.*

2.2.2 *MIL-STD-881F, Department of Defense Standard Practice: Work Breakdown Structures for Defense Materiel Items, 13 May 2022.*

- 2.2.3 *MIL-STD-38784B, Department of Defense Standard Practice: General Style and Format Requirements for Technical Manuals*, 16 Nov 2020.
- 2.2.4 *MIL-STD-2106A, Department of Defense Standard Practice: Development of Shipboard Industrial Test Procedures*, 4 Jun 2014.
- 2.2.5 *MIL-STD-3034A NOT 2, Reliability-Centered Maintenance (RCM) Process*, 27 March 2024.
- 2.2.6 *GEIA-STD-0007C, Logistics Product Data*, 6 Nov 2019.
- 2.3 Other Government Documents.
 - 2.3.1 *MIL-HDBK-61B, Configuration Management Guidance*, 7 Apr 2020.
 - 2.3.2 *National Institute of Standards and Technology (NIST) Special Publication (SP), 800-53A Rev. 5*
 - 2.3.3 *National Security Decision Directive 298, dated 22 January 1988 Public Law 100-235, Section 3(d)(4).*
 - 2.3.4 *NAWCADINST 3070.4, Operations Security*, 11 Apr 2022.
 - 2.3.5 *NAVAIRINST 13640.1C, Naval Aviation Metrology and Calibration Program*, 28 Apr 2014.
 - 2.3.6 *NAVAIRINST 4355.19E, Systems Engineering Technical Review Process*, 06 Feb 2015.
 - 2.3.7 *STANAG 4193, Technical Characteristics of IFF Fleet A and Fleet Interrogators and Transponders, Part I through XI.*
 - 2.3.8 *SOP-CIIDS-B-SEC-002, Security.*
 - 2.3.9 *SWP4K200T-001, CI&IDS Division Engineering and Design Packages.*
 - 2.3.10 *SOP4K200T-016, Root Cause Analysis.*
 - 2.3.11 *SOP4K200T-020, Testing.*
- 2.4 Industry Documents.
 - 2.4.1 *American Society for Testing and Materials (ASTM) manual A.*
 - 2.4.2 *International Organization for Standardization (ISO), ISO 9001:2015.*
 - 2.4.3 *IPC J-STD-001, Requirements for Soldered Electrical and Electronic Assemblies.*
 - 2.4.4 *ASME Y14.100 – 2017, Engineering Drawing Practices.*
 - 2.4.5 *ASME Y14.24 – 2012, Types and Applications of Engineering Drawings.*
 - 2.4.6 *ASME Y14.34 – 2013, Associated Lists.*
 - 2.4.7 *ASME Y14.35 – 2014, Revision of Engineering Drawings and Associated Documents.*
 - 2.4.8 *ASME Y14.41 – 2012, Digital Product Definition Data Practices.*
- 3.0 Requirements.
 - 3.1 General Requirements.
 - 3.1.1 Compatibility. The Contractor shall maintain the capability to prepare documents and software packages compatible with the Government Information Technology (IT) environment through the security classification of Secret as specified on the *DD Form 254, Contract Security Classification Specification Form (Attachment XX)*. The current operating environment required for this Contract includes:
 - Microsoft Windows 16 or greater
 - Microsoft Project 2016 or greater
 - Microsoft Office Professional Plus 2016 or greater
 - Adobe Acrobat XI (Pro) or greater
 - Internet access
 - Flank Speed

The Contractor shall maintain the ability to interface with and transfer data to and from requiring office software applications and their upgraded versions. The Contractor shall ensure that all media are virus free when delivered. The Contractor shall be capable of internet and Local Area Network (LAN) communications with the CI&IDS Division. Contractor personnel shall be capable of maintaining real-time communications, both voice and data transfer capabilities, with CI&IDS Division during working hours whether at contractor work site or on travel.

3.1.2 Work Location, Facilities, and Telework/Remote Work.

3.1.2.1 Work Location. Approximately 94% of work will be performed at Government site and 6% of work to be performed at contractor site. Government site(s) include NAWCAD WOLF, St. Inigoes, MD.

3.1.2.1.1 Government Site Requirements.

Contractors performing on-site support will be provided access to workspaces, telephones, printers, facsimile machines, copy machines, shredders, computers, and network access including web servers and applicable databases or other applications necessary to carry out assigned tasks.

3.1.2.1.2 Contractor Site Requirements.

The Contractor shall provide its own support facility needed to perform the tasking of this Contract within 50 drivable miles of NAWCAD WOLF, St. Inigoes, MD.

3.1.2.2 Meeting Support. In support of the tasking outlined in this Statement of Work (SOW), the Contractor shall have the capability to host and conduct meetings at the classification levels up to Secret with the capacity to support a minimum of 20 persons and have contractor-furnished telephone and Video Teleconference (VTC) capability as well as sufficient equipment to conduct meetings with presentations including compatible software as required in section 3.1.1. This support may be co-located at the Contractor support facility, as required in 3.1.2.1.2.

3.1.2.3 Telework.

The Contractor may allow employees to telework in accordance with (IAW) *DoDI 1035.01, Telework and Remote Work* and the table in section 3.4. The Contractor may allow employees not listed in the table in section 3.4 to telework with approval from the COR in writing, stating that a position's tasking is eligible for telework. The Contractor may utilize alternate worksites/locations to telework to support continued performance of SOW tasks IAW company policy. When using telework, the Contractor remains responsible for contract performance and compliance with any applicable cost accounting standards and contract cost principles/procedures.

In the event that telework tools become unavailable while working off-site, the Contractor shall require positions defined as telework to report on-site in order to access the tools required for performance of this Contract.

At any time during contract performance, the Contracting Officer's Representative (COR) may determine that a position is no longer eligible for telework by providing a notice 30 calendar days in advance so the Contractor can address changes needed to support mission requirements.

3.1.3 Contract Status Reporting. The Contractor shall provide the following documentation.

3.1.3.1 Monthly Progress and Financial Status Report. The Contractor shall provide a progress and financial status report IAW the Contract Data Requirement List (CDRL). The report shall include work accomplished since submittal of the last report, both monthly and cumulative work hour labor costs expended by labor category, and material and travel costs. (CDRL A001)

- 3.1.3.2 The Contractor shall prepare and deliver an *Organizational Chart & Labor Mix Plan*. (CDRL A002)
- 3.1.3.3 The Contractor shall provide a *Certificate of Compliance* with *ISO 9001:2015*. (CDRL A003)
- 3.1.3.4 The Contractor shall provide support for the Technical Assistance Performance Evaluation (TAPE) process by providing the TAPE form to all sites where work is performed at the completion of each site visit. All responses provided and associated metrics shall be delivered in a *Contractor Performance Assessment Report*. (CDRL A004)
- 3.1.4 Work schedule to include Compressed Work Schedule (CWS), holidays, and installation closure.
 - 3.1.4.1 Work Schedule. The Contractor shall provide the required services and staffing coverage during normal working hours. Normal working hours are usually 8.5 hours (including a 30-minute lunch break), from 0730 to 1600 each Monday through Friday (except on the legal holidays as specified in paragraph 3.1.4.1.2). Some supported Government offices have flexibility to start as early as 0600 and end as late as 1800 Monday – Friday. Core hours are 0900 to 1500 Monday through Friday.
 - 3.1.4.1.1 CWS. CWS is an alternative work schedule to the traditional 5 8.5-hour workdays (which includes a 30-minute lunch break) worked per week. Under a CWS schedule, an employee completes the following schedule within a 2-week period of time: 8 weekdays are worked at 9.5 hours each (which includes a 30-minute lunch break), 1 weekday is alternately worked at 8.5 hours (which includes a 30-minute lunch break), and 1 weekday is not worked by the employee. The result is 80 hours worked every 2 weeks, with 44 work hours 1 week and 36 work hours the other.
The Contractor may allow its employees to work a CWS schedule provided the requirements of this SOW are met. If the Contractor chooses to allow its employees to work a CWS schedule in support of this Contract, any additional costs associated with the implementation of the CWS schedule vice the standard schedule are unallowable costs under this Contract and will not be reimbursed by the Government. Additionally, the CWS schedule shall not prevent contractor employees from providing necessary staffing and services coverage as required by the Government to the COR/Alternate Contracting Officer's Representative (ACOR).
 - 3.1.4.1.2 Holidays. The Government observes the Federal holidays identified on the Office of Personnel Management (OPM) website: <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/#url=Overview>. With the exception of the events in section 3.1.4.1.3 below, the Contractor is permitted to observe Federal holidays IAW its corporate policy.
 - 3.1.4.1.3 Installation Closure. When Federal facilities are closed by the Government or when Federal employees are officially excused from work due to a holiday or a special event, severe weather, a security threat, or any other Government facility-related problem that prevents Federal personnel from working at the Government facility, contractor personnel assigned to work at that facility in support of such Federal employees shall follow their parent company's policies.
While generally contractor personnel may not perform work on-site at a Government facility without oversight from Federal personnel, in very limited circumstances, work being performed by contractor personnel may be deemed mission essential and

performance of such mission essential work may be authorized to continue at the Government facility despite the facility being otherwise closed for normal operations. The circumstances permitting work being performed by contractor personnel to be deemed mission essential are extremely limited and generally only apply to performance of efforts related to public health, safety, or matters related to national security. The cognizant Contracting Officer (KO) must concur with any determination that work being performed by contractor personnel is mission essential.

- 3.1.5 Other Direct Costs (ODCs). Operations & Maintenance (O&M); Procurement (PROC); and Research, Development, Test & Evaluation (RDT&E).
- 3.1.5.1 Travel. Travel may include general and administrative expenses, but shall not include profit. Temporary travel to other locations in support of program tasking is required. If required, temporary travel locations include the Continental United States (CONUS) locations of China Lake, CA; Coronado, CA; El Centro, CA; Lemoore, CA; Monterey, CA; Seal Beach, CA; Ventura County, CA; New London, CT; Jacksonville, FL; Key West, FL; Mayport, FL; Milton, FL; Panama City, FL; Pensacola, FL; New Orleans, LA; Meridian, MS; Portsmouth, NH; Colts Neck, NJ; Fallon, NV; Mechanicsburg, PA; Philadelphia, PA; Corpus Christi, TX; Fort Worth, TX; Kingsville, TX; Chesapeake, VA; Norfolk VA; Virginia Beach, VA; Wallops Island, VA; Yorktown, VA; Bremerton, WA; Everett, WA; Hadlock-Irondale, WA; Oak Harbor, WA as well as the Outside the Continental United States (OCONUS) locations of Australia; Bahrain; Guantanamo Bay, Cuba; Diego Garcia; Camp Lemonnier, Djibouti; Crete, Greece; Guam; Kauai, HI; Pearl Harbor, HI; Naples, Italy; Sigonella, Italy; Atsugi, Japan; Okinawa, Japan; Sasebo, Japan; Yokosuka, Japan; Chinhae, Korea; Redzikowo, Poland; Develselu, Romania; Rota, Spain; and Dubai, UAE. This list is not all inclusive as locations may change over the life of the Contract.
 - 3.1.5.1.1 The Contractor shall prepare and deliver a trip report for each individual trip, whether the mission was completed in whole or in part. (CDRL A005)
 - 3.1.5.1.2 Synchronized Pre-Deployment & Operational Tracker (SPOT). The Contractor may travel in combatant command locations. SPOT enables the validation of Contractors Authorized to Accompany the Force (CAAF) (i.e., contractor personnel associated with specific contracts and subcontracts); their authorization and eligibility for access to specific DoD facilities; and their eligibility for specific Government Furnished Support (GFS). The Contractor shall initiate a Letter of Authorization (LOA) for each prospective traveler. The Contractor shall use the SPOT link, <https://spot.dmdc.mil>, to enter and maintain data with respect to traveling/deployment personnel and to generate LOAs.
 - 3.1.5.1.3 LOA. The KO will provide the LOA for official travel OCONUS, when applicable. The LOA will identify local authorizations, privileges, etc. as specified by DoD requirements. All defense contractors working under this Contract shall carry an LOA, when applicable, with them at all times while deployed OCONUS.
- 3.1.5.2 Material. Incidental material will be required in the performance of this Contract, and all incidental material purchases shall be IAW *CTXT.242.9520, Procedures and Approvals Required Prior to Incurring Direct Material Costs*. All materials not depleted during the performance of this Contract shall become Government property upon completion of this Contract. The Contractor shall transfer all materials not depleted to the COR by way of a *DD Form 250, Material Inspection and Receiving*

Report. Material costs may include general and administrative expenses but shall not include profit/fee. (CDRL A006)

- 3.1.5.3 Field Services. Field services provide shipping and freight supplies and services, industrial support services, test services, and other related services. Shipping and freight supplies and services include shipment and delivery services, such as Federal Express, United Parcel Service, and United States Postal Service. Industrial support services are those such as fiber, crane, forklift, manlift, and rigging services. Additionally, services include equipment foundations; paint sample analysis; parts preparation; metal cutting and prep; metal finishing; paint, primer, and power; abatement; scaffolding; and welding. Test services include first article motor testing, lab testing, shock testing, Test Reports, and environmental testing. Other related services include, but are not limited to, deck repairs, motor repairs, vehicle maintenance, and Hazardous Material (HAZMAT) disposal.
- 3.1.6 Subcontractors. Provisions stated herein shall be clearly and effectively communicated to all subcontractors providing support under this Contract. All provisions of this SOW shall flow down to subcontractors providing support under this Contract.
- 3.1.7 Management of Contractor Personnel. The Government will neither supervise contractor employees nor control the method by which the Contractor performs the required tasks. Under no circumstances will the Government assign tasks to, or prepare work schedules for, individual contractor employees. The Contractor shall manage its employees and guard against any actions that are of the nature of personal services or actions that give the perception of personal services.
- 3.1.8 Transition Strategy.
 - 3.1.8.1 Transition In. The Contractor shall facilitate the accomplishment of a seamless transition of requirements to maintain the mission of the program/division with minimal impact. Transition-In services shall begin on the effective date of the award and shall be complete 30 calendar days after the effective date, at which time the Contractor shall assume full responsibility for tasking. The Contractor shall identify Points of Contact (POCs) for liaisons between the Government, the prime contractor (if applicable), and other contracted industry partners to ensure a proper and orderly transition and transfer of services and assets between the parties cited. The Contractor shall ensure minimal impact to the contract and there is no service degradation during or after transition. The Contractor shall establish an overview of the transition efforts and describe the activities to transition from incumbent to incoming Contractor (if applicable) to include a schedule with milestones by activity. The Contractor shall support the transition of all Government property and information including Commercial Off-The-Shelf (COTS) software and associated documentation in the Contractor's possession (if applicable). The Contractor shall be 80% staffed within the 30-day transition and shall deliver a Transition-In Plan in accordance with CDRL A007.
 - 3.1.8.2 Transition Out. The Contractor's overall transition-out strategy shall be built around maintaining the mission of the CI&IDS Division with minimal impact, not only in terms of timeliness of performance but also to ensure that critical data and knowledge transfer occurs. Prior to the termination or expiration of the Contract, the Contractor shall ensure an orderly transition of responsibilities, while minimizing impact to the operation. The Contractor shall

submit a Transition-Out Plan, to include the minimum elements listed below IAW CDRL A008.

- Work turnover. The Contractor shall provide a plan of action to effectively transfer tasked work that is in process at the expiration or termination of the Contract to the successor company and establish and maintain effective communication with the incoming Contractor or Government personnel for the period of transition via weekly status meetings.
 - Quality Assurance (QA). The Contractor shall provide a plan of action to ensure continuation of quality review processes during the transition period to the successor company.
 - Risk mitigation strategies. The Contractor shall provide a plan of action to mitigate contract performance risks (quality and schedule) encountered during the transition period.
 - Data/information transfer. The Contractor shall provide a plan of action for the efficient inventory and transfer of program data to the successor company.
- 3.1.9 Technical Direction Letters (TDLs). When necessary, technical direction or clarification concerning the details of specific tasks set forth in the Contract and the Task Orders (TOs) will be given through issuance of written TDLs. TDLs will not, in any manner, alter the scope of the Contract or TO. For further direction see *HTXT.242-9502, Technical Direction (Variation)* in Section H of the Contract. The Contractor shall prepare and deliver a *COR Management Report for TDLs* IAW CDRL A001.
- 3.1.10 The Contractor shall report *Organizational Conflict of Interest (OCI) Mitigation Plan* compliance and compliance status changes. (CDRL A009)
- 3.1.11 Vehicle and Equipment Operation. The Contractor shall ensure employees possess the required civilian licenses to operate the vehicles and equipment necessary to perform contract requirements IAW the SOW. Before operating any military or Government-owned and/or Government-leased vehicles or any Government-owned equipment, the contractor employee shall provide proof of a state authorized license (issued by an appropriate Governmental authority) to the KO or COR/ACOR. The state authorized license must be a driver's license issued by the state, District of Columbia, territory, or possession in which the employee is domiciled or principally employed.
- 3.1.12 Vehicles. The Contractor shall be required to transport Government-owned systems, subsystems, components, and sub-components on a daily basis. Contractor personnel may also be required to operate Government-owned and/or Government-leased vehicles in the performance of this Contract.
- 3.1.12.1 Government-provided vehicles. The Contractor shall be required, as defined at the TO level, to operate Government-owned or -leased vehicles in performance of the Contract. Government-owned or -leased vehicles that the Contractor may use includes, but is not limited to, general purpose passenger carrying vehicles, special-purpose (tactical) vehicles, and CI&IDS Division authorized vehicles. All vehicles shall be operated IAW Naval Air Systems Command (NAVAIR) and site-specific processes and requirements. In general, there is no need for specialized licenses; however, if a requirement is identified in a specific TO, there will be time allotted for individuals to obtain the necessary licensing. The Contractor shall report any damage observed on the vehicle/equipment and shall notify the COR and Government Project Lead (GPL) of any need for service or repair of the Government-owned or -leased vehicles. When operating these vehicles, the Contractor shall ensure: possession of a current and valid operator's license for all vehicles; compliance with all state, federal, and host nation

laws pertaining to operating motor vehicles; compliance with NAVAIR policies when operating a vehicle (e.g., no cell phone use, stopping at runway crossings, etc.); use of the most cost-effective means to fuel vehicles; and operation of the vehicles in a safe manner and IAW the vehicle/equipment user/operator manual.

3.1.12.2 If the Contractor is involved in an accident while operating a Government-owned or Government-leased vehicle, they shall notify the COR, Procuring Contracting Officer (PCO), and GPL with a verbal report within 24 hours and shall provide an accident report within 48 hours. (CDRL A010)

3.1.12.3 When operating any Government-owned or Government-leased vehicle, the Contractor shall be responsible for any costs associated with violations such as speeding tickets, parking tickets, reckless driving, and any damage caused to the vehicle.

3.2 Security.

3.2.1 Citizenship Requirements. Only U.S. citizens may perform under this Contract, unless waived by the Government. If the Contractor cannot find qualified U.S. citizens to perform the work, the Contractor shall submit a citizenship waiver request with justification to the Government Security Office. The waiver request should include:

- a) The individual's name, date and place of birth, position title, and current citizenship.
- b) A statement that a qualified U.S. citizen cannot be hired in sufficient time to meet the contractual requirements.
- c) A statement of the unusual expertise possessed by the applicant.
- d) A statement that access will be limited to a specific Government contract (specify contract number).
- e) A statement that the Contractor has obtained an export license for the information required to perform the Contract.

3.2.2 Investigative Requirements.

Unclassified: All contractor personnel must be eligible to perform Non-Critical Sensitive work as defined by *SECNAV M-5510.30C*. All contractor personnel are required to have a favorably adjudicated Tier-3 investigation from the OPM. The Contractor shall submit a request for personnel security investigation to the Government Security Office. The Government Security Office shall initiate the contractor employee's Electronic Questionnaire for Investigations Processing (eQIP) and shall perform a preliminary screening of the contractor employee's eQIP for suitability and derogatory information. The contractor employee shall provide all requested information pursuant to the *Privacy Act of 1974*. The Government Security Office may deny the contractor employee access to Government facilities and information and may prohibit the contractor employee from performance of sensitive duties for failure to provide requested information or when derogatory or adverse information is present on the contractor employee's eQIP. In such cases, the contractor employee may not perform on the Contract.

Classified: All contractor personnel shall maintain security clearance eligibility commensurate with the level of classification of the work performed as annotated in the Contract's *DD Form 254, Contract Security Classification Specification Form*. Contractor personnel shall require access to classified information in performance of this Contract up to and including Top Secret (TS) facility level, with a safeguarding level of Secret. The Contractor is responsible for ensuring that all personnel receive the requisite investigation and are favorably adjudicated IAW *National Industrial Security Program Operating Manual (NISPOM)* codifying 32 Code of Federal Regulation Part 117,

NISPOM Rule. Contractor employees who fail to meet security clearance requirements may not access classified information or perform sensitive duties. In such cases, the contractor employee may not perform on the Contract.

- 3.2.2.1 Contractor Personnel Labor Category Security Requirements. All personnel shall have the appropriate DoD Security Clearance Level or Interim Clearance IAW the chart below.

LABOR CATEGORY	LEVEL	DoD SECURITY CLEARANCE LEVEL (INTERIM CLEARANCE ACCEPTABLE)	REQUIRED DAYS AFTER ISSUANCE OF TOs
Budget Analysts	Journeyman	Secret	90 Calendar Days
Computer Hardware Engineers	Entry/Basic	TS	180 Calendar days
Computer Hardware Engineers	Intermediate	TS	180 Calendar Days
Computer Hardware Engineers	Advanced	TS	180 Calendar Days
Computer Network Architects	Intermediate	Secret	Upon award
Computer Network Architects	Advanced	Secret	Upon Award
Drafter/CAD Operator III (SCA)	N/A	Secret	90 Calendar days
Drafter/CAD Operator IV (SCA)	N/A	Secret	Upon award
Electrical Engineers	Junior	TS	180 Calendar days
Electrical Engineers (Key)	Senior	TS	180 Calendar days
Electro-Mechanical and Mechatronics Technologists and Technicians	Journeyman	Secret	Upon award
Electro-Mechanical and Mechatronics Technologists and Technicians	Senior	Secret	Upon award
Electronics Engineers, Except Computer	Journeyman	Secret	Upon award
Electronics Engineers, Except Computer	Senior	Secret	Upon award
Electronics Technician Maintenance I (SCA)	N/A	Secret	90 Calendar days
Electronics Technician Maintenance II (SCA)	N/A	Secret	Upon award
Electronics Technician Maintenance III (SCA)	N/A	Secret	Upon award
Engineering Technician II (SCA)	N/A	Secret	90 Calendar Days
Engineering Technician III (SCA)	N/A	Secret	Upon award
Engineering Technician IV (SCA)	N/A	Secret	Upon award
Engineering Technician V (SCA)	N/A	Secret	Upon award
Engineering Technician VI (SCA)	N/A	Secret	Upon award
General and Operations Managers (Key)	Senior	TS	180 Calendar Days
Logisticians (Key)	Journeyman	Secret	Upon award
Management Analysts	Journeyman	Secret	90 Calendar days

Material Coordinator (SCA)	N/A	Secret	90 Calendar Days
Mechanical Engineers	Junior	TS	180 Calendar Days
Mechanical Engineers	Journeyman	TS	180 Calendar Days
Mechanical Engineering Technologists and Technicians	Journeyman	TS	180 Calendar Days
Mechanical Engineering Technologists and Technicians	Senior	TS	180 Calendar Days
Network and Computer Systems Administrators	Intermediate	TS	180 Calendar Days
Network and Computer Systems Administrators	Advanced	TS	180 Calendar Days
Project Management Specialists	Journeyman	TS	180 Calendar Days
Software Developers	Entry/Basic	TS	180 Calendar Days
Software Developers	Intermediate	TS	180 Calendar Days
Software Developers	Advanced	TS	180 Calendar Days
Supply Technician (SCA)	N/A	Secret	90 Calendar Days
Technical Writer III (SCA)	N/A	Secret	90 Calendar Days
Web and Digital Interface Designers	Intermediate	Secret	90 Calendar Days

3.2.3 Common Access Card (CAC)/Public Key Infrastructure (PKI) and System Authorization Access Request (SAAR).

3.2.3.1 SAAR. All contractor personnel requiring access to Government IT systems shall have an approved *DD Form 2875, System Authorization Access Request (SAAR)* form on file and complete required *Annual Information Awareness Training*. New employees must submit their SAAR forms within 30 business days of their first day of work. SAAR forms shall be submitted to the COR, Government Technical Point of Contact (TPOC), or to the assigned Government Mission Partner Identity, Credential, and Access Management (MP ICAM) Trusted Associate (TA).

3.2.3.2 CAC/Local Badges. Contractor CACs and facility-specific identification badges will be issued by the Government to on-site contractor personnel and shall be visible at all times while personnel are at the Government site. The Contractor shall furnish all requested information required to facilitate issuance of identification badges. All CACs and identification badges issued to contractor employees shall be returned to the TA following completion of the Contract, relocation or termination of an employee, or upon request from the COR/PCO. The Government will provide the Contractor access to Government facilities, as required, for performance of tasks under this Contract.

3.2.3.3 *DD Form 254*. The Contractor shall comply with security requirements specified in the *DD Form 254* attached to this Contract. Information or data that the Contractor accesses shall be handled at the appropriate classification level. Unclassified information shall be handled in accordance with the appropriate designation (Controlled Unclassified Information (CUI); Legacy For Official Use Only (FOUO); Covered Defense Information (CDI)). Distribution is authorized to the Requiring Office's Organization and supported Activity only. Other requests for deliverables under this Contract shall be referred to the TPOC/COR of this Contract for approval.

3.2.4 Information Security. If the work is performed at the Contractor's facility, the Contractor shall implement and maintain security procedures and controls to prevent unauthorized

disclosure of classified information and CUI and to control distribution of CUI IAW *National Industrial Security Program Operating Manual (NISPOM) codifying 32 Code of Federal Regulations Part 117, NISPOM Rule and SECNAV M-5510.36B, Department of the Navy, Information Security Program*. If the work is performed at the Government's facility, the Contractor shall comply with *SOP-CIIDS-B-SEC-002, Security*.

All contractor facilities shall provide an appropriate means of storage for CUI and materials. All CUI including legacy FOUO and CDI (meeting the definition *DFARS Clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting*) generated and/or provided under this Contract shall be marked and safeguarded as specified in *DoD Instruction 5200.48, Controlled Unclassified Information (CUI)* available at

<https://www.esd.whs.mil/Portals/54/Documents/DD/issuances/dodi/520048p.PDF>.

Any product containing CDI shall be assigned a distribution statement (distribution statements B through F) using the criteria set forth in *DoDI 5230.24, Distribution Statements on Technical Documents* and have this statement displayed per *DoDI 5230.24, Enclosures 3 and 4*. Distribution is authorized to the Requiring Office's Organization and supported Activity only. Other requests for deliverables under this Contract shall be referred to the TPOC/COR of this Contract for approval.

All controlled unclassified technical information shall be appropriately identified and marked with the following distribution statement:

Distribution Statement (Insert Appropriate Letter and Authorization Title), (Insert Appropriate Reason Category) (dated – (Date of Distribution Authorization)). Other requests shall be referred to: Commander, Naval Air Systems Command, Attn: NAWCAD WOLF CI&IDS CUXS COR, 17212 Webster Field Road, B8330, St. Inigoes, MD 20684.

- 3.2.4.1 Marking. All information generated by the Contractor shall be properly marked. Classified information shall be marked IAW *DoDM 5200.01, Vol 2, Marking of Classified Information*. CUI, including legacy FOUO information generated and/or provided under this Contract, shall be marked IAW *DoDI 5200.48, Controlled Unclassified Information (CUI)*. Technical information shall also be marked with appropriate Distribution Statements and Export Control warnings IAW *DoDI 5230.24, Distribution Statements on Technical Documents* and program Security Classification Guidance.
- 3.2.4.2 Public Release. Any CUI pertaining to this Contract shall not be released for public dissemination, including posting to any social media sites such as Facebook or X (formerly known as Twitter), unless it has been approved for public release by appropriate U.S. Government authority. Proposed public releases shall be submitted for approval prior to release through the COR of this Contract.
- 3.2.4.3 Loss, compromise, and/or electronic spillage of classified information or CUI. All instances of loss, compromise, and electronic spillage of classified information or CUI shall be reported to the COR, TPOC, and Government Security Office within 72 hours of the incident occurring.
- 3.2.5 Operations Security (OPSEC). The Contractor shall develop, implement, and maintain an OPSEC program to protect controlled unclassified and classified activities, information, equipment, and material used or developed by the Contractor and any subcontractor during performance of the Contract. The Contractor shall be responsible for the

subcontractor implementation of the OPSEC requirements. This program may include Information Assurance (IA) and Communications Security (COMSEC). The OPSEC program shall be IAW *National Security Decision Directive (NSDD) 298* and at a minimum shall include:

- 1) Assignment of responsibility for OPSEC direction and implementation.
- 2) Issuance of procedures and planning guidance for the use of OPSEC techniques to identify vulnerabilities and apply applicable countermeasures.
- 3) Establishment of OPSEC education and awareness training.
- 4) Provisions for management, annual review, and evaluation of OPSEC programs.
- 5) Flow down of OPSEC requirements to subcontractors when applicable.

While performing aboard NAVAIR or NAVAIR sites, the Contractor shall comply with facility OPSEC program instructions and contribute to organization-level OPSEC efforts; include OPSEC as part of its ongoing security awareness program and take all required Agency training; be responsive to the Supporting OPSEC Manager on a non-interference basis; and protect sensitive unclassified information and activities that could compromise classified information or operations or degrade the planning and execution of operations performed by the Requirements Owner and Contractor in support of the mission. (CDRL A011)

- 3.2.6 Antiterrorism Force Protection and Emergency Management. The work performed on this Contract is not Emergency Essential IAW *OPNAVINST 3440.17A, Navy Installation Emergency Management Program* and Government Emergency Management, Antiterrorism, and/or Continuity of Operations Plans. Contractor personnel shall comply with all Government Emergency Management, Antiterrorism, and/or Continuity of Operations Plans and directives. Contractor personnel shall not report for work at Government facilities upon declaration of Force Protection Condition CHARLIE or in any event or emergency where Government officials direct curtailment of operations to “Mission Essential Only.” All contractor personnel assigned to a Government facility shall complete annual *Antiterrorism (Level One)* and *Active Shooter* training.

3.3 Detailed Support Requirements.

3.3.1 System Integration.

3.3.1 (a) (O&M) Provide support for engineering, integration, and technical tasking to perform system integration planning; maintenance of and updates to technical documentation; and the integration of hardware, software, and firmware into stand-alone and/or higher order systems, as necessary, to satisfy customer requirements in the O&M phase of the CUXS project life cycle. Applicable to SOW paragraphs 3.3.1.1 – 3.3.1.7.

3.3.1(b) (PROC) Provide support for engineering, integration, and technical tasking to perform system integration planning; maintenance of and updates to technical documentation; and the integration of hardware, software, and firmware into stand-alone and/or higher order systems, as necessary, to satisfy customer requirements during the production and modernization phases of the CUXS project life cycle. Applicable to SOW paragraphs 3.3.1.1 – 3.3.1.7.

3.3.1(c) (RDT&E) Provide support for engineering, integration, and technical tasking to perform system integration planning; maintenance of and updates to technical documentation; and the integration of hardware, software, and firmware into stand-alone and/or higher order systems, as necessary, to satisfy customer requirements in the development testing or evaluation phases of the CUXS project life cycle. Applicable to SOW paragraphs 3.3.1.1 – 3.3.1.7.

- 3.3.1.1 The Contractor shall assist in reviewing, preparing, and delivering detailed integration documentation for CUXS systems, subsystems, components, and sub-components including, but not limited to, installation control drawings, interface control drawings, system block diagrams, system cable block diagrams, system cable/wire run sheets, equipment space arrangement drawings, elevation drawings, site installation drawings, and antenna systems arrangement drawings. (CDRLs A012, A013, A014, A015)
- 3.3.1.2 The Contractor shall support the preparation and delivery of integration-related prototype fabrication drawings. (CDRL A012)
- 3.3.1.3 The Contractor shall assist with the modification and fabrication of applicable integration fixtures and tools to satisfy integration-related applications. (CDRL A012)
- 3.3.1.4 The Contractor shall assist with modifying or creating detailed electrical and mechanical assembly drawings, installation-engineering drawings, and reference and guidance drawings. (CDRL A013)
- 3.3.1.5 The Contractor shall assist with creating, modifying, and updating operator and technical instruction manuals to reflect changes to system configuration or operation IAW MIL-STD-38784B, *Department of Defense Standard Practice: General Style and Format Requirements for Technical Manuals*. (CDRL A016)
- 3.3.1.6 The Contractor shall assist by performing analyses of antenna design, characterization, and limitations and then by providing detailed analyses of antenna patterns and detailed antenna characterization reports for integration locations. (CDRL A017)
- 3.3.1.7 The Contractor shall support integrating systems, subsystems, components, and sub-components into stand-alone or higher-level assemblies IAW established project requirements. (CDRL A017)

3.3.2 Production and Fabrication.

3.3.2(a) (O&M) Provide production and fabrication of CUXS systems, subsystems, components, and sub-components to support the CI&IDS Division's oLSI[®] role in providing rapid product solutions to satisfy customer requirements in the O&M phase of the project life cycle. Applicable to SOW paragraphs 3.3.2.1 – 3.3.2.6.

3.3.2(b) (PROC) Provide production and fabrication of CUXS systems, subsystems components, and sub-components to support the CI&IDS Division's oLSI[®] role in providing rapid product solutions to satisfy customer requirements during the production and modernization phases of the project life cycle. Applicable to SOW paragraphs 3.3.2.1 – 3.3.2.6.

3.3.2(c) (RDT&E) Provide production and fabrication of CUXS systems, subsystems, components, and sub-components to support the CI&IDS Division's oLSI[®] role in providing rapid product solutions to satisfy customer requirements in the development testing or evaluation phases of the project life cycle. Applicable to SOW paragraphs 3.3.2.1 – 3.3.2.6.

3.3.2.1 The Contractor shall assist by providing Level III drawing packages, IAW references *ASME Y14.100 – 2017, Engineering Drawing Practices*; *ASME Y14.24 – 2012, Types and Applications of Engineering Drawings*; *ASME Y14.34 – 2013, Associated Lists*; *ASME Y14.35 – 2014, Revision of Engineering Drawings and Associated Documents*; and *ASME Y14.41 – 2012, Digital Product Definition Data Practices* for the production of CUXS systems, subsystems, components, and sub-components. (CDRL A014)

3.3.2.2 The Contractor shall assist by participating in the initiation, technical review, cost impact estimation, resolution, and incorporation of Engineering Change Orders (ECOs) IAW *SWP4K200T-001, CI&IDS Division Engineering and Design Packages*. (CDRL A014)

3.3.2.3 The Contractor shall assist by maintaining the configuration control of drawings at all times and by issuing drawings.

3.3.2.4 The Contractor shall assist by providing subject matter expertise to internal and external vendors and machine shops for the purpose of producing or fabricating CUXS.

3.3.2.5 The Contractor shall assist by providing detailed descriptions of all production and fabrication processes and procedures in the form of a Quality Management Plan, Standard Operating Procedures (SOPs), or Work Instructions IAW the CI&IDS Quality Program. (CDRLs A018 and A019)

3.3.2.6 The Contractor shall assist with assembling, building, constructing, and fabricating systems, subsystems, components, and sub-components from lower-level subsystems, components, sub-components, or raw materials to deliver higher-level assemblies or completed products.

3.3.3 In-Service Engineering Support.

3.3.3(a) (O&M) Provide support for in-service engineering services across all CUXS systems and subsystems necessary to satisfy customer requirements during the O&M phase of the project life cycle. Applicable to SOW paragraphs 3.3.3.1 – 3.3.3.18.

3.3.3(b) (PROC) Provide support for in-service engineering services across all CUXS systems and subsystems necessary to satisfy customer requirements during the production and modernization phases of the project life cycle. Applicable to SOW paragraphs 3.3.3.1 – 3.3.3.18.

3.3.3(c) (RDT&E) Provide support for in-service engineering services across all CUXS systems and subsystems necessary to satisfy customer requirements in the development testing or evaluation phases of the project life cycle Applicable to SOW paragraphs 3.3.3.1 – 3.3.3.18.

- 3.3.3.1 The Contractor shall support documented performance and reliability metrics tied to key program performance and sustainment objectives. (CDRL A020)
- 3.3.3.2 The Contractor shall assist by providing analyses of available operational and maintenance performance data to determine design defects detracting from the equipment or systems capability to perform intended operational requirements and to meet maintainability and reliability requirements. (CDRLs A020 and A021)
- 3.3.3.3 The Contractor shall assist with providing recommended corrections or improvements for translation into detailed engineering changes. (CDRLs A022 and A023)
- 3.3.3.4 The Contractor shall support the development of engineering changes and/or alterations to provide system improvements, correct deficiencies, and improve logistic support. (CDRLs A014, A017, A024)
- 3.3.3.5 The Contractor shall assist with the development, review, and maintenance of base, shipboard, and shipyard inspection procedures. (CDRL A017)
- 3.3.3.6 The Contractor shall assist with conducting system inspections IAW Government-approved platform inspection procedures and by providing an inspection report upon completion. (CDRLs A025 and A026)
- 3.3.3.7 The Contractor shall assist the Government with the implementation and execution of system safety programs across CUXS systems and subsystems IAW *MIL-STD-882E w/change 1, Department of Defense Standard Practice: System Safety*.
- 3.3.3.8 The Contractor shall support the GPLs with the development of project-specific hazard and mishap definitions; the collection and aggregation of defects and deficiencies; and the categorization of defects and deficiencies. (CDRL A027)
- 3.3.3.9 The Contractor shall assist with the analysis of defects and deficiencies to determine their impact to safety based on the system-defined hazards. (CDRLs A021, A022, A023)
- 3.3.3.10 The Contractor shall support the documentation of safety-related defects and deficiencies. (CDRL A028)
- 3.3.3.11 The Contractor shall support the review of standards, system specifications, interface specifications, technical manuals, technical drawings, and other technical data IAW *MIL-STD-38784B, Department of Defense Standard Practice: General Style and Format Requirements for Technical Manuals*. (CDRLs A016, A017, A029, A030, A031)
- 3.3.3.12 The Contractor shall assist with producing, maintaining, and updating technical documents or technical document revisions related to the design, operation, and maintenance of CUXS systems and subsystems, upon Government approval of recommendations. (CDRLs A017, A029, A030)
- 3.3.3.13 The Contractor shall support the development, review, and revision of Reliability Centered Maintenance (RCM) including, but not limited to, Planned Maintenance

System (PMS) Maintenance Index Pages (MIPs), Maintenance Requirements Cards (MRCs), or equivalent for systems and equipment IAW *MIL-STD-3034A NOT 2, Reliability-Centered Maintenance (RCM) Process*, and maintain a library of all RCM data using the CI&IDS data repositories. (CDRL A031)

3.3.3.14 The Contractor shall support scheduled and unscheduled technical assistance for CUXS systems and subsystems. (CDRLs A022 and A023)

3.3.3.15 The Contractor shall assist by providing Field Service Representative (FSR) capability as needed to support emergency technical assistance to installations of CUXS systems and subsystems. Such locations are defined in section 3.1.5.1.

3.3.3.16 The Contractor shall assist with telephone and email support to deployed users by providing an initial response within 72 hours of receipt, as defined by location prioritization. (CDRLs A022 and A023)

3.3.3.17 The Contractor shall support on-site engineering investigations to evaluate performance of systems and/or equipment in order to determine failure modes, corrective actions, and potential improvements. (CDRLs A017, A022, A023)

3.3.3.18 The Contractor shall assist with providing technical library services for collecting, storing, retrieving, distributing, and accounting for operational, test, and simulation programs.

3.3.4 Training.

3.3.4(a) (O&M) Provide training support and training materials for CUXS systems and subsystems to provide rapid product solutions to satisfy customer requirements in the O&M phase of the project life cycle. Applicable to SOW paragraphs 3.3.4.1 – 3.3.4.4.

3.3.4(b) (PROC) Provide training support and training materials for CUXS systems and subsystems to provide rapid product solutions to satisfy customer requirements during the production and modernization phases of the project life cycle. Applicable to SOW paragraphs 3.3.4.1 – 3.3.4.4.

3.3.4(c) (RDT&E) Provide training support and training materials for CUXS systems and subsystems to provide rapid product solutions to satisfy customer requirements in the development testing or evaluation phases of the project life cycle. Applicable to SOW paragraphs 3.3.4.1 – 3.3.4.4.

3.3.4.1 The Contractor shall assist by developing and maintaining training curriculums to support the delivery of formal classroom-based training programs to include laboratory training exercises and by disseminating training materials. Training material is comprised of the knowledge, skills, and competencies required to troubleshoot, repair, and maintain new, overhauled, or modified equipment. This includes training on the nature and extent of changes and their impact on performance, operations, and maintenance for installation of new, overhauled, or modified equipment. (CDRLs A032, A033, A034)

3.3.4.2 The Contractor shall assist by scheduling classroom and laboratory training sessions and by submitting a *Training Class Completion and Class Survey Report* upon completion of each training class. (CDRL A033)

The following are examples of typical course information.

EQUIPMENT/SYSTEM	TYPE DESCRIPTION	SITE	LENGTH
NINJA	Maintenance Course	Webster Field	Up to one week
NINJA	Operator Course	Webster Field	Up to one week
SKYTRACKER Family of Systems (CORIAN, BEAM, AWAIR)	Maintenance Course	Webster Field	Up to one week
SKYTRACKER Family of Systems (CORIAN, BEAM, AWAIR)	Operator Course	Webster Field	Up to one week
Marine Air Defense Integrated System (MADIS), Light Marine Air Defense Integrated System (L-MADIS), Expeditionary Marine Air Defense Integrated System (X-MADIS)	Maintenance Course	Webster Field	Up to one week
Marine Air Defense Integrated System (MADIS, L-MADIS, X-MADIS)	Operator Course	Webster Field	Up to one week
ANDURIL Systems	Maintenance Course	Webster Field	Up to one week
ANDURIL Systems	Operator Course	Webster Field	Up to one week

3.3.4.3 The Contractor shall assist by providing and delivering inputs to the Government for the purpose of updating the Navy Training Systems Plan (NTSP) to include providing technical reviews of training material, supplemental training material development, distribution program reviews, training audits, and the delivery of “comment and recommendations” ad hoc reports. (CDRL A017)

3.3.4.4 The Contractor shall provide administrative documentation support to the Government for security escort requirements for foreign and domestic visitors attending training at WOLF.

3.3.5 Logistics Engineering.

3.3.5(a) (O&M) Provide logistics engineering support for CUXS systems and subsystems to provide rapid product solutions to satisfy customer requirements in the O&M phase of the project life cycle. Applicable to SOW paragraphs 3.3.5.1 – 3.3.5.14.

3.3.5(b) (PROC) Provide logistics engineering support for CUXS systems and subsystems to provide rapid product solutions to satisfy customer requirements in the production and modernization phases of the project life cycle. Applicable to SOW paragraphs 3.3.5.1 – 3.3.5.14.

3.3.5(c) (RDT&E) Provide logistics engineering support for CUXS systems and subsystems to provide rapid product solutions to satisfy customer requirements in the development testing or evaluation phases of the project life cycle. Applicable to SOW paragraphs 3.3.5.1 – 3.3.5.14.

3.3.5.1 The Contractor shall assist by providing design and feasibility analyses of proposed logistics elements for new, existing, and refurbished or modified systems, subsystems, components, and sub-components. (CDRLs A017 and A035)

3.3.5.2 The Contractor shall provide support by performing analyses to determine replacement components for obsolete items or other items that fall under the heading of Diminishing Manufacturing Sources and Material Shortages (DMSMS) and by providing a quarterly DMSMS obsolescence report. (CDRLs A017 and A036)

3.3.5.3 The Contractor shall assist by developing, reviewing, and providing analyses of

- maintenance and repair concepts, repair plans, reliability plans, and reliability reports. (CDRL A020)
- 3.3.5.4 The Contractor shall assist by developing recommended changes to various Provisioning Parts Lists for spare and repair parts and by supporting and testing equipment and long lead-time items based on component and system design changes. (CDRL A037)
- 3.3.5.5 The Contractor shall assist by reviewing Logistics Support Analysis (LSA) documentation and by providing subsequent recommendations to the Government IAW *GEIA-STD-0007C, Logistics Product Data*. (CDRL A035)
- 3.3.5.6 The Contractor shall provide support by reviewing, analyzing, and evaluating the effectiveness of achieved logistics operations by developing recommended engineering improvements to logistic support items and by providing a technical report demonstrating completion. (CDRL A017)
- 3.3.5.7 The Contractor shall provide support by developing, reviewing, and providing equipment handling requirements and delivery schedules for the testing and integration of systems.
- 3.3.5.8 The Contractor shall assist by maintaining and updating logistics data to support the Configuration Management (CM) program IAW *MIL-HDBK-61B, Configuration Management Guidance*.
- 3.3.5.9 The Contractor shall assist by maintaining configuration status and field change status accounting databases for currently-deployed equipment. (CDRL A038)
- 3.3.5.10 The Contractor shall assist by performing physical configuration audits to verify that the “as-built” configuration of the equipment and software conforms to the engineering documentation and by providing a report to recommend corrective actions for audit discrepancies. (CDRL A039)
- 3.3.5.11 The Contractor shall provide support by maintaining build lists for equipment and modules manufactured in-house. (CDRL A038)
- 3.3.5.12 The Contractor shall assist with the development, maintenance, and by providing updates to laboratory configurations.
- 3.3.5.13 The Contractor shall assist by developing, maintaining, and updating a Failure Reporting and Corrective Action System (FRACAS) and Failure Modes and Effects Analysis (FMEA) database. (CDRL A023)
- 3.3.5.14 The Contractor shall support the development, analysis, and by providing updates to technical documentation, including logistics and cost estimates, in support of ECP development. (CDRL A024)
- 3.3.6 Supply and material control.
- 3.3.6(a) (O&M) Provide inventory control, shipping, receiving, and material handling of Government equipment and material to satisfy customer requirements in the O&M phase of the project life cycle. Applicable to SOW paragraphs 3.3.6.1 – 3.3.6.11.
- 3.3.6(b) (PROC) Provide inventory control, shipping, receiving, and material handling of Government equipment and material to satisfy customer requirements during the production and modernization phases of the project life cycle. Applicable to SOW paragraphs 3.3.6.1 – 3.3.6.11.

3.3.6(c) (RDT&E) Provide inventory control, shipping, receiving, and material handling of Government equipment and material to satisfy customer requirements in the development testing and evaluation phases of the project life cycle. Applicable to SOW paragraphs 3.3.6.1 – 3.3.6.11.

- 3.3.6.1 The Contractor shall provide support by maintaining material control of Government assets by documenting orders, issues, and receipts supporting CUXS efforts in the approved data repository.
- 3.3.6.2 The Contractor shall assist with the preparation and delivery of Gain by Inventory and Loss by Inventory reports. (CDRL A040)
- 3.3.6.3 The Contractor shall assist by conducting and documenting a wall-to-wall inventory of all Government-owned end items and spare assemblies and all Government-owned repair and replacement parts, noting the applicable system, quantity, location, condition, and custodian of each line item at the CUXS Government Storage Facility located at WOLF, St. Inigoes, MD. (CDRL A034)
- 3.3.6.4 The Contractor shall assist by recording the shipment of items in the approved data repository for the CUXS Government Storage Facility located at WOLF, St. Inigoes, MD.
- 3.3.6.5 The Contractor shall support the inspection of all material procured through Contract ODCs received to determine condition within two business days of receipt. If the inspection determines that the material received is not correct or is damaged, the Contractor shall notify the COR or the cognizant GPL within 24 hours. (CDRL A040)
- 3.3.6.6 The Contractor shall support CUXS efforts by procuring materials and delivering an order status report monthly. All material procured should be analyzed to determine the cost benefits and the appropriate procurement avenue. (CDRLs A017 and A041)
- 3.3.6.7 The Contractor shall provide support by following all regulations regarding the handling of COMSEC materials and HAZMAT to include ensuring that contractor personnel are trained and qualified to ship, receive, handle, and document COMSEC and HAZMAT materials.
- 3.3.6.8 The Contractor shall assist by managing and documenting the storage of HAZMAT to include, but not be limited to, batteries, solder, and solder station consumables IAW *DFARS 252.223-7006*.
- 3.3.6.9 The Contractor shall assist by providing on-site support for the general operation of CUXS Government Storage Facility at WOLF, St. Inigoes, MD.
- 3.3.6.10 The Contractor shall assist by maintaining a list and schedule as well as coordinating the turn in of CUXS test equipment requiring calibration.
- 3.3.6.11 The Contractor shall assist by managing the shipment of test equipment to certified calibration service laboratories.
- 3.3.6.12 The Contractor shall assist with tracking all calibration actions and by providing a Calibration Status Report. (CDRL A042)
- 3.3.7 Testing.
- 3.3.7(a) (O&M) Provide test planning, management, execution, and reporting support for CUXS systems and subsystems to satisfy customer requirements in the O&M phase of the project life cycle. Applicable to SOW paragraphs 3.3.7.1 – 3.3.7.8.

3.3.7(b) (PROC) Provide test planning, management, execution, and reporting support for CUXS systems and subsystems to satisfy customer requirements during the production and modernization phases of the project life cycle. Applicable to SOW paragraphs 3.3.7.1 – 3.3.7.8.

3.3.7(c) (RDT&E) Provide test planning, management, execution, and reporting support for CUXS systems and subsystems to satisfy customer requirements in the development testing or evaluation phases of the project life cycle. Applicable to SOW paragraphs 3.3.7.1 – 3.3.7.8.

3.3.7.1 The Contractor shall assist with executing and supporting test events to verify and validate system development, integration, installation, upgrade, repair, troubleshooting, certification, and exercises.

3.3.7.2 The Contractor shall assist with executing and supporting test events to characterize the performance and limitations of CUXS systems and subsystems. (CDRL A017)

3.3.7.3 The Contractor shall assist by preparing and delivering test plans IAW *MIL-STD-2106A, Department of Defense Standard Practice: Development of Shipboard Industrial Test Procedures* and *SOP4K200T-020, Testing*. (CDRL A025)

3.3.7.4 The Contractor shall assist by preparing and delivering test procedures and all test outcomes, data, and results IAW *MIL-STD-2106A, Department of Defense Standard Practice: Development of Shipboard Industrial Test Procedures* and *SOP4K200T-020, Testing*. (CDRL A026)

3.3.7.5 The Contractor shall assist by preparing and delivering Requirements Verification Traceability Matrices (RVTM) IAW *SOP4K200T-020, Testing*. (CDRL A029)

3.3.7.6 The Contractor shall assist by preparing and delivering test reports IAW *MIL-STD-2106A, Department of Defense Standard Practice: Development of Shipboard Industrial Test Procedures* and *SOP4K200T-020, Testing*. (CDRL A043)

3.3.7.7 The Contractor shall assist by proposing the design and fabrication of test aids for use in testing and evaluating the specified system or equipment at specified ship and/or shore locations.

3.3.7.8 The Contractor shall assist by developing and providing techniques, design changes, or other strategies for the purpose of reducing systems or maintenance failures. (CDRL A017)

3.3.8 CUXS Operation Support.

3.3.8(a) (O&M) Provide operation services support for CUXS systems and subsystems to satisfy customer requirements in the O&M phase of the project life cycle. Applicable to SOW paragraphs 3.3.8.1 – 3.3.8.2.

3.3.8(b) (PROC) Provide operation services support for CUXS systems and subsystems to satisfy customer requirements during the production and modernization phases of the project life cycle. Applicable to SOW paragraphs 3.3.8.1 – 3.3.8.2.

3.3.8(c) (RDT&E) Provide operation services support for CUXS systems and subsystems to satisfy customer requirements in the development testing or evaluation phases of the project life cycle. Applicable to SOW paragraphs 3.3.8.1 – 3.3.8.2.

3.3.7.9 The Contractor shall assist by providing operational services of CUXS for testing

purposes and/or operational use.

3.3.7.10 The Contractor shall assist by providing operational services of CUXS for fielded systems in order to provide characterization of the coverage provided by the CUXS.

3.3.9 Laboratory and Test Bed Maintenance.

3.3.9(a) (O&M) Provide laboratory and test bed maintenance, management, and support for CUXS systems and subsystems to satisfy customer requirements in the O&M phase of the project life cycle. Applicable to SOW paragraphs 3.3.9.1 – 3.3.9.10.

3.3.9(b) (PROC) Provide laboratory and test bed maintenance, management, and support for CUXS systems and subsystems to satisfy customer requirements during the production and modernization phases of the project life cycle. Applicable to SOW paragraphs 3.3.9.1 – 3.3.9.10.

3.3.9(c) (RDT&E) Provide laboratory and test bed maintenance, management, and support for CUXS systems and subsystems to satisfy customer requirements in the development testing or evaluation phases of the project life cycle. Applicable to SOW paragraphs 3.3.9.1 – 3.3.9.10.

3.3.9.1 The Contractor shall assist by identifying laboratory needs and by collaborating with the Government to develop a laboratory architecture to meet Government testing requirements. (CDRL A044)

3.3.9.2 The Contractor shall assist the Government with implementing new laboratory architectures to provide a wider testing capability for the incorporation of new systems. (CDRL A044)

3.3.9.3 The Contractor shall assist by maintaining and managing laboratory and test bed schedules that facilitate project laboratory use and that avoid scheduling conflicts between users. (CDRL A044)

3.3.9.4 The Contractor shall assist by ensuring that laboratories are properly configured with the correct hardware, software, firmware, and test equipment, as needed, for scheduled tests.

3.3.9.5 The Contractor shall assist by ensuring that changes to laboratory configurations are documented and available for inclusion into IA Risk Management Framework (RMF) reporting in order to maintain Authority to Operate (ATO) and to maintain compliance with RMF Continuous Monitoring requirements. (CDRL A017)

3.3.9.6 The Contractor shall assist by ensuring that the laboratories and test beds are kept in working order by conducting preventive and corrective maintenance.

3.3.9.7 The Contractor shall support the development of operational procedures for laboratories. (CDRLs A026 and A044)

3.3.9.8 The Contractor shall assist by recording equipment failures by maintaining a system failure log to include the laboratory name, date, and repair status of each. (CDRL A017)

3.3.9.9 The Contractor shall assist with maintaining copies of maintenance, user, operator, and technical manuals for laboratory equipment.

3.3.9.10 The Contractor shall assist by maintaining the current laboratory network to include connectivity drawings and documentation. (CDRLs A014 and A025)

3.3.10 CUXS Engineering Support.

3.3.10(a) (O&M) Provide engineering and systems engineering support for CUXS systems and subsystems to satisfy customer requirements in the O&M phase of the project life cycle. Applicable to SOW paragraphs 3.3.10.1 – 3.3.10.12.

3.3.10(b) (PROC) Provide engineering and systems engineering support for CUXS systems and subsystems to satisfy customer requirements during the production and modernization phases of the project life cycle. Applicable to SOW paragraphs 3.3.10.1 – 3.3.10.12.

3.3.10(c) (RDT&E) Provide engineering and systems engineering support for CUXS systems and subsystems to satisfy customer requirements in the development testing or evaluation phases of the project life cycle. Applicable to SOW paragraphs 3.3.10.1 – 3.3.10.12.

3.3.10.1 The Contractor shall assist the Government by performing Systems Engineering efforts for currently-fielded and future CUXS systems and subsystems to include, but not be limited to, Skytracker systems, NINJA, and Anduril.

3.3.10.2 The Contractor shall provide support by employing a Model Based System Engineering (MBSE) methodology that compliments the Government's MBSE strategy, when applicable.

3.3.10.3 The Contractor shall provide support by performing trade studies for CUXS systems and subsystems.

3.3.10.4 The Contractor shall assist the Government with refining performance requirements for CUXS systems and subsystems. (CDRL A030)

3.3.10.5 The Contractor shall support a risk management program for CUXS systems and subsystems in compliance with Government requirements.

3.3.10.6 The Contractor shall assist by performing site analysis for CUXS systems and subsystems. This site analysis includes identifying multiple location options for CUXS integration efforts, conducting site surveys of the proposed integration sites, and collecting and analyzing performance and characterization data from the site survey (A017).

3.3.10.7 The Contractor shall provide support by preparing recommendations for a Site Design Review and developing Engineering solutions for integration issues.

3.3.10.8 The Contractor shall provide support by performing characterization analysis of each CUXS system and subsystem and developing a recommendation of the optimal CUXS configuration for each site location. (CDRL A022)

3.3.10.9 The Contractor shall assist by evaluating new and altered CUXS.

3.3.10.10 The Contractor shall assist by developing tools and software to test and maintain CUXS systems and subsystems.

3.3.10.11 The Contractor shall assist the Government by performing root cause analysis of system or component failures and anomalies IAW *SOP4K200T-016, Root Cause Analysis*.

3.3.10.12 The Contractor shall assist the Government with efforts to achieve an ATO for each system.

3.3.11 Frequency Management and Spectrum Authorization.

3.3.11(a) (O&M) Provide frequency management and spectrum authorization support for CUXS systems and subsystems to satisfy customer requirements in the O&M phase of the project life cycle. Applicable to SOW paragraphs 3.3.11.1 – 3.3.11.3.

3.3.11(b) (PROC) Provide frequency management and spectrum authorization support for CUXS systems and subsystems to satisfy customer requirements during the production and modernization phases of the project life cycle. Applicable to SOW paragraphs 3.3.11.1 – 3.3.11.3.

3.3.11(c) (RDT&E) Provide frequency management and spectrum authorization support for CUXS systems and subsystems to satisfy customer requirements in the development testing or evaluation phases of the project life cycle. Applicable to SOW paragraphs 3.3.11.1 – 3.3.11.3.

3.3.11.1 The Contractor shall assist by providing frequency spectrum subject matter expertise, as it specifically applies to CUXS systems and subsystems, for the review, comment, and evaluation of Frequency Spectrum Certification.

3.3.11.2 The Contractor shall assist by completing Radio Frequency (RF) Spectrum/130i standardized forms in the format provided by the Navy Shore CUXS Program Office and/or sponsor.

3.3.11.3 The Contractor shall provide support by creating briefing materials and by delivering technical reports for technical and site requirements to include 130i Spectrum status in support of the Navy Shore CUXS Program Office. (CDRLs A017 and A045)

3.3.12 Technical Management.

3.3.12(a) (O&M) Provide technical management support for CUXS systems and subsystems to support the CI&IDS Division's role in providing rapid product solutions to satisfy customer requirements in the O&M phase of the project life cycle. Applicable to SOW paragraphs 3.3.12.1 – 3.3.12.6.

3.3.12(b) (PROC) Provide technical management support for CUXS systems and subsystems to support the CI&IDS Division's role in providing rapid product solutions to satisfy customer requirements during the production and modernization phases of the project life cycle. Applicable to SOW paragraphs 3.3.12.1 – 3.3.12.6.

3.3.12(c) (RDT&E) Provide technical management support for CUXS systems and subsystems to satisfy customer requirements in the development testing or evaluation phases of the project life cycle. Applicable to SOW paragraphs 3.3.12.1 – 3.3.12.6.

3.3.12.1 The Contractor shall assist by preparing inputs for drafting and delivering program plans and Plan of Objectives Actions and Milestones (POA&Ms) IAW *MIL-STD-881F, Department of Defense Standard Practice: Work Breakdown Structures for Defense Materiel Items*.

3.3.12.2 The Contractor shall assist by analyzing program cost and schedule performance and determining the effect of current performance as it relates to the overall program schedule and resource requirements IAW *MIL-STD-881F, Department of Defense Standard Practice: Work Breakdown Structures for Defense Materiel Items*.

3.3.12.3 The Contractor shall assist by translating technical requirements and program constraints into inputs for technical documentation.

- 3.3.12.4 The Contractor shall provide support by attending and/or briefing meetings/conferences with Government personnel to gather information to support program/project requirements. (CDRLs A017 and A045)
- 3.3.12.5 The Contractor shall assist by tracking and reporting action items resulting from meetings, trainings, and other activity requests and by preparing and delivering technical reports. (CDRL A017)
- 3.3.12.6 The Contractor shall assist by providing technical support for currently-procured CUXS systems and subsystems.

3.4 Personnel Qualifications.

The following defines the minimum education and experience for each non-SCA labor category and further describes the function of each labor category. The Contractor shall be responsible for employing personnel having at least the minimum level of education and experience as stated herein. All personnel identified in paragraph 3.2.2.1 must have the minimum security clearance indicated. The Government may review the qualifications of any contractor employee during contract performance.

3.4.1 Key Personnel.

Key personnel are those who will be performing in the key labor categories as specified for applicable labor categories below. All other labor categories and Full Time Equivalent (FTE) employees (defined as 1,920 hours) are considered non-key. Key personnel are subject to the substitution restrictions within *CTXT.237-9501, Additional or Substitution of Key Personnel (Services)*.

KEY LABOR CATEGORY	LEVEL	BUREAU OF LABOR STATISTICS (BLS) STANDARD OCCUPATIONAL CLASSIFICATION (SOC) CODE	NUMBER OF PERSONNEL REQUIRED
Electrical Engineers	Senior	17-2071	One
General and Operations Managers	Senior	11-1021	One
Logisticians	Journeyman	13-1081	One

3.4.2 Definitions.

- 3.4.2.1 “Years of experience” shall mean full, productive years of experience. Years of experience must be within the last five years.
- 3.4.2.2 “Productive years” shall mean 52 weeks of work reduced by reasonable amounts of time for holidays, annual, and sick leave.
- 3.4.2.3 “Part-time” shall mean if participation was part-time or if less than one-half of the standard work week was spent performing qualifying functions. The actual time spent performing qualifying functions may be accumulated to arrive at full years of experience.
- 3.4.2.4 “College degree” shall mean all degrees shall be obtained from an accredited college or university as recognized by the U.S. Department of Education (ED). This includes Associate of Arts (A.A.), Associate of Science (A.S.), Bachelor of Arts (B.A.), Bachelor of Science (B.S.), Master of Arts (M.A.), Master of Science (M.S.), and/or Doctorate (Ph.D.) degrees.

- 3.4.2.5 “Degree major” shall mean the specific major field required, which will be noted under the applicable labor category.
- 3.4.2.6 “Engineering or engineering discipline,” when used in relation to educational or work experience requirements, shall mean a degree in the fields of aerospace, civil, computer, electrical, electronics, industrial, information systems, interdisciplinary, mechanical, nuclear, software, and systems and IAW U.S. Office of Personnel Management (OPM) General Schedule Qualification Standards for Professional Engineering Positions Occupational Series 0800. (Attachment 7)
- 3.4.2.7 “Technical discipline,” when used in relation to educational or work experience requirements, shall mean a degree in the fields of computer science, computer engineering, IT, physics, or mathematics.
- 3.4.2.8 “Business or business discipline,” when used in relation to educational or work experience requirements, shall mean a degree in the fields of business, accounting, management, economics, marketing, or other business field.
- 3.4.2.9 “Computer science or IT discipline,” when used in relation to educational or work experience requirements, shall mean a degree in the fields of information or computer science, computer engineering, software engineering, network engineering, information systems, cybersecurity, or management information systems technology.
- 3.4.2.10 “Technical certification training” shall mean the specified certification training noted under the applicable labor category.
- 3.4.3 Professional employee experience and education level definitions.
- 3.4.3.1 Junior. A junior person within a labor category has less than three years of experience and a bachelor’s degree or qualifying substitution, if identified. A junior person is responsible for assisting more senior positions and/or performing functional duties under the oversight of more senior positions.
- 3.4.3.2 Journeyman. A journeyman person within a labor category has three or more years of experience and a bachelor’s degree or qualifying substitution, if identified. A journeyman person typically performs all functional duties independently.
- 3.4.3.3 Senior. A senior person within a labor category has more than eight years of experience and a master’s degree. A senior person typically works on high-visibility or mission critical aspects of a given program and performs all functional duties independently. A senior person may oversee the efforts of less senior staff and/or be responsible for the efforts of all staff assigned to a specific job.

3.4.4 Qualification Substitution Chart.

Except the labor categories noted in SOW paragraph 3.4.8, the following standard qualifications substitution chart provides allowable standard experience/education substitutions.

Bachelor’s Degree	Associates degree plus four years of additional work experience may be substituted for a bachelor’s degree	Six years of additional work experience may be substituted for a bachelor’s degree
Master’s Degree	Bachelor’s degree plus four years of additional work experience may be substituted for a master’s degree	

- 3.4.5 Labor Qualifications. The following lists the minimum labor category education, experience requirements, and the functional descriptions for each labor category.

BLS SOC LABOR CATEGORY DESCRIPTION	LEVEL	BLS SOC CODE	SPECIFIC TECHNICAL CERTIFICATION TRAINING, PROFESSIONAL CERTIFICATION, AND EDUCATION REQUIREMENTS	TELEWORK ELIGIBILITY
Budget Analysts	Journeyman	13-2031	Bachelor's degree in Business or a Business Discipline or qualifying substitution	Situational Telework
Computer Hardware Engineers	Entry/Basic	17-2061	See references in 3.4.6 and 3.4.7	Situational Telework
Computer Hardware Engineers	Intermediate	17-2061	See references in 3.4.6 and 3.4.7	Situational Telework
Computer Hardware Engineers	Advanced	17-2061	See references in 3.4.6 and 3.4.7	Situational Telework
Computer Network Architects	Intermediate	15-1241	See references in 3.4.6 and 3.4.7	Situational Telework
Computer Network Architects	Advanced	15-1241	See references in 3.4.6 and 3.4.7	Situational Telework
Electrical Engineers	Junior	17-2071	Bachelor's degree in Engineering or an Engineering Discipline or a qualifying substitution	Situational Telework
Electrical Engineers (Key)	Senior	17-2071	Master's degree in Engineering or an Engineering Discipline or qualifying substitution	Situational Telework
Electro-Mechanical and Mechatronics Technologists and Technicians	Journeyman	17-3024	Bachelor's degree in a Technical Discipline or Engineering or an Engineering Discipline or qualifying substitution	Situational Telework
Electro-Mechanical and Mechatronics Technologists and Technicians	Senior	17-3024	Master's degree in Computer Science or an IT Discipline or qualifying substitution	Situational Telework
Electronics Engineers, Except Computer	Journeyman	17-2072	Bachelor's degree in Engineering or an Engineering Discipline or qualifying substitution	Situational Telework
Electronics Engineers, Except Computer	Senior	17-2072	Master's degree in Engineering or Engineering Discipline or qualifying substitution	Situational Telework

General and Operations Managers (Key)	Senior	11-1021	Master's degree in a Business or a Business Discipline a Technical Discipline or Engineering or an Engineering Discipline or qualifying substitution	Situational Telework
Logisticians (Key)	Journeyman	13-1081	Bachelor's degree in Business or a Business Discipline or qualifying substitution	Situational Telework
Management Analysts	Journeyman	13-1111	Bachelor's degree in Business or a Business Discipline or a qualifying substitution	Situational Telework
Mechanical Engineers	Junior	17-2141	Bachelor's degree in Engineering or an Engineering Discipline or qualifying substitution	Situational Telework
Mechanical Engineers	Journeyman	17-2141	Bachelor's degree in Engineering or an Engineering Discipline or qualifying substitution	Situational Telework
Mechanical Engineering Technologists and Technicians	Journeyman	17-3027	Bachelor's degree in Engineering or an Engineering Discipline or qualifying substitution	Situational Telework
Mechanical Engineering Technologists and Technicians	Senior	17-3027	Master's degree in Engineering or an Engineering Discipline or qualifying substitution	Situational Telework
Network and Computer Systems Administrators	Intermediate	15-1244	See references in 3.4.6 and 3.4.7	Situational Telework
Network and Computer Systems Administrators	Advanced	15-1244	See references in 3.4.6 and 3.4.7	Situational Telework
Project Management Specialist	Journeyman	13-1082	Bachelor's degree in Business or a Business Discipline or Engineering or an Engineering Discipline or qualifying substitution	Situational Telework
Software Developers	Entry/Basic	15-1252	See references in 3.4.6 and 3.4.7	Situational Telework
Software Developers	Intermediate	15-1252	See references in 3.4.6 and 3.4.7	Situational Telework

Software Developers	Advanced	15-1252	See references in 3.4.6 and 3.4.7	Situational Telework
Web and Digital Interface Designers	Intermediate	15-1255	See references in 3.4.6 and 3.4.7	Situational Telework

3.4.5.1 Budget Analysts, Journeyman

Function: Performs managerial/cost accounting, budgeting, funding execution, workforce management, workload, acquisition, and financial analyses to provide efficient allocation and effective utilization of financial resources, making recommendations for improving operations, systems, and reporting.

Experience: Of the minimum three years of experience required, at least two of those years must be experience within the Department of the Navy (DON).

3.4.5.2 Electrical Engineers, Junior

Function: Performs tasks under the guidance and supervision of senior engineers and managers and has demonstrated knowledge in area of engineering expertise. Applies and integrates engineering principles to investigate, analyze, plan, design, develop, implement, test, or evaluate military CUXS systems, subsystems, lab tools, and test tools. Reviews and prepares engineering and technical analyses, reports, change proposals, and other technical documentation. Applies engineering experience to perform functions such as system integration, CM, QA testing, or acquisition and resource management.

Experience: No specific field experience required other than what is identified in the function description above.

3.4.5.3 Electrical Engineers, Senior (Key)

Function: Performs tasks independently and has demonstrated knowledge in area of engineering expertise. Applies and integrates engineering principles to investigate, analyze, plan, design, develop, implement, test, or evaluate equivalent RF military systems, subsystems, lab tools, and test tools. Reviews and prepares engineering and technical analyses, reports, change proposals, and other technical documentation. Applies engineering experience to perform functions such as system integration, CM, QA testing, or acquisition and resource management. Analyzes, designs, develops, implements, tests, or evaluates software, components, or systems related to engineering or functional requirements of equivalent RF military systems and associated support systems or management information systems. Leads the execution of complex tasks.

Experience: No specific field experience required other than what is identified in the function description above.

3.4.5.4 Electro-Mechanical and Mechatronics Technologists and Technicians, Journeyman

Function: Performs tasks under the guidance and supervision of senior engineers and managers. Will operate, test, maintain, or adjust uncrewed, automated, servo-mechanical, or electromechanical equipment. May assist engineers in testing and designing equipment as it pertains to the CUXS mission.

Experience: Of the minimum three years of experience required, at least two of those years must be experience with CUXS systems and subsystems.

3.4.5.5 Electro-Mechanical and Mechatronics Technologists and Technicians, Senior
Function: Performs tasks with little or no guidance and has demonstrated knowledge and skill. Will operate, test, maintain, or adjust uncrewed, automated, servo-mechanical, or electromechanical equipment. May assist engineers in testing and designing equipment as it pertains to the CUXS mission.

Experience: Of the minimum eight years of experience required, at least six of those years must be experience with software installation/configuration and at least three years must be with CUXS systems and subsystems. Experience for these separate requirements may be obtained concurrently.

3.4.5.6 Electronics Engineers, Except Computer, Journeyman
Function: Research, design, develop, or test electronic components and systems for commercial, industrial, military, or scientific use employing knowledge of electronic theory and materials properties. Design electronic circuits and components for use in fields such as telecommunications, aerospace guidance and propulsion control, acoustics, or instruments and controls.

Experience: No specific field experience required other than what is identified in the function description above.

3.4.5.7 Electronics Engineers, Except Computer, Senior
Function: Research, design, develop, or test electronic components and systems for commercial, industrial, military, or scientific use employing knowledge of electronic theory and materials properties. Design electronic circuits and components for use in fields such as telecommunications, aerospace guidance and propulsion control, acoustics, or instruments and controls.

Experience: No specific field experience required other than what is identified in the function description above.

3.4.5.8 General and Operations Managers, Senior (Key)
Function: Plan, direct, or coordinate the operations of public or private sector organizations, overseeing multiple departments or locations. Duties and responsibilities include formulating policies, managing daily operations, and planning the use of materials and human resources that are too diverse and general in nature to be classified in any one functional area of management or administration, such as personnel, purchasing, or administrative services. This labor category may manage resources through subordinate supervisors. Act as the overall lead, manager, and administrator for the entire contracted effort. Serve as the primary interface and point of contact with the Government COR on technical and project issues. Oversee contractor execution of the contract requirements. Manage acquisition and employment of project resources.

Experience: Of the minimum eight years of required experience, all eight years must be experience in support of the DON.

3.4.5.9 Logisticians, Journeyman (Key)

Function: Performs various tasks related to the development, operation, evaluation, and improvement of CUXS supportability and/or maintainability programs and information systems. Works on logistics and maintainability programs and with logistics and maintenance control organizations on issues such as technical evaluation and identification of CUXS system logistics requirements and resources; the development of logistics support and maintainability programs or plans; systems acquisition requirements analysis; budgetary or financial analysis and control; life cycle cost analysis and control; CUXS hardware and software standardization and compatibility; Integrated Logistics Support (ILS)/Reliability & Maintainability (R&M) program test and evaluation planning and execution; and ILS/R&M program management analysis. Collects, compiles, analyzes, investigates, researches, or applies logistics, maintenance, acquisition, or financial data and information. Develops, modifies, prepares, or validates documentation in relation to automated logistics reporting systems, maintenance data reporting systems, and management information systems.

Experience: No specific field experience required other than what is identified in the function description above.

3.4.5.10 Management Analysts, Journeyman

Function: Applies analytic techniques in the evaluation of program/project objectives. Analyzes requirements, status, budget, and schedules. Performs management, technical, or business case analyses. Collects, completes, organizes, and interprets data relating to aircraft/weapon/project acquisition and product programs. Tracks program/project status and schedules. Applies Government-instituted processes for documentation, change control management, and data management to include analysis of cost, schedule, and performance of technical U.S. Government programs.

Experience: No specific field experience required other than what is identified in the function description above.

3.4.5.11 Mechanical Engineers, Junior

Function: Assists senior level engineers and managers in performing tasks. Will perform engineering duties in planning and designing tools, engines, machines, and other mechanically-functioning equipment. Oversees installation, operation, maintenance, and repair of equipment.

Experience: No specific field experience required other than what is identified in the function description above.

3.4.5.12 Mechanical Engineers, Journeyman

Function: Performs tasks under the guidance and supervision of senior engineers and managers. Will perform engineering duties in planning and designing tools, engines, machines, and other mechanically-functioning equipment. Oversees installation, operation, maintenance, and repair of equipment.

Experience: Of the minimum three years of experience required, at least two years must be working with CUXS systems and subsystems and/or equivalent RF systems and subsystems.

3.4.5.13 Mechanical Engineering Technologists and Technicians, Journeyman

Function: Performs tasks under the guidance and supervision of senior engineers and managers. Will apply theory and principles of mechanical engineering to modify, develop, test, or adjust machinery and equipment under direction of engineering staff or physical scientists.

Experience: Of the minimum three years of experience required, at least two years must be working with CUXS systems and subsystems and/or equivalent RF systems and subsystems.

3.4.5.14 Mechanical Engineering Technologists and Technicians, Senior

Function: Performs tasks independently and has demonstrated knowledge and skill. Will apply theory and principles of mechanical engineering to modify, develop, test, or adjust machinery and equipment under direction of engineering staff or physical scientists.

Experience: Of the minimum eight years of experience required, at least four years must be working with CUXS systems and subsystems and/or equivalent RF systems and subsystems.

3.4.5.15 Project Management Specialists, Journeyman

Function: Performs tasks under the guidance and supervision of senior engineers and managers. Will analyze and coordinate the schedule, timeline, procurement, staffing, and budget of a product or service on a per project basis. Lead and guide the work of technical staff. May serve as a point of contact for the client or customer.

Experience: No specific field experience required other than what is identified in the function description above.

3.4.6 Cyber Security Work Force (CSWF) Designated Positions. The labor category levels for designated positions are specified as Entry/Basic, Intermediate, and Advanced IAW the following definitions; *SECNAVINST 5239.20A, Department of the Navy Cyberspace Information Technology and Cybersecurity Workforce Management and Qualification*; and CSWF IAW CI&IDS CSWF Attachment 8. Procedures surrounding the qualification of the DON Cyberspace IT/Cybersecurity Workforce are discussed in *DoD Directive 8140.01, Cyberspace Workforce Management* (or any subsequent revisions), which replaced *DoD Directive 8570.01-M* and *NIST Special Publication 800-181*.

ENTRY/BASIC	INTERMEDIATE	ADVANCED
Meets the identified CSWF Education qualification.	Meets the identified CSWF Education qualification.	Meets the identified CSWF Education qualification.
OR	OR	OR
Meets the identified CSWF Training qualification.	Meets the identified CSWF Training qualification.	Meets the identified CSWF Training qualification.
OR	OR	OR
Meets the identified CSWF Certification qualification.	Meets the identified CSWF Certification qualification.	Meets the identified CSWF Certification qualification.
AND	AND	AND
Has less than three years of experience performing work related to the labor category	Has three or more years of experience performing work related to the labor category functional	Has at least seven years of experience performing work related to the labor category

functional description OR meets the identified military equivalent On-the-Job (OTJ) Training requirement.	description OR meets the identified military equivalent OTJ Training requirement.	functional description OR meets the identified military equivalent OTJ Training requirement.
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3.4.7 CSWF Services Labor Qualifications. The following lists the minimum CSWF labor category education and experience requirements, functional descriptions if customized from the CSWF functional description for this specific Contract, and certifications required. Workforce elements are defined on the *DoD Cyber Workforce Framework* website at <https://dl.dod.cyber.mil/wp-content/uploads/dcdf/ElementsMap/story.html> and further describe the cyber workforce function of each labor category. The DoD-approved baseline certifications requirements are defined on the *DoD Cyber Exchange Public* website at <https://public.cyber.mil/wid/cwmp/dod-approved-8570-baseline-certifications>.

3.4.7.1 Computer Hardware Engineers (Entry/Basic)

Function: Assists senior level engineers and managers in performing tasks. Applies and integrates engineering principles to investigate, analyze, plan, design, develop, implement, test, or evaluate military CUXS systems, subsystems, lab tools, and test tools. Reviews and prepares engineering and technical analyses, reports, change proposals, and other technical documentation. Applies engineering experience to perform functions such as system integration, CM, QA testing, or acquisition and resource management. Analyzes, designs, develops, implements, tests, or evaluates software, components, or systems related to engineering or functional requirements of military CUXS and associated support systems, or of management information systems. Assists in the execution of complex tasks.

Work Role Identification: 632

Experience: No specific field experience required other than what is identified in the function description above.

3.4.7.2 Computer Hardware Engineers (Intermediate)

Function: Performs tasks under the guidance and supervision of senior engineers and managers and has demonstrated knowledge in area of engineering expertise. Applies and integrates engineering principles to investigate, analyze, plan, design, develop, implement, test, or evaluate military CUXS. Reviews and prepares engineering and technical analyses, reports, change proposals, and other technical documentation. Applies engineering experience to perform functions such as system integration, CM, QA testing, or acquisition and resource management. Analyzes designs, develops, implements, tests, or evaluates software, components, or systems related to engineering or functional requirements of military CUXS, and associated support systems, or of management information systems. Assists with the execution of complex tasks.

Work Role Identification: 632

Experience: Of the minimum three years of required experience, at least one year of experience must be working with CUXS systems and subsystems.

3.4.7.3 Computer Hardware Engineers (Advanced)

Function: Performs tasks independently and has demonstrated knowledge in area of engineering expertise. Applies and integrates engineering principles to investigate, analyze, plan, design, develop, implement, test, or evaluate equivalent RF military systems. Reviews and prepares engineering and technical analyses, reports, change proposals, and other technical documentation. Applies engineering experience to perform functions such as system integration, CM, QA testing, or acquisition and resource management. Analyzes, designs, develops, implements, tests, or evaluates software, components, or systems related to engineering or

functional requirements of equivalent RF military systems, and associated support systems or of management information systems. Leads the execution of complex tasks.

Work Role Identification: 632

Experience: Of the minimum seven years of required experience, at least three years of experience must be working with CUXS systems and subsystems.

3.4.7.4 Computer Network Architects (Intermediate)

Function: Performs tasks under the guidance and supervision of senior engineers and managers and has demonstrated knowledge in area of engineering expertise. Will design and implement computer and information networks, such as LANs, Wide Area Networks (WANs), intranets, extranets, and other data communications networks. Perform network modeling, analysis, and planning, including analysis of capacity needs for network infrastructures. May also design network and computer security measures. May research and recommend network and data communications hardware and software. Leads the execution of complex tasks. Works the execution of complex tasks.

Experience: Of the minimum three years of required experience, at least one year must be working with CUXS systems and subsystems.

3.4.7.5 Computer Network Architects (Advanced)

Function: Performs tasks with little or no guidance and has demonstrated knowledge in area of engineering expertise. Will design and implement computer and information networks, such as LANs, WANs, intranets, extranets, and other data communications networks. Perform network modeling, analysis, and planning, including analysis of capacity needs for network infrastructures. May also design network and computer security measures. May research and recommend network and data communications hardware and software. Leads the execution of complex tasks.

Work Role Identification: 441

Experience: Of the minimum seven years of required experience, at least three years must be working with CUXS systems and subsystems.

3.4.7.6 Network and Computer Systems Administrators (Intermediate)

Function: Performs tasks under the guidance and supervision of senior network and computer systems administrators. Installs, configures, and maintains an organization's LAN, WAN, data communications network, operating systems, and physical and virtual servers. Performs system monitoring and verifies the integrity and availability of hardware, network, and server resources and systems. Reviews system and application logs and verifies completion of scheduled jobs, including system backups. Analyzes network and server resource consumption and control user access. Installs and upgrades software and maintain software licenses. May assist in network modeling, analysis, planning, and coordination between network and data communications hardware and software.

Work Role Identification: 451

Experience: Of the minimum three years of required experience, at least one year must be working with CUXS systems and subsystems.

3.4.7.7 Network and Computer Systems Administrators (Advanced)

Function: Performs tasks with little or no guidance and has demonstrated knowledge in the areas of network and computer administration. Installs, configures, and maintains an organization's LAN, WAN, data communications network, operating systems, and physical and virtual servers. Performs system monitoring and verifies the integrity and availability of hardware, network, and server resources and systems. Reviews system and application logs and verifies completion of scheduled jobs, including system backups. Analyzes network and server resource consumption and control user access. Installs and upgrades software and maintain software licenses. May assist in network modeling, analysis, planning, and coordination between network and data communications hardware and software.

Work Role Identification: 451

Experience: Of the minimum seven years of required experience, at least three years must be working with CUXS systems and subsystems.

3.4.7.8 Software Developers (Entry/Basic)

Function: Assists senior level engineers and managers in performing tasks. Will research, design, and develop computer and network software or specialized utility programs. Analyze user needs and develop software solutions, applying principles and techniques of computer science, engineering, and mathematical analysis. Update software or enhance existing software capabilities. May work with computer hardware engineers to integrate hardware and software systems and to develop specifications and performance requirements. May maintain databases within an application area, working individually or coordinating database development as part of a team.

Work Role Identification: 621

Experience: No specific field experience required other than what is identified in the function description above.

3.4.7.9 Software Developers (Intermediate)

Function: Performs tasks under the guidance and supervision of senior engineers and managers and has demonstrated knowledge in area of engineering expertise. Will research, design, and develop computer and network software or specialized utility programs. Analyze user needs and develop software solutions, applying principles and techniques of computer science, engineering, and mathematical analysis. Update software or enhance existing software capabilities. May work with computer hardware engineers to integrate hardware and software systems and to develop specifications and performance requirements. May maintain databases within an application area, working individually or coordinating database development as part of a team.

Work Role Identification: 621

Experience: No specific field experience required other than what is identified in the function description above.

3.4.7.10 Software Developers (Advanced)

Function: Performs tasks with little or no guidance and has demonstrated knowledge in area of engineering expertise. Will research, design, and develop computer and network software or

specialized utility programs. Analyze user needs and develop software solutions, applying principles and techniques of computer science, engineering, and mathematical analysis. Update software or enhance existing software capabilities. May work with computer hardware engineers to integrate hardware and software systems and to develop specifications and performance requirements. May maintain databases within an application area, working individually or coordinating database development as part of a team. Leads the execution of complex tasks.

Work Role Identification: 621

Experience: No specific field experience required other than what is identified in the function description above.

3.4.7.11 Web and Digital Interface Designers (Intermediate)

Function: Performs tasks under the guidance and supervision of senior engineers and managers. Will design digital user interfaces or websites. Develop and test layouts, interfaces, functionality, and navigation menus to ensure compatibility and usability across browsers or devices. May use web framework applications as well as client-side code and processes. May evaluate web design following web and accessibility standards and may analyze web use metrics and optimize websites for marketability and search engine ranking. May design and test interfaces that facilitate the human-computer interaction and maximize the usability of digital devices, websites, and software with a focus on aesthetics and design. May create graphics used in websites and manage website content and links.

Work Role Identification: 621

Experience: No specific field experience required other than what is identified in the function description above.

3.4.8 SCA Categories. The following lists the SCA labor categories required for this effort. Functional descriptions of each labor category are listed in the Department of Labor (DOL) Directory of Occupations by SCA code number.

LABOR CATEGORY	SCA CODE	BLS SOC CODE	TELEWORK ELIGIBILITY
Drafter/CAD Operator III	30063	17-3019	Situational Telework
Drafter/CAD Operator IV	30064	17-3019	Situational Telework
Maintenance I, Electronics Technician	23181	17-3023	Situational Telework
Maintenance II, Electronics Technician	23182	17-3023	Situational Telework
Maintenance III, Electronics Technician	23183	17-3023	Situational Telework
Engineering Technician II	30082	17-3029	Situational Telework
Engineering Technician III	30083	17-3029	Situational Telework
Engineering Technician IV	30084	17-3029	Situational Telework
Engineering Technician V	30085	17-3029	Situational Telework
Engineering Technician VI	30086	17-3029	Situational Telework
Material Coordinator	21030	53-1047	Situational Telework
Supply Technician	01410	43-5061	Situational Telework
Technical Writer III	30463	27-3042	Situational Telework

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CTXT.204-9502 REQUIREMENTS FOR LOCAL SECURITY SYSTEM (NAVAIR)(OCT 2005)

The contractor agrees to provide locator information regarding all employees requiring a permanent badge for authorized entrance to **all installations identified/listed in Section B, Table B-1**. Entrance is authorized by this contract as a result of tasks associated with performance of the Section C - Statement of Work only. Initial information shall be provided as each individual is assigned to this contract by using the Locator Form provided as an attachment to this contract. Thereafter, quarterly reports (due at the beginning of each quarter by the fifth day of the month) will be provided with gains/losses (identification of new and replaced or added individuals) and any changes to current personnel (such as telephone number, building number and room number). A point of contact is to be named on each quarterly report for any questions/additional information needed by the Government recipient. The quarterly reports are to be addressed to **the respective location CONUS/OCONUS listed in Section B, Table B-1**. All losses are to have the permanent badges returned to **CONUS/OCONUS** location on the last day of the individual's task requirement.

CTXT.204-9505 SYSTEM AUTHORIZATION ACCESS REQUEST (SAAR) REQUIREMENTS FOR INFORMATION TECHNOLOGY (IT) (NAVAIR) (FEB 2025)

(a) Contractor personnel assigned to perform work under this contract may require access to Navy Information Technology (IT) resources (e.g., computers, laptops, personal electronic devices/personal digital assistants (PEDs/PDAs), NMCI, RDT&E networks, websites such as MyNAVAIR, and Navy Web servers requiring Common Access Card (CAC) Public Key Infrastructure (PKI)). Contractor personnel (prime, subcontractor, consultants, and temporary employees) requiring access to Navy IT resources (including those personnel who previously signed SAAR DD Form 2875) shall submit a completed System Authorization Access Request (SAAR) DD Form 2875 or latest version thereof, and have initiated the requisite background investigation (or provide proof of a current background investigation) prior to accessing any Navy IT resources. The form and instructions for processing the SAAR form are available at: https://www.esd.whs.mil/Directives/forms/dd2500_2999/DD2875/.

(b) SAAR forms will be submitted by the contractor's Facility Security Officer (FSO) via the National Help Desk Service Management (NHDSM) Service Catalog at: <https://nhdsm.navair.navy.mil>. For those contractors that do not have a FSO or that cannot access the NHDSM, or for NAVAIR organizations that have not transitioned to the NHDSM SAAR system, SAAR forms shall be submitted directly to the designated SAAR Government Sponsor or Technical Point Of Contact (TPOC). Copies of the approved SAAR forms may be obtained through the designated SAAR Government Sponsor or TPOC. Resources related to the SAAR process and step by step instructions can be found at the following link for those with access to Flank Speed: https://flankspeed.sharepoint-mil.us/sites/NAVAIR_NAWCAD_DNA/SitePages/SAAR.aspx. For additional questions or information related to the SAAR process and requirements, please contact the National Help Desk at 301-342-3104 or 1-888-292-5919.

(c) In order to maintain access to Navy IT resources, the contractor shall ensure completion of initial and annual IA/Cyber Awareness training, monitor expiration of requisite background investigations, and initiate re-investigations as required. If requested, the contractor shall provide to the designated SAAR Government Sponsor or TPOC documentation sufficient to prove that it is monitoring/tracking the SAAR requirements for its employees who are accessing Navy IT resources. For those contractor personnel not in compliance with the requirements of this text, access to Navy IT resources will be denied/revoked.

(d) The SAAR form remains valid throughout contractual performance, inclusive of performance extensions and option exercises where the contract number does not change. Contractor personnel are required to submit a new SAAR form only when they begin work on a new or different contract.

CTXT.211-9510 CONTRACTOR EMPLOYEES (NAVAIR) (MAY 2011)

(a) In all situations where contractor personnel status is not obvious, all contractor personnel are required to identify themselves to avoid creating an impression to the public, agency officials, or Congress that such contractor personnel are Government officials. This can occur during meeting attendance, through written (letter or email) correspondence or verbal discussions (in person or telephonic), when making presentations, or in other situations where their contractor status is not obvious to third parties. This list is not exhaustive. Therefore, the contractor employee(s) shall:

- (1) Not by word or deed give the impression or appearance of being a Government employee;
 - (2) Wear appropriate badges visible above the waist that identify them as contractor employees when in Government spaces, at a Government-sponsored event, or an event outside normal work spaces in support of the contract/order;
 - (3) Clearly identify themselves as contractor employees in telephone conversations and in all formal and informal written and electronic correspondence. Identification shall include the name of the company for whom they work;
 - (4) Identify themselves by name, their company name, if they are a subcontractor the name of the prime contractor their company is supporting, as well as the Government office they are supporting when participating in meetings, conferences, and other interactions in which all parties are not in daily contact with the individual contractor employee; and
 - (5) Be able to provide, when asked, the full number of the contract/order under which they are performing, and the name of the Contracting Officer's Representative.
- (b) If wearing a badge is a risk to safety and/or security, then an alternative means of identification maybe utilized if endorsed by the Contracting Officer's Representative and approved by the Contracting Officer.
- (c) The Contracting Officer will make final determination of compliance with regulations with regard to proper identification of contractor employees.

CTXT.232-9509 TRAVEL APPROVAL AND REIMBURSEMENT PROCEDURES (NAVAIR) (OCT 2013)

(a) General. Performance under this contract may require travel by Contractor personnel. If travel, domestic or overseas, is required, the Contractor is responsible for making all necessary arrangements for its personnel. These include but are not limited to: medical examinations, immunizations, passports/visas/etc., and security clearances.

(b) Travel Approval Process. Prior approval is required for all travel under this contract. Travel shall be reviewed and approved/disapproved as follows:

(1) The Contractor shall provide the **COR** a written request for authorization to travel at least 30 days in advance of the required travel date, when possible. The request should include: purpose of travel, location, travel dates, number of individuals traveling, and all estimated costs associated with the travel (e.g., lodging, meals, transportation costs, incidental expenses, etc.).

(2) The **COR** will review the travel request and provide, in writing, an approval or disapproval of the travel request to the Contractor.

(c) Travel Policy.

(1) Travel arrangements shall be planned in accordance with the Federal Travel regulations, prescribed by the General Services Administration for travel in the conterminous 48 United States, (hereinafter the FTR) and the Joint Travel Regulation, Volume 2, DoD Civilian Personnel, Appendix A, prescribed by the Department of Defense (hereinafter the JTR).

(2) The Government will reimburse the Contractor for allowable travel costs incurred by the Contractor in performance of the contract in accordance with FAR Subpart 31.2.

(3) For purposes of reimbursement of travel expenses, the Contractor's official station is defined as within 50 miles of the Contractor's regular work site. (If Contractor has more than one regular work site, the official station is defined as within 50 miles of each of its regular work sites.)

(4) The Contractors documentation for the reimbursement of travel costs (e.g., receipts) shall be governed as set forth in FAR Subpart 31.2, the FTR, and the JTR.

(5) Car Rental for a team on temporary duty (TDY) at one site will be allowed provided that only one car is rented for every four (4) members of the TDY team. In the event that less than four (4) persons comprise the TDY team, car rental will be allowed if necessary to complete the mission required.

(6) Whenever work assignments require TDY aboard a Government ship, the Contractor will be reimbursed at the per diem identified in the JTR.

CTXT.237-9501 ADDITION OR SUBSTITUTION OF KEY PERSONNEL (SERVICES) (NAVAIR) (FEB 2024)

(a) A requirement of this contract is to maintain stability of personnel proposed in order to provide quality services. The contractor agrees to assign only those key personnel whose resumes were submitted and approved, and who are necessary to fulfill the requirements of the effort. The contractor agrees to assign to any effort requiring non-key personnel only personnel who meet or exceed the applicable labor category descriptions. No substitution or addition of personnel shall be made except in accordance with this clause.

(b) If personnel for whatever reason become unavailable for work under the contract for a continuous period exceeding thirty (30) working days, or are expected to devote substantially less effort to the work than indicated in the proposal, the contractor shall propose a substitution to such personnel, in accordance with paragraph (d) below.

(c) The contractor agrees that during the term of the contract, no key personnel substitutions or additions will be made unless necessitated by compelling reasons including, but not limited to: an individual's illness, death, termination of employment, declining an offer of employment (for those individuals proposed as contingent hires), or family friendly leave. In such an event, the contractor must promptly provide the information required by paragraph (d) below to the Contracting Officer for approval prior to the substitution or addition of key personnel.

(d) All proposed substitutions shall be submitted, in writing, to the Contracting Officer at least fifteen (15) days (thirty (30) days if a security clearance must be obtained) prior to the proposed substitution. Each request shall provide a detailed explanation of the circumstances necessitating the proposed substitution, a complete resume for the proposed substitute, information regarding the full financial impact of the change, and any other information required by the Contracting Officer to approve or disapprove the proposed substitution. All proposed key personnel substitutes (no matter when they are proposed during the performance period) shall have qualifications that at a minimum meet contract requirements for the applicable labor category, except that substitutes for a key personnel position that exceed the minimum contract requirement for the applicable labor category shall also exceed the minimum qualification requirements for the applicable labor category.

(e) In the event a requirement to increase the specified level of effort for a designated labor category, but not the overall level of effort of the contract occurs, the offeror shall submit to the Contracting Officer a written request for approval to add personnel to the designated labor category. The information required is the same as that required in paragraph (d) above.

(f) The Contracting Officer shall evaluate requests for substitution and addition of personnel and promptly notify the offeror, in writing, of whether the request is approved or disapproved.

(g) If the Contracting Officer determines that suitable and timely replacement of personnel who have been reassigned, terminated or have otherwise become unavailable to perform under the contract is not reasonably forthcoming or that the resultant reduction of productive effort would impair the successful completion of the contract or the task order, the contract may be terminated by the Contracting Officer for default or for the convenience of the Government, as appropriate. Alternatively, at the Contracting Officer's discretion, if the Contracting Officer finds the contractor to be at fault for the condition, he may equitably adjust (downward) the contract price or fixed fee to compensate the Government for any delay, loss or damage as a result of the contractor's action.

(h) Noncompliance with the provisions of this clause will be considered a material breach of the terms and conditions of the contract for which the Government may seek any and all appropriate remedies including Termination for Default pursuant to FAR Clause 52.249-6, Alt IV, "Termination (Cost-Reimbursement)".

(a) General.

(1) These procedures apply to Other Direct Cost (ODC) Contract Line Item Numbers (CLINs)

(2) Any material procured as a direct cost under this contract by the Contractor is subject to the requirements of the Federal Acquisition Regulation (FAR), the Defense Federal Acquisition Regulation Supplement (DFARS), the Navy Marine Corps Acquisition Regulation Supplement (NMCARS), and any other Department of Defense or Department of the Navy policies and procedures.

(3) Performance of this contract may require the contractor to procure material. If material incidental to performance of this service contract is required and will be a direct cost consistent with the contractor's disclosure statement, the Contractor shall follow the procedures outlined herein before making a purchase. No material item with a unit cost greater than the Simplified Acquisition Threshold (SAT) (FAR 2.101) may be procured under this contract. No single procurement with a total value, i.e., the total sum of all items, greater than the Truthful Cost or Pricing Data Act threshold (FAR 15.403-4(a)(1)) may be procured under this contract. Procurements shall not be split to circumvent these thresholds or the approval thresholds set forth in paragraph (b) below. Procurement of material that is not incidental to and necessary for contract performance, or approved in accordance with these procedures, may be determined to be an unallowable cost pursuant to FAR Part 31 and DFARS Part 231.

(b) Procedures. All material procurements to be directly charged to ODC CLIN(s) of this contract are subject to the following review and/or approval procedures:

(1) Approval Authorities.

<u>Notification Only (No Approval Required)</u>	<u>Contracting Officer Representative (COR) Approval</u>	<u>COR and Contracting Officer Approval</u>
Items listed in para. (c), excluding sole source procurements and software licenses, with a <u>total cost of less than or equal to the micro-purchase threshold (FAR 2.101)</u>	Items listed in para. (c), excluding sole source procurements and software licenses, with a <u>total cost greater than the micro-purchase threshold (FAR 2.101) but less than or equal to the SAT (FAR 2.101)</u>	Items listed in para. (c) with a <u>total cost greater than the SAT (FAR 2.101)</u>
		Items listed in para. (c) procured on a <u>sole source basis (regardless of dollar value)</u>
		Software licenses (regardless of dollar value)
		Any item not listed in para. (c) (regardless of dollar value)

(2) Contractor Requests and Notifications. For all material procurements subject to these procedures, the Contractor shall submit a material procurement request (or notification, for procurements that do not require approval) that includes the following: 1) a list of the material items to be procured, 2) an explanation of the need for the material, 3) a listing of quotes received, 4) the reason for the selected source, and 5) the determination of price reasonableness. If the procurement is sole source to a particular supplier, the request shall also include the rationale for limiting the procurement to that supplier. When approval is required per paragraph (b)(1), the Contractor shall not proceed with the procurement until receiving approval. All requests requiring approval shall be submitted to the COR for disposition. For requests within the COR approval threshold, the COR will provide written approval or disapproval to the Contractor. For requests within the Contracting Officer's approval threshold, the COR will forward the request with a recommendation of approval or disapproval to the Contracting Officer. The Contracting Officer will provide written approval or disapproval to the COR and the Contractor. When approval is not required, the Contractor shall provide an email notification to the COR containing the required content prior to procuring the material.

(3) Urgent Requirements. For direct material procurements that require COR approval only, urgent requests may be verbally requested and verbally approved. A request is considered urgent when it is necessary for the Contractor to procure material to immediately respond to a requirement. If the COR concurs with the urgent nature

of the request, verbal approval of the request will be provided to the Contractor. All urgent requests verbally approved by the COR shall be followed up with a Contractor email request to the COR within one business day of the verbal approval, containing the minimum content set forth in paragraph (b)(2) above and referencing the date of the verbal approval by the COR. The COR shall thereafter respond via email to provide written confirmation of the verbal approval.

(c) List of Applicable Materials:

Electronic Components and Material:

Adapters, Amplifiers, Antenna Mast, Antennas, Backshells, Batteries, Bridge, Cables, Cable Assemblies, Capacitors, Circuit Boards, Circuit Breakers, Charging Devices, Chassis, Chemicals, Cleaners, Communications Special Enclosures, Communicator Switch, Connectors, Converters, Cryptographic Devices, Crystals, Data Controllers, Desktop Computers, Diodes, Diplexers, Eliminators, Environmental Control Units, Fiber Optic Equipment, Fiber Optic Installation Kits and consumables, Fuses, Generators, Global Positions System, Handsets, Headsets, Hubs, Integrated Circuit Circuits, Inductors, Inserts, Interface Cards, Keyboards, Lamps/Bulbs, Laptop Computers, Microphones, Modems, Modules, Monitors, Mouses, Multi-Cable Transits, Multiplexers, Patch Cords, Power Distribution Unit, Power Supplies, Printers, Radios, Radio Frequency Adapters, Relays, Repair Material, Resistors, RF Adapters, Routers, Secure Telephones, Secure Voice Adapters, Semi-Conductor Devices, Servers, Speakers, Splices, Switches, Tablets, Telephones, Terminals, Test Equipment, Transformers, Transistors, Uninterruptible Power Supply (UPS), Video Equipment, Waveguide, and Wires.

Hardware:

Bolts, Boxes, Brackets, Braces, Brads, Cases, Conduits, Electrical Boxes, End Fittings, Face Plates, Fiberglass, Filters, Foam Inserts, Handles, Heat Shrink, Hinges, Interior/Exterior Mounts, Intermediate Distribution Frames, Metal (Various Gauge), Nuts, Patch Panels, Plastic, Power Distribution Panels, Racks, Rack Assembly, Rivnuts, Rivets, Screws, Shelters (Hard & Soft), Shock Mounts, Slides, Storage Containers, Tents, Tool Kits, Trailer and Vehicle Modification Equipment, Washers, and Wood.

Software:

Software Licenses (e.g. Word Processors, Spreadsheets, Database Managers, Utilities, Operating Systems, Graphics and Presentation Packages, Mail Systems, Network Handlers, Communications Packages, Media Converters, Customized Software, etc.).

Per DFARS 208.7402, if the required commercial software is available from the Department of Defense (DoD) inventory under an Enterprise Software Agreement (ESA), the software shall be purchased in accordance with the DoD Enterprise Software Initiative (ESI); unless a waiver is approved in accordance with DFARS Procedures, Guidance and Information (PGI) 208.7401.

Miscellaneous Material:

Binders, Data Storage Medium, De-Greaser, Deliverable/Documentation Consumables, Dividers, Electronic Components Cleansing Material, Electronic Repair Services, Mylar, Paint, Shipping/Freight Supplies/Storage/Services, Solder, Vu-graph Supplies and other material costs in accordance with the solicitation.

In addition to COR and/or KO approvals listed above, IT resources may not be procured unless the approvals required by DoD purchasing procedures have been obtained. IT resources are defined as any equipment and/or interconnected system and/or subsystem of equipment used in the automatic acquisition, storage, manipulation,

management, movement, control, display, switching, interchange, transmission, or reception of data information. IT resources include personal computers, laptops, printers, software, servers, hubs, routers, phones, facsimile machines, and any related maintenance, telecommunications, training, or other support services. To obtain IT approval, the Contractor shall prepare an IT Request within the Navy Information Dominance Approval System (NAV-IDAS) with a complete list of items to be obtained. The IT approval shall be provided to the COR prior to procurement.

Approval shall be in accordance with the dollar thresholds listed above. Requests for approval shall include a list of the material to be procured, an explanation of the need for the material, IT approval (if applicable), a listing of quotes received, the reason for the selected source, and the determination of price reasonableness. If the procurement is sole sourced to a particular supplier, include the rationale for limiting the procurement to that supplier.

Section D - Packaging and Marking

DESCRIPTION

As defined at the task order level:

Items 0001 – 0004 – Except as otherwise specified Packaging, Packing, and Marking are not applicable to these items.

Items 0006 – 0009 - Except as otherwise specified, Packaging, Packing and Markings (if applicable) shall conform to prevailing industry standards for the type of commodity purchased under this contract and shall in accordance with best commercial practices and the clauses herein (if applicable).

Items 0005 and 0010 –Except as otherwise specified, the data to be furnished hereunder shall be Packaged, Packed and Marked in accordance with Exhibit A and the clauses herein.

CLAUSES INCORPORATED BY FULL TEXT**DTXT.247-9502 UNPACKING INSTRUCTIONS: COMPLEX OR DELICATE EQUIPMENT (NAVAIR) (OCT 1994)**

(a) Location on Container. When practical, one set of the unpacking instructions will be placed in a heavy water-proof envelope prominently marked "UNPACKING INFORMATION" and firmly affixed to the outside of the shipping container in a protected location, preferably between the cleats on the end of the container adjacent to the identification marking. If the instructions cover a set of equipment packed in multiple containers, the instructions will be affixed to the number one container of the set. When the unpacking instructions are too voluminous to be affixed to the exterior of the container, they will be placed inside and directions for locating them will be provided in the envelope marked "UNPACKING INFORMATION".

(b) Marking Containers. When unpacking instructions are provided, shipping containers will be stenciled "CAUTION - THIS EQUIPMENT MAY BE SERIOUSLY DAMAGED UNLESS UNPACKING INSTRUCTIONS ARE CAREFULLY FOLLOWED. UNPACKING INSTRUCTIONS ARE LOCATED (state where located)." When practical, this marking will be applied adjacent to the identification marking on the side of the container.

(c) Marking. All shipping containers will be marked in accordance with commercial standards.

DTXT.247-9507 PACKAGING AND MARKING OF REPORTS (NAVAIR)(OCT 2021)

(a) All unclassified data shall be prepared for shipment in accordance with best commercial practice. Classified reports, data and documentation, if any, shall be prepared for shipment in accordance with the National Industry Security Program Operating Manual, 32 CFR Part 117.

(b) The contractor shall prominently display on the cover of each report the following information:

- (1) Name and business address of contractor.
- (2) Contract Number/Delivery/Task order number.
- (3) Contract/Delivery/Task order dollar amount.
- (4) Whether the contract was competitively or non-competitively awarded.
- (5) Name of sponsoring individual.
- (6) Name and address of requiring activity.

DTXT.247-9508 PROHIBITION AND LIMITATIONS FOR PACKAGING MATERIALS (NAVAIR) (AUG 2019)

The use of loose fill materials, asbestos, excelsior, newspaper and shredded paper (all types) are prohibited. In addition, all Wood Packaging Materials (WPM) shall be heat treated or chemically treated in accordance with the requirements of the International Standards for Phytosanitary Measures (ISPM) 15:2009, "Regulation of Wood Packaging Material in International Trade."

**DTXT.247-9510 PRESERVATION, PACKAGING, PACKING AND MARKING FOR FOREIGN
MILITARY SALES (FMS) REQUIREMENTS (NAVAIR) (OCT 2005)**

(a) Unless specified elsewhere in the contract, packing and packaging shall comply with MIL-STD-129. Packing and packaging materials shall provide protection from abuse during handling and from environmental, magnetic, and electrical damage during handling and subsequent future storage, possibly under less than desirable conditions.

(b) Marking: All unit and exterior containers/packs shall as a minimum be marked as follows:

- (1) FMS Case Number.
- (2) Part Number (with CAGE Code).
- (3) For - the organization/address the material is shipped to.
- (4) The applicable MILSTRIP number (identified separately for each line item of the contract/delivery order)
- (5) Project Code number.
- (6) Project Directive Line Item (PDLI) Number.
- (7) Requisition Serial Number (RSN).
- (8) Quantity.
- (9) From - the contractor's address shipped from.
- (10) Ship to - the shipping address provided in the contract.
- (11) Transportation Priority
- (12) Required Delivery Date

(c) The contractor shall affix labels to the outside of each external pack warning all handlers that fragile, delicate, etc., equipment is contained within and to warn against particular improper handling and storage procedures/conditions as may be applicable to the item(s) ordered.

DTXT.247-9514 TECHNICAL DATA PACKING INSTRUCTIONS (NAVAIR) (FEB 2025)

Technical Data and Information produced or handled in support of this contract shall be packed and packaged for domestic shipment in accordance with best commercial practices. The package or envelope should be clearly marked with any special markings specified in this contract (or delivery/task order), e.g., Contract Number, CLIN, Device No., and document title must be on the outside of the package. Classified reports, data and documentation, if applicable, shall be prepared for shipment in accordance with National Industrial Security Program Operating Manual (NISPOM) codifying 32 Code of Federal Regulation Part 117, NIPSOM Rule.

Section E - Inspection and Acceptance

DESCRIPTION

Items 0001-0004 and 0006-0009 - Inspection and acceptance IAW ETXT.246-9512 of the Services, Travel, Material, Field Services, and delivered Contractor Acquired Property called for hereunder shall be performed in accordance with the SOW, at the destination approved by the cognizant Contracting Officer Representative (COR).

Item 0005 - The data to be furnished hereunder shall be inspected and accepted IAW the NAVAIR clause ETXT.246-9514 and Exhibit A, Contract Data Requirements List (CDRL).

INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

CLIN	INSPECT AT	INSPECT BY	ACCEPT AT	ACCEPT BY
0001	N/A	N/A	N/A	Government
0002	N/A	N/A	N/A	Government
0003	N/A	N/A	N/A	Government
0004	N/A	N/A	N/A	Government
0005	N/A	N/A	N/A	Government
0006	N/A	N/A	N/A	Government
0007	N/A	N/A	N/A	Government
0008	N/A	N/A	N/A	Government
0009	N/A	N/A	N/A	Government
0010	N/A	N/A	N/A	Government

CLAUSES INCORPORATED BY REFERENCE

52.246-3	Inspection Of Supplies Cost-Reimbursement	MAY 2001
52.246-5	Inspection Of Services Cost-Reimbursement	APR 1984
52.246-8	Inspection Of Research And Development Cost Reimbursement	MAY 2001
52.246-11	Higher-Level Contract Quality Requirement	DEC 2014
52.246-16	Responsibility For Supplies	APR 1984

CLAUSES INCORPORATED BY FULL TEXT**ETXT.246-9512 INSPECTION AND ACCEPTANCE (NAVAIR)(OCT 2005)**

(a) Inspection and acceptance of the supplies or services to be furnished hereunder shall be performed by **Contracting Officer's Representative (COR)**.

(b) Acceptance of all Contract Line Items/Sub Line Items (CLINs/SLINs) shall be made by signature of the accepting authority on a DD 250 submitted through the WAWF system. Acceptance will only occur when the accepting authority is sure that inspections performed demonstrate compliance with contract requirements.

**ETXT.246-9514 INSPECTION AND ACCEPTANCE OF TECHNICAL DATA AND INFORMATION
(NAVAIR)(FEB 1995)**

Inspection and acceptance of technical data and information will be performed by the Procuring Contracting Officer (PCO) or his duly authorized representative. Inspection of technical data and information will be performed by ensuring successful completion of the requirements set forth in the DD Form 1423, Contract Data Requirements List (CDRL) and incorporation/resolution of Government review comments on the data items. Acceptance will be evidenced by execution of an unconditional DD Form 250, Material Inspection and Receiving Report, as appropriate, and/or upon receipt of a second endorsement acceptance by the PCO on the attachment to this contract entitled **Attachment 5 – Data Item Transmittal/Acceptance/Rejection Form**. The attached form will not be used for high cost data such as drawings, specifications, and technical manuals.

ETXT.246-9517 CONSTRUCTIVE ACCEPTANCE PERIOD (NAVAIR) (MAR 1999)

For the purpose of FAR Clause 52.232-25, "Prompt Payment", paragraph (a)(5)(i), Government acceptance shall be deemed to have occurred constructively on the **30th** day after the contractor delivered the supplies or performed the services.

Section F - Deliveries or Performance

DESCRIPTION

Items 0001-0010 – The Period of Performance (PoP) identified below comprises the ordering period for this IDIQ contract. The PoP applicable to each task order shall be identified in the individual task order.

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE
0001	POP 01-APR-2026 TO 31-MAR-2031	N/A	NAVAL AIR WARFARE CENTER AD-PAX-N3555A RECEIVING OFFICER BLDG 8115 17598 WEBSTER FIELD ROAD ST INIGOE MD 20684-4013 301-995-8341 FOB: Destination	
0002	POP 01-APR-2026 TO 31-MAR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N3555A
0003	POP 01-APR-2026 TO 31-MAR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N3555A
0004	POP 01-APR-2026 TO 31-MAR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N3555A
0005	POP 01-APR-2026 TO 31-MAR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N3555A
0006	POP 01-APR-2026 TO 31-MAR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N3555A
0007	POP 01-APR-2026 TO 31-MAR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N3555A
0008	POP 01-APR-2026 TO 31-MAR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N3555A
0009	POP 01-APR-2026 TO 31-MAR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N3555A
0010	POP 01-APR-2026 TO 31-MAR-2031	N/A	(SAME AS PREVIOUS LOCATION) FOB: Destination	N3555A

CLAUSES INCORPORATED BY REFERENCE

52.242-15 Alt I	Stop-Work Order (Aug 1989) - Alternate I	APR 1984
52.247-34	F.O.B. Destination	JAN 1991
52.247-55	F.O.B. Point For Delivery Of Government-Furnished Property	JUN 2003
252.247-7023	Transportation of Supplies by Sea	OCT 2024

CLAUSES INCORPORATED BY FULL TEXT

FTXT.211-9507 PERIOD OF PERFORMANCE (NAVAIR) (MAR 1999)

(a) The contract shall commence on [**TBD at time of award**] and shall continue **60 months after the start of the ordering period**. However, the period of performance may be extended in accordance with the option provisions contained herein.

(b) If FAR Clause 52.216-18, "Ordering", is incorporated into this contract, then the period in which the Government can issue orders under the contract will be extended at the exercise of an option, and extended to the end of that option period.

FTXT.225-9506 VERIFICATION OF "SHIP TO" AND/OR "NOTICE OF AVAILABILITY" ADDRESS (NAVAIR) (JAN 1992)

The contractor shall submit a request in duplicate to the Transportation Office of the cognizant Contract Administration Office for verification of the "Ship to" address. If the offer/release instructions require a "Notice of Availability" the contractor shall also request verification of the address to which notification will be made (the 'IAC 3' address). Such requests shall be submitted at least ten (10) days in advance of (i) date Notice of Availability is to be submitted, or (ii) actual shipping date, if shipment is to be released automatically.

FTXT.247-9505 TECHNICAL DATA AND INFORMATION (NAVAIR)(FEB 1995)

Technical Data and Information shall be delivered in accordance with the requirements of the Contract Data Requirements List, DD Form 1423, Exhibit **A**, attached hereto, and the following:

(a) The contractor shall concurrently deliver technical data and information per DD Form 1423, Blocks 12 and 13 (date of first/subsequent submission) to all activities listed in Block 14 of the DD Form 1423 (distribution and addresses) for each item. Complete addresses for the abbreviations in Block 14 are shown in paragraph (g) below. Additionally, the technical data shall be delivered to the following cognizant codes, who are listed in Block 6 of the DD Form 1423.

(1) PCO, Code **Delivery of CDRLs to PCO is not required**

(2) ACO, Code **Delivery of CDRLs to ACO is not required**

(3) TW1200

(b) Partial delivery of data is not acceptable unless specifically authorized on the DD Form 1423, or unless approved in writing by the PCO.

(c) The Government review period provided on the DD Form 1423 for each item commences upon receipt of all required data by the technical activity designated in Block 6.

(d) A copy of all other correspondence addressed to the Contracting Officer relating to data item requirements (i.e., status of delivery) shall also be provided to the codes reflected above and the technical activity responsible for the data item per Block 6, if not one of the activities listed above.

(e) The PCO reserves the right to issue unilateral modifications to change the destination codes and addresses for all technical data and information at no additional cost to the Government.

(f) Unless otherwise specified in writing, rejected data items shall be resubmitted within thirty (30) days after receipt of notice of rejection.

(g) DD Form 1423, Block 14 Mailing Addresses: **See DD Form 1423, Block 14**

Section G - Contract Administration Data

CLAUSES INCORPORATED BY REFERENCE

252.201-7000	Contracting Officer's Representative	DEC 1991
252.204-7002	Payment For Contract Line or Subline Items Not Separately Priced	APR 2020
252.204-7006	Billing Instructions--Cost Vouchers	MAY 2023
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports	DEC 2018
252.232-7010	Levies on Contract Payments	DEC 2006

CLAUSES INCORPORATED BY FULL TEXT

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause—

“Department of Defense Activity Address Code (DoDAAC)” is a six position code that uniquely identifies a unit, activity, or organization.

“Document type” means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

“Local processing office (LPO)” is the office responsible for payment certification when payment certification is done external to the entitlement system.

“Payment request” and “receiving report” are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall—

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the “Web Based Training” link on the WAWF home page at <https://wawf.eb.mil/>.

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items—

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(Contracting Officer: Insert either “Invoice 2in1” or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF “combo” document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	_____
Issue By DoDAAC	_____
Admin DoDAAC**	_____
Inspect By DoDAAC	_____
Ship To Code	_____
Ship From Code	_____

Mark For Code	_____
Service Approver (DoDAAC)	_____
Service Acceptor (DoDAAC)	_____
Accept at Other DoDAAC	_____
LPO DoDAAC	_____
DCAA Auditor DoDAAC	_____
Other DoDAAC(s)	_____

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

****TO BE COMPLETED AT TIME OF AWARD****

GTXT.201-9501 DESIGNATION OF CONTRACTING OFFICER'S REPRESENTATIVE (COR) (NAVAIR)(APR 2022)

(a) The Contracting Officer has designated [insert name, mailing address (optional), email address, code, and telephone number] as the authorized Contracting Officer's Representative (COR) to perform the following functions, duties, and/or responsibilities: [Insert functions, duties, and/or responsibilities of the COR].

(b) The effective period of the COR designation is [insert "the period of performance of this contract" OR "from _____ to _____."]

****TO BE COMPLETED AT TIME OF AWARD****

GTXT.232-0001 PAYMENT INSTRUCTIONS (NAVAIR) (MAY 2023)

For Government Use Only					
Contract/Order Payment Clause	Type of Payment Request	Supply	Service	Construction	Payment Office Allocation Method
52.212-4 (Alt I), Contract Terms and Conditions— Commercial Products and Commercial Services; 52.216-7, Allowable Cost and Payment; 52.232-7, Payments Under Time-and- Materials and Labor- Hour Contracts	Cost Voucher	X	X	N/A	Line item specific proration. If there is more than one ACRN within a deliverable contract line item, the funds will be allocated in the same proportion as the amount of funding currently unliquidated for each ACRN on the line item billed.
52.232-1, Payments, 252.217-7007, Payments (vessel repair and alterations)	Navy Shipbuilding Invoice (Fixed Price)	X	X	N/A	Line item specific by fiscal year. If there is more than one ACRN within a deliverable line or deliverable subline item, the funds will be allocated using the oldest funds first. In the event of a deliverable line or deliverable subline item with two or more ACRNs with the same fiscal year, those amounts will be prorated to the available unliquidated funds for that year.
52.232-1, Payments; 52.232-2, Payments Under Fixed-Price Research and Development Contracts; 52.232-3, Payments Under Personal Services Contracts; 52.232-4, Payments Under Transportation Contracts and Transportation-Related Services Contracts; and 52.232-6, Payments	Invoice	X	X	N/A	Line item specific proration. If there is more than one ACRN within a deliverable line item or deliverable subline item, the funds will be allocated in the same proportion as the amount of funding currently unliquidated for each ACRN on the deliverable line or deliverable subline item for which payment is requested.

Under Communication Service Contracts With Common Carriers					
For Government Use Only					
Contract/Order Payment Clause	Type of Payment Request	Supply	Service	Construction	Payment Office Allocation Method
52.232-5, Payments Under Fixed-Price Construction Contracts	Construction Payment Invoice	N/A	N/A	X	Line item specific by fiscal year. If there is more than one ACRN within a deliverable line or deliverable subline item, the funds will be allocated using the oldest funds first. In the event of a deliverable line or deliverable subline item with two or more ACRNs with the same fiscal year, those amounts will be prorated to the available unliquidated funds for that year.
52.232-16, Progress Payments (excluding contracts with multiple lot progress payments)	Progress Payment*	X	X	N/A	Contract-wide proration. Funds shall be allocated in the same proportion as the amount of funding currently unliquidated for each ACRN. Progress payments are considered contract level financing, and the “contract price” shall reflect the fixed-price portion of the contract per FAR 32.501-3.
52.232-16, Progress Payments; 252.232-7018, Progress Payments— Multiple Lots	Progress Payment*	X	X	N/A	Lot-wide proration (applies to lots specifically identified in the contract). If there is more than one ACRN within a lot, the funds will be allocated in the same proportion as the amount of funding currently unliquidated for each ACRN on the lot for which payment is requested. See PGI 204.7108 paragraph (c) for multiple lot CLIN structure.

For Government Use Only					
Contract/Order Payment Clause	Type of Payment Request	Supply	Service	Construction	Payment Office Allocation Method
52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services; 52.232-30, Installment Payments for Commercial Products and Commercial Services	Commercial Product and Commercial Service Financing*	X	X	N/A	Specified in approved payment. The contracting officer shall specify the amount to be paid and the account(s) to be charged for each payment approval in accordance with FAR 32.207(b)(2).
52.232-32, Performance-Based Payments	Performance-Based Payments*	X	X	N/A	Specified in approved payment. The contracting officer shall specify the amount to be paid and the account(s) to be charged for each payment approval in accordance with FAR 32.1007(b)(2).
252.232-7002, Progress Payments for Foreign Military Sales Acquisitions	Progress Payment*	X	X	N/A	Allocate costs among line items and countries in a manner acceptable to the administrative contracting officer.
*Liquidation of Financing Payments. Liquidation will be applied by the payment office against those ACRNs which are identified by the payment instructions for the delivery payment and in keeping with the liquidation provision of the applicable contract financing clause (i.e., progress payment, performance-based payment, or commercial product and commercial service financing).					

GTXT.242-9511 CONTRACT ADMINISTRATION DATA (NAVAIR)(NOV 2017)

(a) Contract Administration Office.

(1) Contract administration functions (see FAR 42.302(a) and DFARS 242.302(a)) are assigned to: See the ADMINISTERED BY Block on the face page of the contract, modification, or order.

(b) Special Instructions (see FAR 42.202(b) and (c)):

(1) The following contract administration functions are retained (see FAR 42.302(a) and DFARS 242.302(a)):

Functions Retained	Retained for Performance By:
FAR 42.302(a)(51)	PCO
FAR 42.302(a)(16),(30), (38), (39), (41), (42), (58), and (67)	COR
DFARS 242.302(a)(67)	PCO

(2) The following additional contract administration functions are assigned (see FAR 42.302(b)):

Additional Functions	Retained for Performance By:
----------------------	------------------------------

NONE	N/A

(c) Inquiries regarding payment should be referred to: MyInvoice through the Wide Area Workflow eBusiness Suite: <https://wawf.eb.mil>.

Section H - Special Contract Requirements

CLAUSES INCORPORATED BY REFERENCE

252.225-7976 (Dev) Contractor Personnel Performing in Japan. (DEVIATION 2018-O0019) AUG 2018

CLAUSES INCORPORATED BY FULL TEXT

HTXT.209-9510 ORGANIZATIONAL CONFLICTS OF INTEREST (NAVAIR) (FEB 2025)

(a) Purpose. This requirement seeks to ensure that the contractor (1) does not obtain an unfair competitive advantage over other parties by virtue of its performance of this contract, and (2) is not biased because of its current or planned interests (financial, contractual, organizational or otherwise) that relate to the work under this contract.

(b) Scope. The restrictions described herein shall apply to performance or participation by the contractor (as defined in paragraph (d)(7)) in the activities covered by this requirement.

(1) The restrictions set forth in paragraph (e) apply to supplies, services, and other performance rendered with respect to the suppliers and/or equipment listed in Attachment 4. **The contract** will specify to which suppliers and/or equipment subparagraph (e) restrictions apply.

(2) The financial, contractual, organizational and other interests of contractor personnel performing work under this contract shall be deemed to be the interests of the contractor for the purposes of determining the existence of an organizational conflict of interest. Any subcontractor that performs any work relative to this contract shall be subject to this requirement. The contractor agrees to place in each subcontract affected by these provisions the necessary language contained in this requirement.

(3) In performance of this contract, the contractor shall also comply with the mitigation plan provided as Attachment [insert attachment number or none if there is none] to this contract.

(c) Waiver. Any request for waiver pursuant to FAR 9.503 shall be submitted in writing to the Procuring Contracting Officer. The request for waiver shall set forth all relevant factors including proposed contractual safeguards or job procedures to mitigate conflicting roles that might produce an organizational conflict of interest. No waiver shall be granted by the Government with respect to prohibitions pursuant to access to proprietary data.

(d) Definitions. For purposes of application of this requirement only, the following definitions are applicable:

- (1) "System" includes system, major component, subassembly or subsystem, project, or item.
- (2) "Nondevelopmental items" as defined in FAR 2.101.
- (3) "Systems Engineering" (SE) includes, but is not limited to, the activities in FAR 9.505-1(b).
- (4) "Technical direction" (TD) includes, but is not limited to, the activities in FAR 9.505-1(b).
- (5) "Advisory and Assistance Services" (AAS) as defined in FAR 2.101.
- (6) "Consultant services" as defined in FAR 31.205-33(a).

(7) "Contractor", for the purposes of this requirement, means the firm signing this contract, its subsidiaries and affiliates, joint ventures involving the firm, any entity with which the firm may hereafter merge or affiliate, and any other successor or assignee of the firm.

(8) "Affiliates," means officers or employees of the prime contractor and first tier subcontractors involved in the program and technical decision-making process concerning this contract.

(9) "Interest" means organizational or financial interest.

(10) "Weapons system supplier" means any prime contractor or first tier subcontractor engaged in, or having a known prospective interest in the development, production or analysis of any of the weapon systems, as well as any major component or subassembly of such system.

(e) Contracting restrictions.

[X] (1) To the extent the contractor provides systems engineering and/or technical direction for a system or commodity but does not have overall contractual responsibility for the development, the integration, assembly and checkout or the production of the system, the contractor shall not (i) be awarded a contract to supply the system or any of its major components or (ii) be a subcontractor or consultant to a supplier of the system or of its major components. The contractor agrees that it will not supply to the Department of Defense (either as a prime contractor or as a subcontractor) or act as consultant to a supplier of, any system, subsystem, or major component utilized for

or in connection with any item or other matter that is (directly or indirectly) the subject of the systems engineering and/or technical direction or other services performed under this contract for a period of three years after the date of completion of the contract. (FAR 9.505-1(a))

[X] (2) To the extent the contractor prepares and furnishes complete specifications covering nondevelopmental items to be used in a competitive acquisition, the contractor shall not be allowed to furnish these items either as a prime contractor or subcontractor. This rule applies to the initial production contract, for such items plus a specified time period or event. The contractor agrees to prepare complete specifications covering non-developmental items to be used in competitive acquisitions, and the contractor agrees not to be a supplier to the Department of Defense, subcontract supplier, or a consultant to a supplier of any system or subsystem for which complete specifications were prepared hereunder. The prohibition relative to being a supplier, a subcontract supplier, or a consultant to a supplier of these systems or their subsystems extends for a period of three years after the terms of this contract. (FAR 9.505-2(a)(1))

[X] (3) To the extent the contractor prepares or assists in preparing a statement of work to be used in competitively acquiring a system or services or provides material leading directly, predictably and without delay to such a work statement, the contractor may not supply the system, major components thereof or the services unless the contractor is the sole source, or a participant in the design or development work, or more than one contractor has been involved in preparation of the work statement. The contractor agrees to prepare, support the preparation of or provide material leading directly, predictably and without delay to a work statement to be used in competitive acquisitions, and the contractor agrees not to be a supplier or consultant to a supplier of any services, systems or subsystems for which the contractor participated in preparing the work statement. The prohibition relative to being a supplier, a subcontract supplier, or a consultant to a supplier of any services, systems or subsystems extends for a period of three years after the terms of this contract. (FAR 9.505-2(b)(1))

[X] (4) To the extent work to be performed under this contract requires evaluation of offers for products or services, a contract will not be awarded to a contractor that will evaluate its own offers for products or services, or those of a competitor, without proper safeguards to ensure objectivity to protect the Government's interests. Contractor agrees to the terms and conditions set forth in the statement of work that are established to ensure objectivity to protect the Government's interests. (FAR 9.505-3)

[X] (5) To the extent work to be performed under this contract requires access to proprietary data of other companies, the contractor must enter into agreements with such other companies which set forth procedures deemed adequate by those companies (i) to protect such data from unauthorized use or disclosure so long as it remains proprietary and (ii) to refrain from using the information for any other purpose other than that for which it was furnished. Evidence of such agreement(s) must be made available to the Procuring Contracting Officer upon request. The contractor shall restrict access to proprietary information to the minimum number of employees necessary for performance of this contract. Further, the contractor agrees that it will not utilize proprietary data obtained from such other companies in preparing proposals (solicited or unsolicited) to perform additional services or studies for the United States Government. The contractor agrees to execute agreements with companies furnishing proprietary data in connection with work performed under this contract, obligating the contractor to protect such data from unauthorized use or disclosure so long as such data remains proprietary, and to furnish copies of such agreement to the Contracting Officer. Contractor further agrees that such proprietary data shall not be used in performing for the Department of Defense additional work in the same field as work performed under this contract if such additional work is procured competitively. (FAR 9.505)

[X] (6) Preparation of Statements of Work or Specifications. If the contractor under this contract assists substantially in the preparation of a statement of work or specifications, the contractor shall be ineligible to perform or participate in any capacity in any contractual effort (solicited or unsolicited) that is based on such statement of work or specifications. The contractor shall not incorporate its products or services in such statement of work or specifications unless so directed in writing by the Contracting Officer, in which case the restrictions in this subparagraph shall not apply. Contractor agrees that it will not supply to the Department of Defense (either as a prime contractor or as a subcontractor) or act as consultant to a supplier of, any system, subsystem or major component utilized for or in connection with any item or work statement prepared or other services performed or materials delivered under this contract, and is procured on a competitive basis, by the Department of Defense with three years after completion of work under this contract. The provisions of this requirement shall not apply to any system, subsystem, or major component for which the contractor is the sole source of supply or which it participated in designing or developing. (FAR 9.505-4(b))

[X] (7) Advisory and Assistance Services (AAS). If the contractor provides AAS services as defined in paragraph (d) of this requirement, it shall be ineligible thereafter to participate in any capacity in Government

contractual efforts (solicited or unsolicited) which stem directly from such work, and the contractor agrees not to perform similar work for prospective offerors with respect to any such contractual efforts. Furthermore, unless so directed in writing by the Contracting Officer, the contractor shall not perform any such work under this contract on any of its products or services, or the products or services of another firm for which the contractor performs similar work. Nothing in this subparagraph shall preclude the contractor from competing for follow-on contracts for AAS.

(f) Remedies. In the event the contractor fails to comply with the provisions of this requirement, such noncompliance shall be deemed a material breach of the provisions of this contract. If such noncompliance is the result of conflicting financial interest involving contractor personnel performing work under this contract, the Government may require the contractor to remove such personnel from performance of work under this contract. Further, the Government may elect to exercise its right to terminate for default in the event of such noncompliance. Nothing herein shall prevent the Government from electing any other appropriate remedies afforded by other provisions of this contract, or statute or regulation.

(g) Disclosure of Potential Conflicts of Interest. The contractor recognizes that during the term of this contract, conditions may change which may give rise to the appearance of a new conflict of interest. In such an event, the contractor shall disclose to the Government information concerning the new conflict of interest. The contractor shall provide, as a minimum, the following information:

- (1) a description of the new conflict of interest (e.g., additional weapons systems supplier(s), corporate restructuring, new first-tier subcontractor(s), new contract) and identity of parties involved;
- (2) a description of the work to be performed;
- (3) the dollar amount;
- (4) the period of performance; and
- (5) a description of the contractor's internal controls and planned actions, to avoid any potential organizational conflict of interest.

HTXT.216-9512 PAPERLESS CONTRACTING (NAVAIR)(JUN 2009)

(a) Orders and requests for proposals are hereby authorized to be issued by facsimile or by electronic commerce (including e-mail and paperless methods of delivery). Nothing in this contract should be read to prohibit these types of orders. In the event of a conflict with any other provision of this contract, this clause shall govern.

(b) To the extent the terms "written", "mailed", or "physically delivered" appear in other provisions of this contract, these terms are hereby defined to explicitly include electronic commerce, email, or paperless delivery methods.

HTXT.228-9501 LIABILITY INSURANCE (NAVAIR) (MAR 1999)

The following types of insurance are required in accordance with the clause entitled, [insert FAR 52.228-5, "Insurance--Work on a Government Installation" or 52.228-7, "Insurance--Liability to Third Persons"] and shall be maintained in the minimum amounts shown:

- (a) Comprehensive General Liability: \$[insert \$200,000 or other appropriate amount] per person and \$[insert either \$500,000 or other appropriate amount] per accident for bodily injury.
- (b) Automobile Insurance: \$[insert \$200,000 or other appropriate amount] per person and \$[insert \$500,000 or other appropriate amount] per accident for bodily injury and \$[insert \$500,000 or other appropriate amount] per accident for property damage.
- (c) Standard Workman's Compensation and Employer's Liability Insurance (or, where maritime employment is involved, Longshoremen's and Harbor Worker's Compensation Insurance) in the minimum amount of \$100,000.
- (d) Aircraft public and passenger liability: \$[insert \$200,000 or other appropriate amount] per person and \$[insert \$500,000 or other appropriate amount] per occurrence for bodily injury, other than passenger liability; \$[insert \$200,000 or other appropriate amount] per occurrence for property damage. Passenger bodily injury liability limits of \$[insert \$200,000 or other appropriate amount] per passenger, multiplied by the number of seats or number of passengers, whichever is greater.

HTXT.232-9510 PAYMENT OF FIXED FEE (NAVAIR) (OCT 2005)

(a) The fixed fee, as specified in Section B of this contract, subject to any adjustment required by other provisions of this contract, will be paid in installments. The fixed fee will be paid not more frequently than **bi-weekly** based on the allowable cost. The amount of each such installment shall be in the same ratio to the total fixed fee as **the dollars per hour (based on the fixed fee divided by the level of effort in hours) if a level of effort contract**. Payment shall be made in accordance with FAR Clauses 52.216-7, "Allowable Cost and Payment," and 52.216-8, "Fixed Fee."

(b) In the event of termination of the work in accordance with the FAR Clause 52.232-22, "Limitation of Funds," the fixed fee shall be redetermined by mutual agreement equitably to reflect the reduction of the work performed. The amount by which such fixed fee is less than or exceeds payments previously made on account of fee, shall be paid to (or repaid by) the contractor.

(c) The balance of the fixed fee shall be payable in accordance with other clauses of this contract.

(d) For indefinite delivery type contracts the terms of this clause apply to each delivery/task order there under.

HTXT.242-9502 TECHNICAL DIRECTION (NAVAIR) (VARIATION)

(a) Definition. Technical Direction Letters (TDLs) are a means of communication between the Contracting Officer's Representative (COR) and the contractor to answer technical questions, provide technical clarification, and give technical direction regarding the content of the Statement of Work (SOW) of a Contract, Order, or Agreement; herein after referred to as contract.

(i) "Technical Direction" means "clarification of contractual requirements or direction of a technical nature, within the context of the SOW of the contract."

(b) Scope. The Defense Federal Acquisition Regulation Supplement (DFARS) 201.602-2 states that the Contracting Officer may designate qualified personnel as a COR. In this capacity, the COR may provide Technical Direction to the contractor, so long as the Technical Direction does not make any commitment or change that affects price, quality, quantity, delivery, or other terms and conditions of the contract. This Technical Direction shall be provided consistent with the limitations specified below.

(c) Limitations. When necessary, Technical Direction concerning details of requirements set forth in the contract, shall be given through issuance of TDLs prepared by the COR subject to the following limitations.

(i) The TDL, and any subsequent amendments to the TDL, shall be in writing and signed by both the COR, and the Contracting Officer prior to issuance of the TDL to the contractor. Written TDLs are the only medium permitted for use when technical direction communication is required. Any other means of communication (including such things as Contractor Service Request Letters, Authorization Letters, or Material Budget Letters) are not permissible means of communicating technical direction during contract performance.

(ii) In the event of an urgent situation, the COR may issue the TDL directly to the contractor prior to obtaining the Contracting Officer's signature.

(iii) Each TDL issued is subject to the terms and conditions of the contract and shall not be used to assign new work, direct a change to the quality or quantity of supplies and/or services delivered, change the delivery date(s) or period of performance of the contract, or change any other conditions of the contract. TDLs shall only provide additional clarification and direction regarding technical issues. In the event of a conflict between a TDL and the contract, the contract shall take precedence.

(iv) The contractor shall track each TDL and shall be subject to FAR 52.232-22, Limitation of Funds clause at the TDL level. The contractor shall notify the Contracting Officer whenever it has reason to believe the costs it expects to incur under the TDL and the specific CLIN/INFOSLIN/ACRN (as funded) will exceed 75% of the total funded amount so far allotted to the specific TDL and CLIN/INFOSLIN/ACRN assigned. The notice shall state the estimated amount of additional funds required to continue performance for the period specified in the TDL. If, after notification, additional funds are not allotted, the Contractor shall immediately discontinue support of the specific TDL upon expense of applicable funds or completion of TDL assignment; whichever is first. The contractor is not obligated to continue performance under the TDL or otherwise incur costs in excess of the amount then allotted to the TDL by the Government. The Government is not obligated to reimburse the Contractor for any cost in excess of the total amount allotted by the Government for the performance of the TDL.

(v) Issuance of TDLs shall not incur an increase or decrease to the contract price, estimated contract amount (including fee), or contract funding, as applicable. Additionally, TDLs shall not provide clarification or direction of a technical nature that would require the use of existing funds on the contract beyond the period of performance or delivery date for which the funds were obligated.

(vi) TDLs shall provide specific Technical Direction to the contractor only for work specified in the SOW and previously negotiated in the contract. TDLs shall not require new contract deliverables that may cause the contractor to incur additional costs.

(vii) When, in the opinion of the contractor, a TDL calls for effort outside the terms and conditions of the contract or available funding, the contractor shall notify the Contracting Officer in writing, with a copy to the COR, within two (2) working days of having received the Technical Direction. The contractor shall undertake no performance to comply with the TDL until the matter has been resolved by the Contracting Officer through a contract modification or other appropriate action.

(viii) If the contractor undertakes work associated with a TDL that is considered to be outside the scope of the contract, the contractor does so at its own risk and is not entitled to recover any costs and fee or profit associated with the scope of effort.

Section I - Contract Clauses

CLAUSES INCORPORATED BY REFERENCE

52.202-1	Definitions	JUN 2020
52.203-3	Gratuities	APR 1984
52.203-5	Covenant Against Contingent Fees	MAY 2014
52.203-6	Restrictions On Subcontractor Sales To The Government	JUN 2020
52.203-7	Anti-Kickback Procedures	JUN 2020
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	MAY 2014
52.203-10	Price Or Fee Adjustment For Illegal Or Improper Activity	MAY 2014
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions	SEP 2024
52.203-12	Limitation On Payments To Influence Certain Federal Transactions	JUN 2020
52.203-13	Contractor Code of Business Ethics and Conduct	NOV 2021
52.203-15	Whistleblower Protections Under the American Recovery and Reinvestment Act of 2009	JUN 2010
52.203-16	Preventing Personal Conflicts of Interest	JUN 2020
52.203-17	Contractor Employee Whistleblower Rights	NOV 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017
52.204-1	Approval of Contract	DEC 1989
52.204-2	Security Requirements	MAR 2021
52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	JUN 2020
52.204-12	Unique Entity Identifier Maintenance	OCT 2016
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-15	Service Contract Reporting Requirements for Indefinite-Delivery Contracts	OCT 2016
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.204-19	Incorporation by Reference of Representations and Certifications.	DEC 2014
52.204-21	Basic Safeguarding of Covered Contractor Information Systems	NOV 2021
52.204-22	Alternative Line Item Proposal	JAN 2017
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities	DEC 2023
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	NOV 2021
52.204-27	Prohibition on a ByteDance Covered Application	JUN 2023
52.208-9	Contractor Use of Mandatory Sources of Supply or Services	MAY 2014
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	JAN 2025
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters	OCT 2018
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations	NOV 2015
52.209-13	Violation of Arms Control Treaties or Agreements -- Certification	NOV 2021

52.210-1	Market Research	NOV 2021
52.211-5	Material Requirements	AUG 2000
52.215-2	Audit and Records--Negotiation	JUN 2020
52.215-8	Order of Precedence--Uniform Contract Format	OCT 1997
52.215-10	Price Reduction for Defective Certified Cost or Pricing Data	AUG 2011
52.215-11 (Dev)	Price Reduction for Defective Certified Cost or Pricing Data-- Modifications (DEVIATION 2022-O0001)	OCT 2021
52.215-12 (Dev)	Subcontractor Certified Cost or Pricing Data (DEVIATION 2022-O0001)	OCT 2021
52.215-13 (Dev)	Subcontractor Certified Cost or Pricing Data - Modifications (Deviation 2022-O0001)	OCT 2021
52.215-14	Integrity of Unit Prices	NOV 2021
52.215-15	Pension Adjustments and Asset Reversions	OCT 2010
52.215-17	Waiver of Facilities Capital Cost of Money	OCT 1997
52.215-18	Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other than Pensions	JUL 2005
52.215-19	Notification of Ownership Changes	OCT 1997
52.215-21	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data -- Modifications	NOV 2021
52.215-23	Limitations on Pass-Through Charges	JUN 2020
52.216-7	Allowable Cost And Payment	AUG 2018
52.216-8	Fixed Fee	JUN 2011
52.219-8	Utilization of Small Business Concerns	JAN 2025
52.219-9	Small Business Subcontracting Plan	JAN 2025
52.219-14 (Dev)	Limitations on Subcontracting (DEVIATION 2021-O0008)	FEB 2023
52.219-16	Liquidated Damages-Subcontracting Plan	SEP 2021
52.222-3	Convict Labor	JUN 2003
52.222-19	Child Labor -- Cooperation with Authorities and Remedies	JAN 2025
52.222-20	Contracts for Materials, Supplies, Articles, and Equipment	JUN 2020
52.222-35	Equal Opportunity for Veterans	JUN 2020
52.222-36	Equal Opportunity for Workers with Disabilities	JUN 2020
52.222-37	Employment Reports on Veterans	JUN 2020
52.222-40	Notification of Employee Rights Under the National Labor Relations Act	DEC 2010
52.222-41	Service Contract Labor Standards	AUG 2018
52.222-42	Statement Of Equivalent Rates For Federal Hires	MAY 2014
52.222-43	Fair Labor Standards Act And Service Contract Labor Standards - Price Adjustment (Multiple Year And Option Contracts)	AUG 2018
52.222-50	Combating Trafficking in Persons	NOV 2021
52.222-54	Employment Eligibility Verification	JAN 2025
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026	JAN 2022
52.222-62	Paid Sick Leave Under Executive Order 13706	JAN 2022
52.223-5	Pollution Prevention and Right-to-Know Information	MAY 2024
52.223-10 (Dev)	Waste Reduction Program (DEVIATION 2025-O0004)	MAR 2025
52.224-1	Privacy Act Notification	APR 1984
52.224-2	Privacy Act	APR 1984
52.225-5	Trade Agreements	NOV 2023
52.225-13	Restrictions on Certain Foreign Purchases	FEB 2021
52.225-25	Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-- Representation and Certifications.	JUN 2020
52.227-1	Authorization and Consent	JUN 2020

52.227-2	Notice And Assistance Regarding Patent And Copyright Infringement	JUN 2020
52.228-7	Insurance--Liability To Third Persons	MAR 1996
52.230-2	Cost Accounting Standards	JUN 2020
52.230-3	Disclosure And Consistency Of Cost Accounting Practices	JUN 2020
52.230-4	Disclosure and Consistency of Cost Accounting Practices -- Foreign Concerns	JUN 2020
52.230-6	Administration of Cost Accounting Standards	JUN 2010
52.232-9	Limitation On Withholding Of Payments	APR 1984
52.232-17	Interest	MAY 2014
52.232-18	Availability Of Funds	APR 1984
52.232-20	Limitation Of Cost	APR 1984
52.232-22	Limitation Of Funds	APR 1984
52.232-23 Alt I	Assignment of Claims (May 2014) - Alternate I	APR 1984
52.232-25	Prompt Payment	JAN 2017
52.232-33	Payment by Electronic Funds Transfer--System for Award Management	OCT 2018
52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023
52.233-1	Disputes	MAY 2014
52.233-1 Alt I	Disputes (May 2014) - Alternate I	DEC 1991
52.233-3	Protest After Award	AUG 1996
52.233-3 Alt I	Protest After Award (Aug 1996) - Alternate I	JUN 1985
52.233-4	Applicable Law for Breach of Contract Claim	OCT 2004
52.237-2	Protection Of Government Buildings, Equipment, And Vegetation	APR 1984
52.237-3	Continuity Of Services	JAN 1991
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act--Covered Foreign Entities	NOV 2024
52.242-1	Notice of Intent to Disallow Costs	APR 1984
52.242-3	Penalties for Unallowable Costs	DEC 2022
52.242-4	Certification of Final Indirect Costs	JAN 1997
52.242-5	Payments to Small Business Subcontractors	JAN 2017
52.242-13	Bankruptcy	JUL 1995
52.242-15	Stop-Work Order	AUG 1989
52.243-2	Changes--Cost-Reimbursement	AUG 1987
52.243-2 Alt II	Changes--Cost Reimbursement (Aug 1987) - Alternate II	APR 1984
52.243-7	Notification Of Changes	JAN 2017
52.244-6	Subcontracts for Commercial Products and Commercial Services	JAN 2025
52.245-1	Government Property	SEP 2021
52.245-1 Alt I	Government Property (SEP 2021) Alternate I	APR 2012
52.245-9	Use And Charges	APR 2012
52.246-25	Limitation Of Liability--Services	FEB 1997
52.247-63	Preference for U.S. Flag Air Carriers	JAN 2025
52.249-6	Termination (Cost Reimbursement)	MAY 2004
52.249-14	Excusable Delays	APR 1984
52.251-1	Government Supply Sources	APR 2012
252.203-7000	Requirements Relating to Compensation of Former DoD Officials	SEP 2011
252.203-7001	Prohibition On Persons Convicted of Fraud or Other Defense- Contract-Related Felonies	JAN 2023
252.203-7002	Requirement to Inform Employees of Whistleblower Rights	DEC 2022

252.203-7003	Agency Office of the Inspector General	AUG 2019
252.203-7004	Display of Hotline Posters	JAN 2023
252.204-7000	Disclosure Of Information	OCT 2016
252.204-7003	Control Of Government Personnel Work Product	APR 1992
252.204-7004	Antiterrorism Awareness Training for Contractors	JAN 2023
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information	JAN 2023
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting	MAY 2024
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support	JAN 2023
252.204-7020	NIST SP 800-171 DoD Assessment Requirements	NOV 2023
252.205-7000	Provision Of Information To Cooperative Agreement Holders	OCT 2024
252.209-7004	Subcontracting With Firms That Are Owned or Controlled By The Government of a Country that is a State Sponsor of Terrorism	MAY 2019
252.211-7003	Item Unique Identification and Valuation	JAN 2023
252.211-7008	Use of Government-Assigned Serial Numbers	SEP 2010
252.215-7002	Cost Estimating System Requirements	JAN 2025
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors	JAN 2023
252.219-7003	Small Business Subcontracting Plan (DOD Contracts)	DEC 2019
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements	JAN 2023
252.223-7006	Prohibition On Storage, Treatment, and Disposal of Toxic or Hazardous Materials	SEP 2014
252.225-7001	Buy American and Balance of Payments Program	FEB 2024
252.225-7002	Qualifying Country Sources As Subcontractors	MAR 2022
252.225-7004	Report of Intended Performance Outside the United States and Canada--Submission After Award	JUL 2024
252.225-7012	Preference For Certain Domestic Commodities	APR 2022
252.225-7013	Duty-Free Entry--Basic	NOV 2023
252.225-7015	Restriction on Acquisition of Hand Or Measuring Tools	JUN 2005
252.225-7016	Restriction on Acquisition of Ball and Roller Bearings	JAN 2023
252.225-7021	Trade Agreements--Basic	FEB 2024
252.225-7027	Restrictions on Contingent Fees for Foreign Military Sales	APR 2003
252.225-7028	Exclusionary Policies And Practices Of Foreign Government	APR 2003
252.225-7036	Buy American--Free Trade Agreements--Balance of Payments Program--Basic	FEB 2024
252.225-7040	Contractor Personnel Supporting U.S. Armed Forces Deployed Outside the United States	OCT 2023
252.225-7043	Antiterrorism/Force Protection Policy for Defense Contractors Outside the United States	JUN 2015
252.225-7048	Export-Controlled Items	JUN 2013
252.227-7000	Non-estoppel	OCT 1966
252.227-7013	Rights in Technical Data--Other Than Commercial Products and Commercial Services	JAN 2025
252.227-7014	Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation	JAN 2025
252.227-7015	Technical Data--Commercial Products and Commercial Services	JAN 2025
252.227-7016	Rights in Bid or Proposal Information	JAN 2025
252.227-7020	Rights In Special Works	JUN 1995
252.227-7025	Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends	JAN 2025
252.227-7026	Deferred Delivery Of Technical Data Or Computer Software	APR 1988

252.227-7027	Deferred Ordering Of Technical Data Or Computer Software	APR 1988
252.227-7028	Technical Data or Computer Software Previously Delivered to the Government	JUN 1995
252.227-7030	Technical Data--Withholding Of Payment	MAR 2000
252.227-7037	Validation of Restrictive Markings on Technical Data	JAN 2025
252.231-7000	Supplemental Cost Principles	DEC 1991
252.232-7008	Assignment of Claims (Overseas)	JUN 1997
252.233-7001	Choice of Law (Overseas)	JUN 1997
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel	JAN 2023
252.239-7001	Information Assurance Contractor Training and Certification	JAN 2008
252.242-7004	Material Management And Accounting System	JAN 2025
252.242-7005	Contractor Business Systems	JAN 2025
252.242-7006	Accounting System Administration	JAN 2025
252.243-7001	Pricing Of Contract Modifications	DEC 1991
252.243-7002	Requests for Equitable Adjustment	DEC 2022
252.244-7000	Subcontracts for Commercial Products or Commercial Services	NOV 2023
252.244-7001	Contractor Purchasing System Administration	JAN 2025
252.245-7003	Contractor Property Management System Administration	JAN 2025
252.245-7004 (Dev)	Reporting, Reutilization, and Disposal (DEVIATION 2022-O0006)	NOV 2021
252.246-7001	Warranty Of Data	MAR 2014
252.246-7003	Notification of Potential Safety Issues	JAN 2023
252.246-7007	Contractor Counterfeit Electronic Part Detection and Avoidance System	JAN 2023
252.246-7008	Sources of Electronic Parts	JAN 2023
252.247-7028	Application for U.S. Government Shipping Documentation/Instructions	JUN 2012
252.251-7000	Ordering From Government Supply Sources	AUG 2012

CLAUSES INCORPORATED BY FULL TEXT

52.216-18 ORDERING. (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from through [insert dates].

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when--

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either--

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the

Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

****TO BE COMPLETED AT TIME OF AWARD**

(End of clause)

52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than **\$10,000**, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor--

(1) Any order for a single item in excess of **\$25M**;

(2) Any order for a combination of items in excess of **\$50M**; or

(3) A series of orders from the same ordering office within **90** days that together call for quantities exceeding the limitation in subparagraph (1) or (2) above.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) above.

(d) Notwithstanding paragraphs (b) and (c) above, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

52.216-22 INDEFINITE QUANTITY (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after **one (1) year after the end of the ordering period.**

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the

Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within **30 days**.

52.222-2 PAYMENT FOR OVERTIME PREMIUMS (JUL 1990)

(a) The use of overtime is authorized under this contract if the overtime premium cost does not exceed **TBD** or the overtime premium is paid for work --

(1) Necessary to cope with emergencies such as those resulting from accidents, natural disasters, breakdowns of production equipment, or occasional production bottlenecks of a sporadic nature;

(2) By indirect-labor employees such as those performing duties in connection with administration, protection, transportation, maintenance, standby plant protection, operation of utilities, or accounting;

(3) To perform tests, industrial processes, laboratory procedures, loading or unloading of transportation conveyances, and operations in flight or afloat that are continuous in nature and cannot reasonably be interrupted or completed otherwise; or

(4) That will result in lower overall costs to the Government.

(b) Any request for estimated overtime premiums that exceeds the amount specified above shall include all estimated overtime for contract completion and shall--

(1) Identify the work unit; e.g., department or section in which the requested overtime will be used, together with present workload, staffing, and other data of the affected unit sufficient to permit the Contracting Officer to evaluate the necessity for the overtime;

(2) Demonstrate the effect that denial of the request will have on the contract delivery or performance schedule;

(3) Identify the extent to which approval of overtime would affect the performance or payments in connection with other Government contracts, together with identification of each affected contract; and

(4) Provide reasons why the required work cannot be performed by using multishift operations or by employing additional personnel.

52.244-2 SUBCONTRACTS (JUN 2020)

(a) Definitions. As used in this clause--

Approved purchasing system means a Contractor's purchasing system that has been reviewed and approved in accordance with Part 44 of the Federal Acquisition Regulation (FAR).

Consent to subcontract means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

Subcontract means any contract, as defined in FAR Subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) of this clause.

(c) If the Contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that—

(1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) Is fixed-price and exceeds—

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the National Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For a contract awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts:

(e)(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor.

(iv) The proposed subcontract price.

(v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting—

(A) The principal elements of the subcontract price negotiations;

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason certified cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (c), (d), or (e) of this clause.

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination—

(1) Of the acceptability of any subcontract terms or conditions;

(2) Of the allowability of any cost under this contract; or

(3) To relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR Subpart 44.3.

(j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations:

****TO BE COMPLETED AT TIME OF AWARD**

(End of clause)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address: <https://www.acquisition.gov/browse/index/far>

(End of clause)

Section J - List of Documents, Exhibits and Other Attachments

Exhibit/Attachment Table of Contents

DOCUMENT TYPE	DESCRIPTION	PAGES	DATE
Exhibit A	CDRLs		
Attachment 1	DD 254		
Attachment 2	CSP		
Attachment 3	Locator Form		
Attachment 4	OCI List		
Attachment 5	Data Transmittal Form		
Attachment 6	WD 2015-4279_Rev 27		
Attachment 7	Professional Engineering Qualifications		
Attachment 8	CI&IDS CSWF		
Attachment P1	P1 - Cost Summary Spreadsheet		
Attachment P2	P2 - Annual Fully Burdened Rates		
Attachment P3	P3 - Small Business Participation Commitment Doc		

Section K - Representations, Certifications and Other Statements of Offerors

CLAUSES INCORPORATED BY REFERENCE

52.209-7	Information Regarding Responsibility Matters	OCT 2018
52.222-38	Compliance With Veterans' Employment Reporting Requirements	FEB 2016
52.230-7	Proposal Disclosure--Cost Accounting Practice Change	APR 2005
52.203-7005	Representation Relating to Compensation of Former DoD Officials	SEP 2022
52.204-7007	Alternate A, Annual Representations and Certifications	OCT 2024
52.204-7008	Compliance With Safeguarding Covered Defense Information Controls	OCT 2016
52.219-7000	Advancing Small Business Growth	JUN 2023

CLAUSES INCORPORATED BY FULL TEXT

52.203-11 CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (SEP 2024)

(a) Definitions. As used in this provision—"Lobbying contact" has the meaning provided at 2 U.S.C. 1602(8). The terms "agency," "influencing or attempting to influence," "officer or employee of an agency," "person," "reasonable compensation," and "regularly employed" are defined in the FAR clause of this solicitation entitled "Limitation on Payments to Influence Certain Federal Transactions" (52.203-12).

(b) Prohibition. The prohibition and exceptions contained in the FAR clause of this solicitation entitled "Limitation on Payments to Influence Certain Federal Transactions" (52.203-12) are hereby incorporated by reference in this provision.

(c) Certification. The offeror, by signing its offer, hereby certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress on its behalf in connection with the awarding of this contract.

(d) Disclosure. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(e) Penalties. Submission of this certification and disclosure is a prerequisite for making or entering into this contract imposed by 31 U.S.C. 1352. Any person who makes an expenditure prohibited under this provision or who fails to file or amend the disclosure required to be filed or amended by this provision, shall be subject to civil penalties as provided in 31 U.S.C. 1352. An imposition of a civil penalty does not prevent the Government from seeking any other remedy that may be applicable.

(End of provision)

52.204-3 TAXPAYER IDENTIFICATION (OCT 1998)

(a) Definitions.

"Common parent," as used in this solicitation provision, means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

"Taxpayer Identification Number (TIN)," as used in this provision, means the number required by the Internal Revenue Service (IRS) to be used by the offeror in reporting income tax and other returns. The TIN may be either a Social Security Number or an Employer Identification Number.

(b) All offerors must submit the information required in paragraphs (d) through (f) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirement of 26 U.S.C. 6041, 6041A, and 6050M and implementing regulations issued by the IRS. If the resulting contract is subject to the reporting requirements described in Federal Acquisition Regulation (FAR) 4.904, the failure or refusal by the offeror to furnish the information may result in a 31 percent reduction of payments otherwise due under the contract.

(c) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(d) Taxpayer Identification Number (TIN).

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of a Federal Government;

☐ Other. State basis. _____

(e) Type of organization.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt):

☐ Corporate entity (tax-exempt):

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4;

☐ Other _____.

(f) Common Parent.

☐ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision.

☐ Name and TIN of common parent:

Name _____

TIN _____

52.204-5 WOMEN-OWNED BUSINESS (OTHER THAN SMALL BUSINESS) (OCT 2014)

(a) Definition. Women-owned business concern, as used in this provision, means a concern that is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

(b) Representation. [Complete only if the offeror is a women-owned business concern and has not represented itself as a small business concern in paragraph (c)(1) of FAR 52.219-1, Small Business Program Representation, of this solicitation.] The offeror represents that it ☐ is, ☐ is not a women-owned business concern.

52.204-8 ANNUAL REPRESENTATIONS AND CERTIFICATIONS (DEVIATION 2025-O0003/ DEVIATION 2025-O0004) (MAR 2025)

(a)(1) The North American Industry Classification System (NAICS) code for this acquisition is 541330.

(2) The small business size standard is \$47M.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ Paragraph (d) applies.

☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c) (1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless—

(A) The acquisition is to be made under the simplified acquisition procedures in Part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements--Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that—

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services--Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations--Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance--Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) [Reserved]

(xv) [Reserved]

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA- designated items.

(xix) [Reserved]

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan--Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran—Representation and Certification. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

X (i) 52.204-17, Ownership or Control of Offeror.

X (ii) 52.204-20, Predecessor of Offeror.

(iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

(iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Certification.

(v) 52.222-52 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Certification.

(vi) 52.227-6, Royalty Information.

(A) Basic.

(B) Alternate I.

(vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The Offeror has completed the annual representations and certifications electronically in SAM accessed through <https://www.sam.gov>. After reviewing the SAM information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause	Title	Date	Change
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Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.204-17 OWNERSHIP OR CONTROL OF OFFEROR (AUG 2020)

(a) Definitions. As used in this provision--

Commercial and Government Entity (CAGE) code means—

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

(b) The Offeror represents that it [____] has or [____] does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (c) and if applicable, paragraph (d) of this provision for each participant in the joint venture.

(c) If the Offeror indicates "has" in paragraph (b) of this provision, enter the following information:

Immediate owner CAGE code:

Immediate owner legal name: ____

(Do not use a ``doing business as" name)

Is the immediate owner owned or controlled by another entity?:

[____] Yes or [____] No.

(d) If the Offeror indicates ``yes" in paragraph (c) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code:

Highest-level owner legal name:

(Do not use a ``doing business as" name)

(End of provision)

52.204-20 Predecessor of Offeror (AUG 2020)

(a) Definitions. As used in this provision--

Commercial and Government Entity (CAGE) code means--

- (1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or
- (2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

(b) The Offeror represents that it [____] is or [____] is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(c) If the Offeror has indicated "is" in paragraph (b) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name: ____.

(Do not use a “doing business as” name).

(End of provision)

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services--Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications--Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) Definitions. As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) Representations. The Offeror represents that--

(1) It [____] will, [____] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that--

It [____] does, [____] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

(a) Definitions. As used in this clause--

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means--

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means--

- (1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;
- (2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled--
 - (i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or
 - (ii) For reasons relating to regional stability or surreptitious listening;
- (3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);
- (4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);
- (5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or
- (6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of the producer or provider of covered telecommunications equipment or services used by the entity that excludes the need to include an internal or third-party audit.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

(b) Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. The Contractor is prohibited from providing to the Government any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract, or extending or renewing a contract, with an entity that uses any equipment, system, or service that uses covered

telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract.

(c) Exceptions. This clause does not prohibit contractors from providing--

(1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) Reporting requirement.

(1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the Contracting Officer, unless elsewhere in this contract are established procedures for reporting the information; in the case of the Department of Defense, the Contractor shall report to the website at <https://dibnet.dod.mil>. For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at <https://dibnet.dod.mil>.

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within one business day from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: Any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (b)(2), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION (OCT 2020)

(a) Definitions. As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

(c) Representations.

(1) The Offeror represents that it [____] does, [____] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it [____] does, [____] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.209-5 CERTIFICATION REGARDING RESPONSIBILITY MATTERS (AUG 2020)

(a)(1) The Offeror certifies, to the best of its knowledge and belief, that-

(i) The Offeror and/or any of its Principals-

(A) Are () are not () presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have () have not (), within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks “have”, the offeror shall also see 52.209-7, if included in this solicitation); and

(C) Are () are not () presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision; and

(D) Have , have not , within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(1) Federal taxes are considered delinquent if both of the following criteria apply:

(i) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(2) Examples. (i) The taxpayer has received a statutory notice of deficiency, under I.R.C. Sec. 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. Sec. 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. Sec. 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(ii) The Offeror has () has not (), within a three-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) Principal, for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) Definitions. As used in this provision--

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means--

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror () has () does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked “has” in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in--

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-11 REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub.L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that --

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that --

(1) It is [] is not [] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is [] is not [] a corporation that was convicted of a felony criminal violation under any Federal law within the preceding 24 months,

52.209-12 CERTIFICATION REGARDING TAX MATTERS (OCT 2020)

(a) This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.

(b) If the Offeror is proposing a total contract price that will exceed \$5.5 million (including options), the Offeror shall certify that, to the best of its knowledge and belief, it--

(1) Has [] filed all Federal tax returns required during the three years preceding the certification;

(2) Has not [] been convicted of a criminal offense under the Internal Revenue Code of 1986; and

(3) Has not [], more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End of provision)

52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (FEB 2024)

(a) Definitions. As used in this provision--

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically

disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern--

(1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran or;

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) Service-disabled veteran, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that--

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern--

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that--

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by--

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern--

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern--

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is [insert NAICS code].

(2) The small business size standard is [insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations.

(1) The offeror represents as part of its offer that--

(i) It [____] is, [____] is not a small business concern; or

(ii) It [____] is, [____] is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it [____] is, [____] is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [____] is, [____] is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it [____] is, [____] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it [____] is, [____] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(6) Veteran-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [____] is, [____] is not a veteran-owned small business concern.

(7) SDVOSB concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.] The offeror represents as part of its offer that it [____] is, [____] is not an SDVOSB concern.

(8) SDVOSB joint venture eligible under the SDVOSB Program. [Complete only if the offeror represented itself as a SDVOSB concern in paragraph (c)(7) of this provision]. The offeror represents as part of its offer that it [____] is, [____] is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(9) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that--

(i) It [____] is, [____] is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It [____] is, [____] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Notice. Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall—

(1) Be punished by imposition of fine, imprisonment, or both;

(2) Be subject to administrative remedies, including suspension and debarment; and

(3) Be ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

52.230-1 COST ACCOUNTING STANDARDS NOTICES AND CERTIFICATION (JUN 2020)

Note: This notice does not apply to small businesses or foreign governments. This notice is in three parts, identified by Roman numerals I through III.

Offerors shall examine each part and provide the requested information in order to determine Cost Accounting Standards (CAS) requirements applicable to any resultant contract.

If the offeror is an educational institution, Part II does not apply unless the contemplated contract will be subject to full or modified CAS coverage pursuant to 48 CFR 9903.201-2(c)(5) or 9903.201-2(c)(6), respectively.

I. Disclosure Statement -- Cost Accounting Practices and Certification

(a) Any contract in excess of the lower CAS threshold specified in Federal Acquisition Regulation (FAR) 30.201-4(b) resulting from this solicitation will be subject to the requirements of the Cost Accounting Standards Board (48 CFR chapter 99), except for those contracts which are exempt as specified in 48 CFR 9903.201-1.

(b) Any offeror submitting a proposal which, if accepted, will result in a contract subject to the requirements of 48 CFR Chapter 99 must, as a condition of contracting, submit a Disclosure Statement as required by 48 CFR 9903.202. When required, the Disclosure Statement must be submitted as a part of the offeror's proposal under this solicitation unless the offeror has already submitted a Disclosure Statement disclosing the practices used in connection with the pricing of this proposal. If an applicable Disclosure Statement has already been submitted, the offeror may satisfy the requirement for submission by providing the information requested in paragraph (c) of Part I of this provision.

Caution: In the absence of specific regulations or agreement, a practice disclosed in a Disclosure Statement shall not, by virtue of such disclosure, be deemed to be a proper, approved, or agreed-to practice for pricing proposals or accumulating and reporting contract performance cost data.

(c) Check the appropriate box below:

* (1) *Certificate of Concurrent Submission of Disclosure Statement.* The offeror hereby certifies that, as a part of the offer, copies of the Disclosure Statement have been submitted as follows:

(i) Original and one copy to the cognizant Administrative Contracting Officer (ACO) or cognizant Federal agency official authorized to act in that capacity (Federal official), as applicable; and

(ii) One copy to the cognizant Federal auditor.

(Disclosure must be on Form No. CASB DS-1 or CASB DS-2, as applicable. Forms may be obtained from the cognizant ACO or Federal official.)

Date of Disclosure Statement: ____ Name and Address of Cognizant ACO or Federal Official Where Filed: ____

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the Disclosure Statement.

* (2) *Certificate of Previously Submitted Disclosure Statement.* The offeror hereby certifies that the required Disclosure Statement was filed as follows:

Date of Disclosure Statement: ____ Name and Address of Cognizant ACO or Federal Official Where Filed: ____

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the applicable Disclosure Statement.

* (3) *Certificate of Monetary Exemption.* The offeror hereby certifies that the offeror, together with all divisions, subsidiaries, and affiliates under common control, did not receive net awards of negotiated prime contracts and subcontracts subject to CAS totaling \$50 million or more in the cost accounting period immediately preceding the period in which this proposal was submitted. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

* (4) *Certificate of Interim Exemption.* The offeror hereby certifies that

(i) the offeror first exceeded the monetary exemption for disclosure, as defined in (3) of this subsection, in the cost accounting period immediately preceding the period in which this offer was submitted and

(ii) in accordance with 48 CFR 9903.202-1, the offeror is not yet required to submit a Disclosure Statement. The offeror further certifies that if an award resulting from this proposal has not been made within 90 days after the end of that period, the offeror will immediately submit a revised certificate to the Contracting Officer, in the form specified under subparagraph (c)(1) or (c)(2) of Part I of this provision, as appropriate, to verify submission of a completed Disclosure Statement.

Caution: Offerors currently required to disclose because they were awarded a CAS-covered prime contract or subcontract of \$50 million or more in the current cost accounting period may not claim this exemption (4). Further, the exemption applies only in connection with proposals submitted before expiration of the 90-day period following the cost accounting period in which the monetary exemption was exceeded.

II. Cost Accounting Standards -- Eligibility for Modified Contract Coverage

If the offeror is eligible to use the modified provisions of 48 CFR 9903.201-2(b) and elects to do so, the offeror shall indicate by checking the box below. Checking the box below shall mean that the resultant contract is subject to the Disclosure and Consistency of Cost Accounting Practices clause in lieu of the Cost Accounting Standards clause.

* The offeror hereby claims an exemption from the Cost Accounting Standards clause under the provisions of 48 CFR 9903.201-2(b) and certifies that the offeror is eligible for use of the Disclosure and Consistency of Cost Accounting Practices clause because during the cost accounting period immediately preceding the period in which this proposal was submitted, the offeror received less than \$50 million in awards of CAS-covered prime contracts and subcontracts. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

Caution: An offeror may not claim the above eligibility for modified contract coverage if this proposal is expected to result in the award of a CAS-covered contract of \$50 million or more or if, during its current cost accounting period, the offeror has been awarded a single CAS-covered prime contract or subcontract of \$50 million or more.

III. Additional Cost Accounting Standards Applicable to Existing Contracts

The offeror shall indicate below whether award of the contemplated contract would, in accordance with subparagraph (a)(3) of the Cost Accounting Standards clause, require a change in established cost accounting practices affecting existing contracts and subcontracts.

(____) yes(____) no

(End of Provision)

52.230-7 PROPOSAL DISCLOSURE—COST ACCOUNTING PRACTICE CHANGES (APR 2005)

The offeror shall check “yes” below if the contract award will result in a required or unilateral change in cost accounting practice, including unilateral changes requested to be desirable changes.

☐ Yes ☐ No

If the offeror checked “Yes” above, the offeror shall--

(1) Prepare the price proposal in response to the solicitation using the changed practice for the period of performance for which the practice will be used; and

(2) Submit a description of the changed cost accounting practice to the Contracting Officer and the Cognizant Federal Agency Official as pricing support for the proposal.

252.227-7017 IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS (JAN 2025)

(a) Definitions. As used in this provision--

Computer software is defined in--

(1) The 252.227-7014, Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation, clause of this solicitation; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

SBIR/STTR data is defined in the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

Technical data is defined in--

(1) The 252.227-7013, Rights in Technical Data--Other Than Commercial Products and Commercial Services, clause of this solicitation; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

(b) The identification and assertion requirements in this provision apply only to technical data, including computer software documentation, or computer software to be delivered with other than unlimited rights. For contracts to be awarded under the Small Business Innovation Research (SBIR) Program or Small Business Technology Transfer Program (STTR) Program, these requirements apply to SBIR/STTR data that will be generated under the resulting

contract and will be delivered with SBIR/STTR data rights and to any other data that will be delivered with other than unlimited rights. Notification and identification are not required for restrictions based solely on copyright.

(c) Offers submitted in response to this solicitation shall identify, to the extent known at the time an offer is submitted to the Government, the technical data or computer software that the Offeror, its subcontractors or suppliers, or potential subcontractors or suppliers, assert should be furnished to the Government with restrictions on use, release, or disclosure.

(d) The Offeror's assertions, including the assertions of its subcontractors or suppliers or potential subcontractors or suppliers, shall be submitted as an attachment to its offer in the following format, dated and signed by an official authorized to contractually obligate the Offeror:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software.

The Offeror asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted:

Technical data or computer software to be furnished with restrictions *	Basis for assertion **	Asserted rights category ***	Name of person asserting restrictions ****
(LIST) *****	(LIST)	(LIST)	(LIST)

* For technical data (other than computer software documentation) pertaining to items, components, or processes developed at private expense, identify both the deliverable technical data and each such items, component, or process. For computer software or computer software documentation identify the software or documentation.

** Generally, development at private expense, either exclusively or partially, is the only basis for asserting restrictions. For technical data, other than computer software documentation, development refers to development of the item, component, or process to which the data pertain. The Government's rights in computer software documentation generally may not be restricted. For computer software, development refers to the software. Indicate whether development was accomplished exclusively or partially at private expense. If development was not accomplished at private expense, or for computer software documentation, enter the specific basis for asserting restrictions.

*** Enter asserted rights category (e.g., government purpose license rights from a prior contract, rights in SBIR/STTR data generated under a contract resulting from this solicitation or under another contract, limited, restricted, or government purpose rights under a contract resulting from this solicitation or under a prior contract, or specially negotiated licenses).

****Corporation, individual, or other person, as appropriate.

*****Enter "none" when all data or software will be submitted without restrictions.

Date _____

Printed Name and Title _____

Signature _____

(End of identification and assertion)

(e) An offeror's failure to submit, complete, or sign the notification and identification required by paragraph (d) of this provision with its offer may render the offer ineligible for award.

(f) If the Offeror is awarded a contract, the assertions identified in paragraph (d) of this provision shall be listed in an attachment to that contract. Upon request by the Contracting Officer, the Offeror shall provide sufficient information to enable the Contracting Officer to evaluate any listed assertion.

(End of provision)

KTXT.209-9511 CONFLICT OF INTEREST REPRESENTATION (NAVAIR) (FEB 2025)

(a) This solicitation contains conflict of interest disclosure requirements to maintain the integrity of the source selection.

(1) Subparts 9.5 and 3.1 of the Federal Acquisition Regulation (FAR) prohibit organizational and personal conflicts of interest in Government procurements and establish the following principle: "Government business shall be conducted in a manner above reproach. . . . The general rule is to avoid strictly any conflict of interest or even the appearance of a conflict of interest in Government contractor relationships." FAR 3.101-1.

(2) Actual or potential conflicts of interest may arise, among other circumstances, when an Offeror has or may have unequal access to nonpublic information relevant to the solicitation or when a current or former Government employee may be negotiating for employment or be employed by an Offeror or any of an Offeror's subcontractors, partners, or affiliates. Unequal access may occur through communications (e.g., verbal, written, or electronic means) with current or former Government employees or through current or previous contracts that the Offeror or its subcontractors, partners, or affiliates have or had with the Government.

(b) Conflicts of Interest Prior to the Receipt of Proposals. Prior to and commensurate with the due date for receipt of proposals, the offeror shall comply as follows. Consistent with FAR Subparts 9.5 and 3.1 and as applicable to this solicitation, if the Offeror identifies for itself (or any of its subcontractors, partners, or affiliates); or has information that any other Offeror/potential Offeror has or may have an actual or potential conflict of interest, the Offeror shall check the appropriate box(es) below and shall include the supplemental information required per paragraph (d) of this text. Otherwise, the Offeror must affirmatively represent that no such actual or potential conflicts of interest are known or should have been known commensurate with the due date for receipt of proposals.

☐ Actual or potential conflicts of interest for the Offeror are being disclosed; and/or

☐ Actual or potential conflicts of interest for another Offeror/potential Offeror are being disclosed; or

☐ There are no actual or potential conflicts of interest to disclose.

(c) Conflicts of Interest After the Receipt of Proposals. After the due date for receipt of proposals, the offeror shall comply as follows. Consistent with FAR Subparts 9.5 and 3.1 and as applicable to this solicitation, if the offeror identifies for itself (or any of its subcontractors, partners, or affiliates); or has information that any other Offeror/potential Offeror has or may have an actual or potential conflict of interest, the Offeror shall within 3 business days of conflict identification provide the Contracting Officer an updated representation by checking the appropriate box(es) below and shall include the supplemental information required per paragraph (d) of this text.

☐ Actual or potential conflicts of interest for the Offeror are being disclosed; and/or

☐ Actual or potential conflicts of interest for another Offeror/potential Offeror are being disclosed

(d) If the Offeror represents that there are actual or potential conflicts of interest pursuant to either paragraph (b) or paragraph (c), see LTXT-209-9512 for additional requirements.

(e) The Offeror's compliance with the representation requirements of paragraphs (b) and (c) will be reviewed as part of the Contracting Officer's responsibility determination and will not be considered as part of the evaluation conducted per Section M. If the Contracting Officer determines that the Offeror has not complied with the above

representation requirements, then the Offeror may be found to be not responsible and therefore ineligible for award in accordance with the best interests of the Government.

Section L - Instructions, Conditions and Notices to Bidders

PROPOSAL INSTRUCTIONS

L – 1 CONTENT OF PROPOSALS (SERVICES)

PART A GENERAL INSTRUCTIONS

1.0 GENERAL

The Offeror must respond to all requirements of the solicitation and not alter or rearrange the solicitation. The Offerors are advised that the Government may incorporate any portions of an Offeror's proposal into the resulting contract.

In presenting material in the proposal, the Offeror are advised that quality of information is more important than quantity. Clarity, brevity, and logical organization shall be emphasized during proposal preparation. Statements that the prospective Offeror understands, can comply with, or will comply with, the specifications, and paraphrasing the requirements or parts thereof without supporting information are considered inadequate by the Government, and may result in assessing weaknesses and/or deficiencies.

Offerors must include any data that illustrates the adequacy of the various assumptions, approaches, and solutions to problems. Failure to address a specific factor or element clearly may be considered a deficiency. Unnecessarily elaborate brochures or other presentation materials beyond that sufficient to present a complete and effective proposal is neither necessary nor desired.

The Government advises the Offerors that taking exception or deviating from any term or condition of the RFP may result in the assessment of a deficiency to the proposal.

Throughout these instructions, a "principal subcontractor" is defined as a subcontractor who provides at least 20% of the proposed total Cost/Price (excluding the Offeror's profit/fee), for the contract or provides one or more Key Personnel. "JV Team member" is defined as one of the entities that make up a joint venture (JV).

2.0 ELECTRONIC PROPOSAL FORMAT

This section is intended to provide information to the Offeror on the electronic format and application software to be used for submitting proposals. Do not submit hardcopy proposals for this solicitation. Use of the software and procedures described in this section will reduce the amount of time and effort needed to receive and upload proposals and will ensure the proposals received are suitable for reading electronically during evaluation.

Proposals must be formatted using a Times New Roman 12 pt Normal font (no reduction permitted), single-spaced with 1-inch margins all around, and formatted for standard 8.5 x 11 inch paper. All pages shall be numbered with section and page numbers. Graphs and Tables shall be presented in no smaller than a 10 pt font and should contain a grid, which allows values to be read directly from the graph. Graphs and Tables that fit on an 8.5" X 17" or 11" X 17" printed page will be counted as one page. Drawings and illustrations do not need to be placed in a grid (box) but follow the same font type and size as tables and graphs. Graphic resolution, including such data as tables or charts, should be consistent with the purpose of the data presented. When using Government supplied templates (e.g. Attachment P1, Attachment P2, Attachment P3), no modifications to font or scaling required. All proposal documents must be compatible with the Microsoft Office 2016 and/or the latest Adobe Acrobat Reader Portable Document Format (PDF), where applicable.

The Offeror is responsible for ensuring electronic proposals are virus free. Offerors may use hyperlinks within and among proposal volumes that do not include price information. However, there shall be no links from any other volume into the Price Volume or into any other portion of the proposal that contains price information. In order to reduce file sizes, the Offeror shall not embed sound or video (e.g., MPEG) files within the proposal submission. The Offeror is encouraged to simplify the color palette used in creating figures; and minimize size of graphics files; and avoid scanned images.

The Offeror will provide the proposal as electronic files fully compatible with Microsoft 2016.

3.0 PROPOSAL CONTENT AND VOLUMES

The Offeror must present proposal information in a manner that facilitates a one-to-one comparison between the information presented and this Proposal Instruction. Proposal information must be structured such that its Volume/paragraph number matches the Proposal Instructions Volume/paragraph number provided in section “Part B Specific Instructions” to which it is responding, although the Offeror may add lower tier subparagraphs. The Offeror must provide reasons it will not provide information for a particular paragraph. The proposal information instructions are structured by paragraph numbers where first, second, third, and fourth parts correspond to the volume, section, and element, etc., in the Offeror’s proposal.

Each volume of the proposal shall be submitted as specified in the table below. The table below supersedes the copies requested in Block 9 of the Standard Form (SF) 33. Recommended page count for each volume, if any, are also specified in the table below; title and table of contents pages do not count towards the recommended page count. Glossaries of abbreviations and acronyms are also excluded from the recommended page count.

Information submitted as an Annex to the proposal includes manuals, specifications, plans, procedures, and policies that exist as an official document of the company or facility, as well as other information requested in Part B Specific Instructions. Recommended page count for Annexes, if any, are specified below. The authorized Annexes are summarized in the table below.

Proposal Content

Proposal Organization and Page Limits:

Volume Number	Section	Volume Title	Recommended Page Count	Copies Required
1.0		TECHNICAL	See below	Electronic Submission Only
	1.1	Sample Task	10 pages	
	1.2	Key Personnel Resumes	2 pages per resume	
	1.3	Transition-In Plan	5 pages	
2.0		Small Business Participation	See below	Electronic Submission Only
	2.1	Small Business Participation Commitment Document	3 pages	
	2.2	Small Business Subcontracting Plan	No page limit	

3.0		COST/PRICE	No page limit	Electronic Submission Only
Annex 1		Organizational Conflicts of Interest (OCI) Mitigation Plan	No page limit	Electronic Submission Only

Each volume shall contain the following information:

- Cover and title page (not included in page count)
- Title of proposal and proposal number as applicable
- Offeror's name, address, and POC
- RFP number
- Proposal volume number
- Copy number (if applicable)
- Table of contents (The table of contents must provide sufficient detail to enable easy location of important elements)

The Offeror shall submit a Cross Reference Matrix (CRM) for the Technical Volume, similar to the example below, to help ensure that all solicitation requirements are addressed and to facilitate the evaluators' review of the Offeror's proposal. The CRM should be a single integrated matrix and cross-reference the proposal volumes and paragraphs to specific RFP requirements, as well as other parts of the proposal that contain relevant information. The Offeror's CRM may be identical to the example below or revised such as to add columns to indicate the page number on which information may be found, identify where other relevant information in the proposal is located, or provide other comments. The CRM does not count against any of the proposal recommended page limitations.

EXAMPLE OF A CROSS REFERENCE MATRIX (CRM)

Section L – Proposal Instructions	Government SOW/PWS	Section M – Evaluation Factor	Offeror's Proposal Reference	CLIN Reference
Volume 1 Technical	Example: Para 3.1 Note: This column shall address all paragraphs in Sections xx and xy of the SOW/PWS.	2.A	Provide reference to Offeror's Proposal Volume I – Technical. Example: Refer to appropriate page number in Offeror's written proposal	
Volume 1 Technical				
Volume 1 Technical				

Questions regarding the solicitation should be submitted directly to the PCO and the Contract Specialist at the following: jennifer.l.lundburg.civ@us.navy.mil and mary.k.watters.civ@us.navy.mil. Offerors shall not include any proprietary information in a question, because the Government will provide the question and answer to all potential offerors. All questions must be submitted no later than 2:00 PM Eastern Time on the 14th calendar day after the date that this solicitation is issued. Questions received after the deadline above may be answered at the Government's sole discretion.

4.0 ELECTRONIC PROPOSAL SUBMISSION:

All volumes of the proposal shall be submitted electronically through the Solicitation Module of the Procurement Integrated Enterprise Environment (PIEE) at <https://piee.eb.mil>. No other submissions, such as mail, hand-carried, proprietary, or other electronic system (e.g., DOD SAFE) will be evaluated. In the event of a PIEE system outage

preventing the offeror from submitting a timely proposal, see paragraph 4.1 below. All proposals received after the exact time specified for receipt shall be treated as late submissions. For instructions on how to post an offer, please refer to the Posting Offer demo: https://piectraining.eb.mil/wbt/sol/Posting_Offer.pdf.

It is the Offeror's responsibility to follow the registration instructions found on the PIEE website. It is advised that all potential prime Offerors and their subcontractors ensure the proper company points of contact are registered in the site based on their CAGE codes and have the proper roles assigned well in advance of the solicitation closing date. Subcontractors are only required to register in PIEE if they want to submit their proprietary proposal information separate from the prime offer. Documents submitted by the subcontractor directly to the Government must have the prime contractor's name, CAGE, and RFP number on the first page of the document.

It is also the Offeror's responsibility to confirm receipt of proposals and all electronic communications. Screen shots of the submission should also be taken to validate a submission was accepted in the PIEE system against this solicitation. The Government is not obligated to search for incorrectly submitted proposals in PIEE.

The submission date for all Volumes shall be no later than the date and time specified in Bloc52k 9 of the SF 33 of the RFP.

4.1 In the event of a PIEE System outage within 24 hours of the proposal due date that prevents the offeror from submitting a timely proposal, the Contractor shall immediately notify the Contracting Officer. This notification shall occur prior to the proposal submission deadline and shall be made in writing. The notification may be in conjunction with verbal notification, but verbal notification alone shall not be sufficient. The Offeror shall obtain written approval from the Contracting Officer to submit the proposal via an alternate method. The Contractor shall have 24 hours to provide their proposal upon contracting officer approval. In the event the Contractor does not provide notification to the contracting officer until after the closing date and time, the contracting officer will follow the procedures identified in the Federal Acquisition Regulation (FAR) 15.208.

5.0 CLASSIFIED DATA

All proposals must be UNCLASSIFIED.

6.0 SOLICITATION CHANGES

For notice of any changes and additional information provided by the Government for the solicitation, please go to <https://beta.sam.gov/> and <https://piee.eb.mil>

PART B SPECIFIC INSTRUCTIONS

1.0 VOLUME 1: TECHNICAL

The Offeror shall provide all information and data required to conduct a thorough and complete technical evaluation. The Offeror shall address the following in the proposal:

1.1 Sample Task

Sample Task: TO BE INCLUDED IN THE FINAL SOLICITATION

1.2 Key Personnel Resumes

KEY PERSONNEL LABOR CATEGORY	LEVEL	BLS SOC	# OF PERSONNEL REQUIRED
Electrical Engineers	Senior	17-2071	One (1)
General and Operations Managers	Senior	11-1021	One (1)
Logisticians	Journeyman	13-1081	One (1)

For all proposed current or contingent Key Personnel, the Offeror shall provide a resume of the work assignments, training, etc., that demonstrates the experience and specialized qualifications of each key person proposed. As stated in the cost section, 2.0 below, for key personnel contingent hires, the Offeror shall, in addition to the resume, provide a copy of their contingent offer letters, signed by the contingent hires and outlining salary information. If this contingent Offeror letter is not provided under the cost section, the Government will assign a deficiency in the technical workforce section. No prospective hires may be proposed for Key Personnel.

Resumes shall contain, at a minimum, the following information:

- Employee name
- Month/Years of employment experience in chronological order including narrative description of duties and responsibilities
- Current position, title and employer
- Educational history
- Institution name, degree or certification earned, and year for all degrees or certifications earned
- Current level of security clearance and status (final, interim, or pending)

The Government may check educational background to verify degrees or certifications received. If the qualification (i.e. education, experience) does not readily or easily compare to the minimum qualification stated in the SOW the Offeror shall provide an explanation as to the equality of the proposed qualification to meet the minimum qualification.

1.3. Transition-In Plan

The services under this solicitation are vital to the Government and must be continued without interruption. The Offeror is required to submit a written narrative explaining a transition-in plan based on a 45 day transition that ensures a smooth workplace changeover from an incumbent with no loss of service and minimal loss of corporate knowledge. The plan should take into consideration the following elements as well as any additional elements deemed necessary by the Offeror:

- (a) Work Turnover - The Offeror shall provide a plan of action to effectively transfer work, which may be in process when the current contract expires, from the incumbent to the successful Offeror.
- (b) Training - The Offeror shall provide a plan of action to implement personnel training needed during the transition period to ensure continuity between the services provided by the incumbent and the successful Offeror.
- (c) Risk Mitigation strategies - The Offeror shall provide a plan of action to mitigate contract performance risks encountered during the transition period. As part of the transition risk mitigation strategy, the Offeror shall identify and address all significant foreseeable risks.
- (d) Security Requirement to include OPSEC, facility clearances, and base access for personal security clearances. The Offeror shall explain the status of the proposed individual's clearance and if the clearance is not active, the Offeror's plan to get the individual the required active clearance level by the deadline noted in the SOW.

2.0 VOLUME 2: SMALL BUSINESS PARTICIPATION

Volume Content:

This volume will be comprised of the Small Business Participation Commitment Document and the Small Business Subcontracting Plan.

2.1 Small Business Participation Commitment Document

Each Prime Contractor (both Large and Small Businesses) shall complete the Small Business Participation Commitment Document (SBPCD) provided as Attachment P3 and submit it as a part of VOLUME 2 – Small Business. The SBPCD shall identify a minimum small business participation goal of 15% of the total contract value. Small Business primes may meet the minimum 15% goal using work they propose to perform themselves along with any SB subcontractors.

The SBPCD shall provide goals for each of the following categories: Small Business (SB), Small Disadvantaged Business (SDB), Women-Owned Small Business (WOSB), Veteran-Owned Small Business (VOSB), Service-Disabled Veteran-Owned Small Business (SDVOSB), and HUBZone Small Business (HUBZone). Goals of 0% will not be accepted. The SBPCD shall also identify one or more small business participants under item 3 of the SBPCD. Each small business participant identified under item 3 of the SBPCD must have an active registration in SAM or provide a written certification of its small business or socio-economic status applicable under the size standard assigned to this procurement (if the SB is the Prime) or under the size standard assigned by the Prime (if the SB is the subcontractor).

The SBPCD shall be incorporated into the contract as an attachment in Section J. The offeror shall ensure its proposal information complies with Part A, L.1.0 above and is sufficient for the Government to evaluate in accordance with Section M.

The SBPCD at the IDIQ-level is separate from, but shall be consistent with, the Subcontracting Plan (as required from Large Businesses). Large Business Offerors are advised that while the SB Subcontracting Plan must be submitted to be eligible for award, the acceptability of the content of that plan is part of the responsibility determination assessment and not part of the evaluation.

2.2 Small Business Subcontracting Plan

Large Business Offerors shall provide their SB Subcontracting Plans conforming to the requirements of FAR 19.7 and DFARS 219.7 unless there is an already approved comprehensive SB Plan.

The Subcontracting Plan of the successful Offeror will be reviewed and approved by the PCO prior to contract award. See FAR 19.702(a) (1) Statutory Requirements, regarding failure of the apparent successful Offeror to negotiate and submit a Subcontracting Plan acceptable to the Contracting Officer. The successful Offeror's approved Subcontracting Plan will be incorporated into the resultant contract as an attachment in Section J.

3.0 VOLUME 3: COST/PRICE PROPOSAL

3.1 Volume Content

(a) This Volume shall contain the Contract Compliance information specified below as follows:

i. Offeror Summary Table: The Offeror shall complete the table below. The Offeror should include all subcontractors and team members who will be involved with the performance or management of the contract and list all sites where the work will be performed. If a JV teaming or subcontracting arrangement is proposed, identify the work share, distribution elements, and ratios that each contractor will perform using the table below. Also provide a definition of the legal relationship between the entities if it is other than a Prime/subcontractor relationship. Finally, provide the subcontract type between the Prime and each subcontractor.

Contractor Name (Indicate Prime, Team Member or Sub)	Place of Performance/DUNS # if applicable	Brief Work Description and/or Program Responsibility	% of Total Proposed Price	Contract Type with Subcontractor

- ii. Signed SF33 or SF1449 for basic solicitation and each amendment, including completion of any RFP clause or provision that requires a fill-in or response.
- iii. Signed Representations, Certifications, and Acknowledgements and/or System for Award Management (SAM).
- iv. Guarantee the length of proposal validity (at least 180 days after proposal due date).

(b) OCI Disclosure and Mitigation Plans (if applicable)

The offeror shall include an OCI disclosure and OCI Mitigation Plan as Annex 1, if applicable based on offeror's completion of NAVAIR Provision KTXT.209-9511.

(c) This Volume shall also contain a copy of Section B with the Contract Line Item (CLIN) Unit Prices and, for evaluation purposes, the Total Prices filled in using the estimated quantities value in the solicitation and the instructions below. In accordance with Section B of the solicitation, Offerors shall insert their proposed prices for the following CLINs.

0001 Labor (CPFF)
0006 ODCs (COST)

All other CLINs shall not be priced in Section B as they are Not Separately Priced (NSP). Section B prices shall be provided within the Price/Cost proposal and separately in one digital data copy in MS Office 2016 Excel format. Within all Excel spreadsheets, the Offeror shall use formulas and functions to the maximum extent possible and avoid using output type "value only" cells. If links are utilized, supply those referenced files. Spreadsheets shall not be protected.

(d) All Cost/Price and Cost/Price supporting information shall be contained in the Cost/Price proposal. No price or pricing information shall be included in any other technical volume including cover letters. Offeror's are responsible for submitting sufficient information to enable the Government to fully evaluate their cost/price proposal. The Government will utilize the Offerors proposed cost/price proposal to establish B-1 Negotiated Rates and to issue Streamlined Term task orders.

(e) Government Agency Information: Offerors shall provide the mailing address, telephone number, email addresses and facility codes for the Offeror's local Defense Contract Management Agency (DCMA), Defense Contract Audit Agency (DCAA), and Government Paying Office. If the Offeror's Administrative Contracting Officer (ACO) at the DCMA is known, Offerors shall provide the name and contact information for that individual.

3.2 Ground Rules and Assumptions:

(a) As this is a competitive acquisition with adequate price competition anticipated, certified cost or pricing data in accordance with FAR 15.403-1 is not required. However, in the event that adequate price competition does not exist after receipt of proposals, the Government reserves the right to request additional cost or pricing data as necessary from both the Offeror and subcontractors. Further, the Offeror may be required to provide a Certificate of Current Cost or Pricing Data prior to award, pursuant to FAR 15.406-2.

(b) The Offeror shall provide sufficient information to support its Cost/Price as well as an explanation of all ground rules and assumptions that affect the Cost/Price estimates.

(c) If subcontractors are proposed, they shall provide the same information required for the prime contractor, including a breakdown of their direct, indirect rates, etc., unless otherwise noted in the Cost/Price Information section below. Subcontractors shall complete the Attachment P1 with a buildup of their rates and provide their fully burdened labor rates in the Attachment P2 as instructed for the Prime. Subcontractors that are proposed on a Time-and-Materials or fixed price basis (e.g. FFP, T&M, etc.) are not required to provide the same level details as required under cost reimbursable proposals, but shall still provide an itemized breakout of pricing that is customary with the contract type proposed.

- (d) The proposed employees should be identified as either:
1. Current – is an individual who is currently employed by the Offeror
 2. Contingent – is an individual who has committed, under a signed letter of commitment, to being employed by the offeror if the offeror is awarded the contract.
 3. Prospective – is an individual that the offeror has committed to hiring if the offeror is awarded the contract whose identity may not be known until after contract award.

3.3 Cost/Price Information:

Offerors shall submit their fully completed cost/price proposal utilizing the Cost Summary Spreadsheet Format (**Attachment P1**). The spreadsheet shall be formatted on letter size (8.5 X 11) paper and shall be unprotected and unlocked, with formulae intact to show mathematical operations. The Offeror shall use the CLIN Summary tab to breakout total proposed costs by CLIN.

Offerors shall complete **Attachment P2** (Fully Burdened Labor Rates), detailing the fully burdened labor rates for all prime contractors and their subcontractor personnel. Fully burdened labor rates are defined as direct labor rates plus all applicable burdens, to include indirect rates, fee, and subcontractor pass-through costs where applicable. For subcontractor labor, the fully burdened labor rates shall be inclusive of any pass-through charges (e.g., subcontractor handling, fixed fee on subcontractor labor, etc.) applied by the prime contractor. Proposed fully burdened labor costs may be subject to the NAVAIR labor tripwire identified in Section M. Offerors that propose a fully burdened per employee labor cost exceeding the labor tripwire shall provide rationale in their cost proposal narrative section that justifies the reasonableness of the tripwire cost for the applicable employees.

The total estimated Cost Plus Fixed Fee (CPFF) of this requirement is at a minimum of \$41.72M. The estimate includes Labor and fee but does not include ODCs. Any proposal that does not meet the minimum dollar amount established shall include an explanation as to why the offeror is below the minimum and why the offeror would like the Government to consider this explanation as a justification for the deviation from the minimum.

(a) The Government is not soliciting any investments. However, in order for the Government to properly assess a proposed cost/price that appears low due to a corporate decision to absorb costs, e.g., lower than usual burdens or rates, the Offeror shall fully identify and explain any such investments.

(b) Direct/Indirect Rates: The Offeror shall submit Forward Pricing Rate Agreements (FPRAs), and Collective Bargaining Agreements (CBAs) as applicable for all proposed personnel. The Offeror shall identify whether the labor rates proposed are FPRAs, CBAs, ACO/DCAA recommended rates (FPRRs), or Offeror proposed rates (FPRPs). The Offeror shall propose in compliance with the current hourly rate set forth in the Department of Labor Wage Determination provided in Section J as applicable. The Offeror shall provide Defense Contract Audit Agency (DCAA) Information/Payroll Verification information as follows: A DCAA point of contact, with a current e-mail address, must be provided for the prime and each subcontractor. The Offeror and proposed subcontractors shall provide the most current DCAA Provisional Billing Rate Approval Letter, DCAA Final Billing Rate Approval Letter, and/or DCAA Forward Pricing Rate Agreement recommendation, payroll verification for currently employed proposed personnel, and any other information necessary to substantiate the rates proposed. Payroll verification shall consist of a form containing the title, direct labor rate, and a signed certification by an authorized representative of the company that the information contained in the form is correct. For key personnel contingent hires, the offeror shall provide a copy of contingent offer letters, signed by the contingent hires outlining salary information. For any prospective hires for non-key personnel, the Offeror shall provide information to substantiate the rates proposed. All contingent hires shall have a letter of intent submitted under the Cost Volume. The letter of intent is a separate written agreement signed by the potential employee(s) to work for the Offeror effective at contract award. Any proposed consultants shall have a consultant agreement substantiating the rates proposed. If a composite rate or other pricing methodology (e.g. cost estimating relationships) is utilized, the Offeror shall demonstrate how those rates were developed. Subcontractors and team members shall provide this information either separately or included in the Offeror's submission of this document.

If any of the rates utilized by the Offeror or any subcontractors differ from the DCAA information and/or payroll verification, a justification shall be provided for the difference. If DCAA has not reviewed the rate information for

an Offeror or one of its subcontractors, the Offeror must submit a detailed justification of the proposed direct and indirect rates. The Offeror shall also provide documentation verifying that it has a DCMA approved Accounting System in accordance with DFARS clause 252.242-7006, or state that it's Accounting System has not been approved by DCMA. Offerors shall provide the last three (3) years of actual indirect information. The Government may compare an Offeror's labor category rate to the average labor rate from industry.

(c) The Offeror shall fully disclose the buildup of cost/price of each CLIN.

(d) Offeror's labor classifications should cross-reference to Department of Labor (DOL) wage determination classifications as much as possible.

(e) This solicitation is, and the resulting contract will be, subject to the Service Contract Act of 1965, as amended, and to FAR clause 52.222-41, contained in Section I of this solicitation. Offerors shall propose employee's wages in accordance with the attached Wage Determination. As part of the cost/price proposal, the Offeror shall furnish the names of the proposed labor categories and the corresponding labor categories from the attached Wage Determination as well as documentation of compliance with the minimum monetary wages and fringe benefits for service employees as specified in the Wage Determination (provided as an attachment in Section J of this solicitation). If additional locations are proposed, the Offeror shall demonstrate compliance with the minimum monetary wages and fringe benefits for service employees as specified in the Wage Determination for each proposed location. As the services to be provided will not require a meaningful number of professional employees, the Government is not requesting and will not evaluate a Professional Employee Compensation Plan.

(f) When completing the Cost Summary Spreadsheet **Attachment P1**, the Offeror shall not utilize any fully burdened hourly rates when pricing the labor of its employees. If a Subcontractor of the Offeror utilizes fully burdened labor rates in its submission to the Prime, the Subcontractor shall provide its own Attachment P1 delineating the buildup of those rates to the Government. The fully burdened labor rates shall be calculated on **Attachment P2**, Fully Burdened Labor Rates Spreadsheet.

(g) The Offeror shall submit their fully completed Cost/Price proposal with the following:

- Direct labor rates by category. The Offeror and any proposed subcontractor is required to submit labor rates for all proposed current, contingent, and prospective hire individuals. If composite or category averages are proposed, provide a breakdown of how rates are developed. If necessary provide a narrative to describe derivation of labor rates, use of uncompensated overtime, pools to which indirect rates are applied, historical /provisional billing rates for indirect rates for the last 3 years and description, and amount of proposed other direct costs. If the Offeror requires the use of consultants in performance of the effort, the consultant cost shall be captured under the appropriate labor CLIN not the ODCs CLIN.
- Direct labor rates for contingent and prospective hires. For any proposed prospective hires, Contractors and Subcontractors shall propose direct labor rates equal to or greater than the direct labor rates stated in the "Minimum Direct Labor Rates" worksheet within Attachment P1. The minimum rate is based on data from the Bureau of Labor Statistics (BLS) wage data by area (California-Lexington Park, MD metropolitan area) and occupation for each labor category's SOC code or on data from the respective Wage Determination for any SCA labor category. The rates from the BLS wage data/SCA data were then escalated based on the anticipated Period of Performance (PoP) start date of this contract. The escalation rate was 3.8% per year based on BLS data for any BLS LCAT and 1.12% for SCA LCATs. Junior Employee minimums are based on the 25th percentile, Journeyman on the 75th, and Senior at the 90th percentile. CSWF Entry/Basic minimums are based on the 10th percentile, Intermediate on the 75th, and Advanced on the 90th percentile.
- Payroll Verification – offerors must submit payroll verification data to support the direct labor rate for all current employees that are proposed.
- Escalation on labor. Offerors, including subcontractors, shall address escalation for all labor categories, and shall provide rationale for the specific escalation rate used. Offerors that do not include escalation, or an explanation as to why it is not included, may be considered unrealistically low and may have their proposals adjusted by the Government to include escalation in the "out-years".
- Indirect costs (e.g., Overhead, Fringe Benefits, General & Administrative (G&A), etc.)

- Information needed to explain the Offeror's estimating practices
- Profit/Fee: Identify profit/fee rate and total amounts proposed and identify the various cost elements to which the profit/fee is being applied. Profit, Base, Award, and Incentive fee rates, as applicable in Section B, must be clearly distinguishable. Profit/Fee shall not be applied to ODCs.
- Other Direct Costs (ODCs) by specific cost element (e.g., Travel, Material, and Field Services). Reimbursement for Travel will be in accordance with FAR 31.205-46. If the Offeror proposes burdens on the Government provided ODC estimates, the Offeror shall provide a percentage breakdown of the Offeror's indirect costs and burdens added to the Government estimates for any and all Cost Reimbursable CLINs in Section B.
- When the Offeror elects to claim Cost of Money (COM) as an allowable cost, the Offeror must submit a COM form and show the calculations of the proposed amount.
- Remote Telework. For labor categories eligible for remote telework, the Offeror shall identify the applicable locality/metropolitan pay area for all proposed current, contingent, and prospective hire individuals designated as remote teleworking.

3.4 Government Furnished Information

3.4.1 ODCs

The Government's estimate for ODCs for the prime and all subcontract efforts, unburdened is listed below:

ODCs	Travel	Material	Field Services2	Total ODCs
Year 1	\$ 357,087.96	\$1,339,079.83	\$32,107.17	\$1,928,274.96
Year 2	\$ 361,081.23	\$1,354,054.61	\$234,702.80	\$1,949,838.64
Year 3	\$ 365,119.16	\$1,369,196.86	\$237,327.45	\$1,971,643.47
Year 4	\$ 369,202.25	\$1,384,508.43	\$239,981.46	\$1,993,692.14
Year 5	\$373,331.00	\$1,399,991.23	\$ 242,665.15	\$2,015,987.38
Total ODCs	\$1,825,821.60	\$6,846,830.96	\$1,186,784.03	\$9,859,436.59

The Offeror shall utilize the Not-to-Exceed (NTE) amounts provided by the Government for CLINs/items shown in the table above in their Cost Volume and Attachment P1 Spreadsheet. If it is the contractor's accounting practice to apply (and invoice for) burdens with regard to ODCs, then the contractor shall propose the NTE ODC amount as shown above plus the addition of the applicable burdens. If the contractor chooses not to burden ODCs, then the contractor shall propose an H-clause to establish that burdens will be unallowable for ODCs. NO FEE SHALL BE APPLIED TO ODCs.

3.4.2 Labor Hours

The Government proposed Level of Effort Ceiling is **463,200** hours for the entire five (5) year ordering period. A work-year is defined as 1,920 hours exclusive of holidays and leave. For evaluation purposes, the Offeror shall propose the labor categories/hours as outlined in Attachment P1.

3.4.3 Incumbent Information

The incumbent contractor is:

KBR Wyle Services, LLC.
CAGE Code: 9N030
22309 Exporation Drive
Lexington Park, MD 20653

CLAUSES INCORPORATED BY REFERENCE

52.204-7	System for Award Management	NOV 2024
52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.215-1	Instructions to Offerors--Competitive Acquisition	NOV 2021
52.215-22	Limitations on Pass-Through Charges--Identification of Subcontract Effort	OCT 2009
52.237-10	Identification of Uncompensated Overtime	MAR 2015

CLAUSES INCORPORATED BY FULL TEXT

52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a **Single Award IDIQ** contract resulting from this solicitation.

52.233-2 SERVICE OF PROTEST (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from **Procuring Contracting Officer Jennifer L. Lundburg jennifer.l.lundburg.civ@us.navy.mil**

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far/> or <http://www.farsite.hill.af.mil/>.

252.215-7008 ONLY ONE OFFER (DEC 2022)

(a) Cost or pricing data requirements. After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to--

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010,

Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) Canadian Commercial Corporation. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) Subcontracts. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.225-7003 REPORT OF INTENDED PERFORMANCE OUTSIDE THE UNITED STATES AND CANADA--SUBMISSION WITH OFFER (JAN 2025)

(a) Definition. United States, as used in this provision, means the 50 States, the District of Columbia, and outlying areas.

(b) The Offeror shall submit, with its offer, a report of intended performance outside the United States and Canada if--

(1) The offer exceeds \$15 million in value; and

(2) The Offeror is aware that the Offeror or a first-tier subcontractor intends to perform any part of the contract outside the United States and Canada that--

(i) Exceeds \$750,000 in value; and

(ii) Could be performed inside the United States or Canada.

(c) Information to be reported includes that for--

(1) Subcontracts;

(2) Purchases; and

(3) Intracompany transfers when transfers originate in a foreign location.

(d) The Offeror shall submit the report using--

(1) DD Form 2139, Report of Contract Performance Outside the United States; or

(2) A computer-generated report that contains all information required by DD Form 2139.

(e) The Offeror may obtain a copy of DD Form 2139 from the Contracting Officer or via the Internet at <http://www.dtic.mil/whs/directives/infomgt/forms/formsprogram.htm>.

(End of provision)

LTXT.209-9513 ORGANIZATIONAL CONFLICT OF INTEREST INSTRUCTIONS (NAVAIR) (FEB 2025)

(a) In accordance with FAR 9.507-1, in the Contracting Officer's judgment, there is potential for an organization conflict of interest to arise during execution of the work scope under this solicitation for the successful Offeror and/or any subcontractors, partners or affiliates: (1) who because of activities or relationships may be unable to render impartial assistance or advice to the Government, or (2) whose objectivity in performing the contemplated contract work might otherwise be impaired, or (3) who will gain an unfair competitive advantage in regards to [insert description of weapons system involved and contractor activities that are suspect, i.e., drafting specifications, planning requirements etc.].

(b) This solicitation therefore contains specific terms in Section H entitled, "NAVAIR HTXT.209-9510 Organizational Conflicts of Interest," which will appear in the awarded contract. The Contracting Officer has indicated the nature of the potential conflict that may arise during contract execution by checking the applicable block/s under subparagraph (e) of NAVAIR HTXT.209.9510.

(c) The Offeror's proposal shall include a plan to implement and comply with the requirements of NAVAIR HTXT.209-9510. The plan shall recommend additional means, if any, over and above the restriction set forth in the checked block/s of subparagraph (e) of NAVAIR HTXT209.9510 to further neutralize, mitigate, or avoid the identified potential conflict of interest. There is no page limitation on the conflict of interest plan submission.

(d) If the Contracting Officer determines the Offeror will have a conflict of interest during contract execution and determines it cannot be neutralized, mitigated, or avoided during contract execution, then the Offeror may be deemed ineligible for award. If the mitigation plan is deemed acceptable by the Contracting Officer, it will be incorporated into the contract awarded pursuant to this solicitation.

(e) The Offeror's plan may be submitted at any time prior to the due date for receipt of proposals and, if not provided in advance, shall be submitted no later than the due date for receipt of proposals.

LTXT.215-9503 ANTICIPATED AWARD DATE (NAVAIR) (FEB 1995)

The anticipated award date for this requirement is [Insert the anticipated award date]. This information is provided for use as a basis for schedules and burden (labor, overheads, G&A, etc.) mid-point calculations.

**LTXT.219-9501 LESS THAN FIVE PERCENT SMALL DISADVANTAGED BUSINESS
SUBCONTRACTING GOAL (NAVAIR) (MAR 1999)**

Offerors submitting Small and Small Disadvantaged Business Subcontracting Plans per FAR Clause 52.219-9, "Small Business Subcontracting Plan" and DFARS Clause 252.219-7003, "Small, Small Disadvantaged and Women-Owned Small Business Subcontracting Plan (DoD Contracts)" which reflect a Small Disadvantaged Business (SDB) goal of less than five percent shall also provide, as a part of the subcontracting plan submission, those extenuating circumstances of why a five percent SDB goal cannot be proposed.

**LTXT.227-9508 QUALIFIED U.S. CONTRACTORS FOR EXPORT-CONTROLLED TECHNICAL DATA
(NAVAIR) (APR 1998)**

(a) By Department of Defense (DoD) Directive 5230.25 (hereinafter referred to as "the Directive"), a program was established to allow Qualified U.S. Contractors to obtain export-controlled technical data under certain conditions. A "Qualified U.S. Contractor" is a private individual or enterprise (hereinafter described as a "U.S. Contractor") that, in accordance with procedures established by the Under Secretary of Defense for Research and Engineering, certifies as a condition of obtaining export-controlled technical data subject to the Directive from the Department of Defense, that:

(1) The individual who will act as recipient of the export-controlled technical data on behalf of the U.S. contractor is a U.S. citizen, or a person admitted lawfully into the United States for permanent residence and is located in the United States;

(2) Such data are needed to bid or perform on a contract with the Department of Defense, or other U.S. Government agency, or for other legitimate business purposes in which the U.S. Contractor is engaged, or plans to engage. The purpose for which the data are needed shall be described sufficiently in such certification to permit an evaluation of whether subsequent requests for data are related properly to such business purpose.

(3) The U.S. Contractor acknowledges its responsibilities under U.S. export control laws and regulations (including the obligation, under certain circumstances to obtain an export license prior to the release of technical data within the United States) and agrees that it will not disseminate any export-controlled technical data subject to the Directive in a manner that would violate applicable export control laws and regulations.

(4) The U.S. Contractor also agrees that, unless dissemination is permitted by the Directive, it will not provide access to export-controlled technical data subject to the Directive to persons other than its employees or persons acting on its behalf, without the permission of the DoD component that provided the technical data.

(5) To the best of its knowledge and belief, the U.S. Contractor knows or no person employed by it, or acting on its behalf, who will have access to such data, who is debarred, suspended or otherwise ineligible to perform under U.S. Government contracts; or has violated U.S. export control laws or a certification previously made to the Department of Defense under the provisions of the Directive.

(6) The U.S. contractor itself is not debarred, suspended, or otherwise determined ineligible by any agency of the U.S. Government to perform on U.S. Government contracts, has not been convicted of export control law violations, and has not been disqualified under the provisions of this Directive.

(b) Private individuals or enterprises are certified as Qualified U.S. Contractors by submitting a DD Form 2345 (attached hereto) to Commander, Defense Logistics Information Services (DLIS), Federal Center, Battle Creek, Michigan 49017-3084.

(c) Canadian contractors may be qualified in accordance with the Directive for technical data that do not require a license for export to Canada under section 125.12 of the International Traffic in Arms Regulations and section 379.4(d) and 379.5(e) of the Export Administration Regulations, by submitting an equivalent certification to the DLIS.

**LTXT.233-9500 AUTHORIZED PROTEST/APPEAL FILED WITH THE NAVAL AIR SYSTEMS
COMMAND (NAVAIR) (FEB 2025)**

(a) Authorized agency protests/appeals will be processed in accordance with the procedures established at FAR 33.103. Authorized protests to the Naval Air Systems Command shall be filed with the Contracting Officer whose name and address are shown in FAR Clause 52.233-2, "Service of Protest" of this solicitation.

(b) In accordance with FAR 16.505(a)(10)(i)-(ii), agency protests/appeals of task/delivery orders under multiple award contracts are only authorized on the grounds that the task/delivery order increases the scope, period, or maximum value of the contract and the order is not in excess of the threshold set forth at FAR 16.505(a)(10)(i)(B)(2).

(c) The protester may request an independent review of the Contracting Officer's protest decision by filing a written appeal with:

The Chief of the Contracting Office
Attn: Dawn Adamo, Code A200000
21983 Bundy Road, Bldg. 441
Patuxent River, MD 20670

(d) The appeal must be received by the Chief of the Contracting Office within 10 calendar days after the issuance of the Contracting Officer's protest decision. (In the computation of the 10 calendar day period, the day the Contracting Officer's protest decision is issued is not included.)

The appeal shall include the following content:

- (1) the name, mailing address, telephone numbers and email address of the appellant;
- (2) the solicitation or contract number;
- (3) a detailed statement of the factual grounds for the appeal, to include a description of resulting prejudice to the appellant;
- (4) copies of relevant documents;
- (5) a request for an independent review by the Chief of the Contracting Office;
- (6) a statement as to the form of relief requested; and,
- (7) all information establishing the timeliness of the appeal.

Appeals that do not address each of the seven (7) content elements will be denied as facially deficient in complying with minimum content requirements.

(e) Protestors requesting an independent review of the Contracting Officer's protest decision shall notify the Contracting Officer in writing that an appeal has been filed with the Chief of the Contracting Office within one day of submitting the appeal.

Section M - Evaluation Factors for Award

EVALUATION FACTORS FOR AWARD

M-1 EVALUATION FACTORS FOR AWARD (SERVICES)

PART A: GENERAL INFORMATION

1.0 GENERAL

The Government expects to select one Offeror whose proposal offers the “best value” to the Government, using the trade-off method. “Best value” means the expected outcome of an acquisition that, in the Government’s estimation, provides the greatest overall benefit(s) in response to the requirement. The Offeror is advised that the lowest priced proposal meeting the solicitation requirements may not be selected for an award if award to a higher priced Offeror is determined to be more beneficial to the Government. However, the perceived benefits of the higher priced proposal must merit the additional price.

2.0 EVALUATION PROCESS

In accordance with FAR 52.215-1, the Government intends to evaluate and award a contract without discussions with Offerors (except minor clarifications as described in FAR 15.306(a)). Therefore, the Offeror’s initial proposal must contain the Offeror’s best terms from a price or cost and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines that the number of proposals that would otherwise be at/above the competitive minimum exceeds the number at which an effective competition can be conducted, the Contracting officer may limit the number of proposals at/above the competitive minimum to the greatest number that will permit an efficient competition among the most highly rated proposals. All proposals will be evaluated for compliance with the terms, conditions, and requirements set forth in the solicitation. Failure to address each of the areas identified in Section L, Part B Specific Information in the proposal, may impact the resulting evaluation ratings and risk assessment.

For the Technical factor a combined Technical/Risk rating will be assigned. There are no subfactors and the elements are not separately rated. This method reflects whether the proposal meets or does not meet the minimum requirements along with an assessment of the strengths, weaknesses, significant weaknesses, and deficiencies of the proposal to determine the combined Technical/Risk rating. The benefit to the Government associated with assessed strengths along with the technical risk will be considered in determining whether the Offeror’s proposal rises to a level of being thorough or exceptional. Assessment of technical risk considers potential for disruption of schedule, increase in costs, degradation of performance, the need to increase Government oversight. Or the likelihood of unsuccessful contract performance. Offerors are advised that during the evaluation process, an “Unacceptable” Technical/Risk Rating may result in the entire proposal being found unacceptable and eliminated from the competition.

For the Small Business Participation factor, a Small Business Participation rating will be assigned. This method reflects the level to which the proposal has demonstrated an approach and understanding of small business participation to determine the overall Small Business participation Evaluation Rating. Offerors are advised that during the evaluation process, a Small Business Participation factor with an “Unacceptable” Rating may result in the entire proposal being found unacceptable and eliminated from the competition.

3.0 EVALUATION FACTORS FOR AWARD

Proposals will be evaluated using the factors and elements listed below.

a) TECHNICAL

Elements:

1. Sample Task
2. Key Personnel Resumes
3. Transition-In Plan

b) SMALL BUSINESS PARTICIPATION**c) COST/PRICE**

Technical and Small Business Participation, when combined, are significantly more important than cost/price.

Cost/price is not the most important evaluation factor, but its degree of importance will increase commensurably with the degree of equality among different Offeror's Technical proposals and Small Business Participation.

PART B: SPECIFIC INFORMATION**1.0 TECHNICAL**

The evaluation will include an assessment of the following:

The Government will evaluate the Offeror's proposal to determine the Offeror's understanding of, approach to, and ability to meet the solicitation requirements. The Government will assess the Offeror's Technical proposal with respect to its compliance with the solicitation requirements and the risk associated with the Offeror's approach. The evaluation will also include an assessment of the following:

1.1 Sample Task

The Government will evaluate each Offeror's proposed approach to the Sample Task to assess its demonstrated ability to meet or exceed the requirements, adequacy of its approach, understanding of the requirements, perceived benefits and associated risk based upon the Offeror's response to the instructions provided in Section L.

1.2 Key Personnel Resumes

The Government will evaluate all proposed Key Personnel and the supporting information to determine if they meet the minimum qualification requirements. In addition, Key Personnel proposed to be utilized in the performance of this effort, whose labor qualifications exceed the minimum requirements in such areas as education, experience, and security clearance levels, may be considered strengths if the additional qualifications(s) is/are advantageous to the Government.

1.3 Transition-In Plan

The Government will evaluate the Offeror's proposed Transition-In Plan for compliance with and understanding of the solicitation requirements, including those listed in the Transition-In paragraph of Section L, and the risk associated with the Offeror's plan.

2.0 SMALL BUSINESS PARTICIPATION**2.1 Small Business Participation Commitment Document**

The Government will evaluate the acceptability of each Prime Contractor's (Large and Small Businesses) Small Business Participation Commitment Document (SBPCD) as provided in Attachment P3. The Government will evaluate the extent of participation of small business Prime Contractors and small business subcontractors in terms of the value of the total acquisition (total proposed order value). All Prime Contractors (both Large and Small Businesses) will be evaluated on the extent of proposed participation/commitment to use small businesses in the performance of this acquisition (as small business Prime Contractors or small business subcontractors) relative to the requirements established in this RFP. An Offeror's failure to meet the subcontracting minimum requirement of 15% of the total contracted value, without sufficient justification as to why, will be deemed unacceptable.

2.2 Small Business Subcontracting Plan (Large Business Offerors only). The Government will evaluate the consistency of the Small Business Subcontracting Plan to the SBPCD, and ensure that the Small Business Subcontracting Plan conforms to the requirements of FAR 19.7.

2.3 The Government will assign one of the Small Business Participation Factor ratings below in Part C, paragraph 2.0 to the Contractor's Small Business Participation Factor based upon the Government's subjective assessment of each Offeror's response.

If the Contractor is assigned an Unacceptable rating for the Small Business factor, then the task order proposal may be determined ineligible for award.

3.0 COST/PRICE

Cost Reimbursement CLINs:

Except for otherwise unacceptable proposals when awarding on initial proposals, the Government will perform a cost realism analysis to determine the most probable cost (MPC) for each applicable Offeror's proposal. Cost realism analysis is the process of independently reviewing and evaluating specific elements of each Offeror's proposed cost to determine whether the proposed cost is realistic for the work to be performed and are consistent with the unique methods of performance and materials described in the Offeror's technical proposal. In conducting its cost realism analysis, the Government will review the Offeror's submitted labor categories and compare the proposed direct labor rates for the prospective hires to the minimum BLS/SCA rates as provided in Attachment P1. The minimum rate is based on data from the Bureau of Labor Statistics (BLS) wage data by area (California-Lexington Park, MD metropolitan area) and occupation for each labor category's SOC code or on data from the respective Wage Determination for any SCA labor category. **CAUTION: Offerors (and subcontractors) are advised that failure to provide rationale to support a proposed direct labor rate for a prospective hire which is lower than the ranges set forth in Attachment P1 will result in a determination that the rate(s) are not realistic and the Offeror may not be eligible for award.** The Government will not perform cost realism analysis on subcontractor proposals that are proposed on a Time-and-Materials or fixed price basis (e.g. FFP, FFP LOE, T&M, etc.).

The Government will review the Offeror's contingent hire employees and compare their proposed direct labor rates to the submitted Letter of Intent and the Government will review the Offeror's current employees and compare their proposed direct labor rates to the submitted payroll verification. Pertinent cost information, including but not limited to DCAA-recommended rates for such costs as direct labor, overhead, G&A, etc., as necessary and appropriate, will be used to arrive at the Government determination of the MPC for the performance of this contract. No downward adjustments will be made.

Additionally, the Government will confirm that the labor costs (Cost Plus Fixed Fee) amount falls at/above the minimum established in Section L, Part B, paragraph 3.3. If the proposed labor costs fall below the provided minimum, the Government will ensure adequate justification was provided by the Offeror.

The MPC is an Offeror's total cost, including fee, and any additional adjustments the Government has determined necessary to make the proposed cost realistic for all periods. The Government will use the results of its cost realism analysis to determine the MPC of performance for each Offeror. The MPC may differ from the proposed cost. The Government MPC will be used for purposes of evaluation to determine the best value. Contract awarded value, however, will be based upon the successful Offeror's proposed costs.

The Government, generally, will not make any adjustments that will create a downward adjustment in the Offeror's total proposed price. The Government will make adjustments when the Government finds the Offeror has proposed unrealistically low.

In accordance with FAR 15.404-1(b)(2), various price analysis techniques and procedures will be employed to ensure the prices being proposed for this requirement are fair and reasonable. To assist in the overall determination

of price reasonableness, the Government will identify all instances where a proposed fully burdened labor cost exceeds \$420K annually per employee. The fully burdened labor rate for any proposed subcontractor labor will be calculated inclusive of all pass-through costs being applied by the prime. Any fully burdened labor rate exceeding the tripwire may ultimately be determined unreasonable absent justification.

4.0 EVALUATION OF OPTIONS

FAR 52.217-8, Option to Extend Services, is incorporated in the solicitation. Total evaluated price will also include the six month performance period permitted under the clause, to account for a situation where invoking of the clause, in whole or part, becomes necessary. Specifically, the evaluated price of this six-month period will be calculated by dividing the Year 5 ordering period CLINs by twelve (12) to establish an estimated monthly amount. The monthly amount will then be multiplied by six to establish the estimated cost for the six-month option to extend services.

5.0 TOTAL EVALUATED PRICE

The total evaluated price will be the sum of the MPC for all Ordering Period Years plus the six-month Option to Extend (FAR 52.217-8). The Government will use the total evaluated price for award determination.

PART C: EVALUATION RATING AND RISK ASSESSMENT DEFINITIONS

The definitions below will be used by the Government when assessing solicitation compliance and the results of the Offeror's proposed approach.

1.0 EVALUATION RATING AND RISK ASSESSMENT DEFINITIONS

The appropriate adjectival rating will be assigned to each non-cost/price factor. The Government will utilize a combined technical/risk rating for the Technical Factor.

2.0 TECHNICAL EVALUATION RATINGS

Combined Technical/Risk Ratings: The combined technical/risk assignments are provided in the table below:

Table 1	COMBINED TECHNICAL/RISK RATING
Rating	Description
Outstanding	Proposal indicates an exceptional approach and understanding of the requirements and contains multiple strengths, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation, and thus contains one or more deficiencies, and/or risk of unsuccessful performance is unacceptable. Proposal is unawardable.

3.0 SMALL BUSINESS UTILIZATION EVALUATION RATINGS

Rating	Description
Acceptable	SB Participation Volume is complete and adequately addresses the two required elements, and meets the requirement for small business subcontracting; For LB offerors, the SBPCD is consistent with its SB Subcontracting Plan.
Unacceptable	SB Participation Plan Volume is incomplete or does not adequately address the two required elements, or does not meet the requirement for Small Business Subcontracting; For LB offerors, the SBPCD is inconsistent with its SB Subcontracting Plan.

4.0 OTHER DEFINITIONS

Strengths: An aspect of an Offeror's proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance.

Weakness: A flaw in the proposal that increases the risk of unsuccessful contract performance. (FAR 15.001)

Significant Weakness: A flaw that appreciably increases the risk of unsuccessful contract performance. (FAR 15.001)

Deficiency: A material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increase the risk of unsuccessful contract performance to an unacceptable level. (FAR 15.001)

Risk: As it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an Offeror's proposed approach to achieving the technical factor or element may involve risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

Low Risk: Proposal may contain weakness(es) which have little potential to cause disruption of schedule, increased cost of degradation of performance. Normal contractor effort and normal Government monitoring will likely be able to overcome any difficulties.

Moderate Risk: Proposal contains significant weakness or combination of weaknesses which may potentially cause disruption of schedule, increased cost or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome difficulties.

High Risk: Proposal contains a significant weakness or combination of weaknesses which is likely to cause significant disruption of schedule, increased cost or degradation of performance. Is unlikely to overcome any difficulties, even with special contractor emphasis and close Government monitoring.

Unacceptable Risk: Proposal contains a material failure or a combination of significant weaknesses that increase the risk of unsuccessful performance to an unacceptable level.